ORDERS FOR MARCH 3 THROUGH
MAY 26, 1998

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MARCH 3, 1998

*Miscellaneous Order*

No. A–657. FRANCIS, WARDEN *v.* FRANKLIN ET AL., NEXT FRIENDS FOR BERRY. Application to vacate stay of execution of sentence of death entered by the United States District Court for the Southern District of Ohio on February 27, 1998, presented to JUSTICE STEVENS, and by him referred to the Court, denied.

MARCH 4, 1998

*Dismissal Under Rule 46*

No. 97–7427. ALTSCHUL *v.* TEXAS. Ct. Crim. App. Tex. Certiorari dismissed under this Court's 46.

MARCH 6, 1998

*Certiorari Denied*

No. 97–8069 (A–644). ARNOLD *v.* MOORE, DIRECTOR, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL. Sup. Ct. S. C. Application for stay of execution of sentence of death, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied. Certiorari denied.

MARCH 9, 1998

*Certiorari Granted—Vacated and Remanded*

No. 97–669. CITY OF BELLEVILLE *v.* DOE ET AL., BY THEIR PARENTS AND NEXT FRIENDS, DOE ET UX. C. A. 7th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Oncale* v. *Sundowner Offshore Services, Inc.*, *ante*, p. 75. Reported below: 119 F. 3d 563.

*Miscellaneous Orders.* (See also No. 97–7300, *ante*, p. 206.)

No. M–46. BENOIT *v.* MEDICAL CENTER OF DELAWARE, INC., CHRISTIANA HOSPITAL; and



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No. M–47. BROOKS *v.* MCKINNEY ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. M–48. BETTS *v.* CONTAINER CORPORATION OF AMERICA ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time and for other relief denied.

No. 96–1654. MUSCARELLO *v.* UNITED STATES. C. A. 5th Cir.; and

No. 96–8837. CLEVELAND ET AL. *v.* UNITED STATES. C. A. 1st Cir. [Certiorari granted, 522 U. S. 1023.] Motion of petitioners for divided argument granted.

No. 96–1866. GEBSER ET AL. *v.* LAGO VISTA INDEPENDENT SCHOOL DISTRICT. C. A. 5th Cir. [Certiorari granted, 522 U. S. 1011.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–156. BRAGDON *v.* ABBOTT ET AL. C. A. 1st Cir. [Certiorari granted, 522 U. S. 991.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–454. UNITED STATES *v.* BESTFOODS ET AL. C. A. 6th Cir. [Certiorari granted *sub nom. United States* v. *CPC International, Inc.*, 522 U. S. 1024.] Motion of respondents Aerojet-General Corp. et al. for divided argument denied. The Court will hear argument from respondent Bestfoods.

No. 97–6789. MOOMCHI *v.* NEW MEXICO CORRECTIONS DEPARTMENT ET AL. C. A. 10th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [522 U. S. 1074] denied.

No. 97–7488. CADDY *v.* GOOD SAMARITAN HOSPITAL ET AL. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until March 30, 1998, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 97–7885. IN RE AZUZ. Petition for writ of habeas corpus denied.

No. 97–7786. In re Monge Viveros. Petition for writ of mandamus denied.

No. 97–7384. In re Darden;
No. 97–7434. In re Pearson; and
No. 97–7767. In re Van Hoorelbeke. Petitions for writs of mandamus and/or prohibition denied.

*Certiorari Granted*

No. 97–1147. Minnesota *v.* Carter; and Minnesota *v.* Johns. Sup. Ct. Minn. Certiorari granted. Reported below: 569 N. W. 2d 169 (first judgment) and 180 (second judgment).

No. 97–1130. Pfaff *v.* Wells Electronics, Inc. C. A. Fed. Cir. Certiorari granted limited to Question 1 presented by the petition. Reported below: 124 F. 3d 1429.

*Certiorari Denied*

No. 96–1872. Scott-Harris *v.* City of Fall River. C. A. 1st Cir. Certiorari denied. Reported below: 134 F. 3d 427.

No. 97–330. BVP Management Associates *v.* Fredette. C. A. 11th Cir. Certiorari denied. Reported below: 112 F. 3d 1503.

No. 97–746. General Motors Corp. *v.* Grear et al.; and In re General Motors Corp. C. A. 6th Cir. Certiorari denied.

No. 97–834. Pollin et al. *v.* Paralyzed Veterans of America et al. C. A. D. C. Cir. Certiorari denied. Reported below: 117 F. 3d 579.

No. 97–897. United Steelworkers of America, AFL–CIO–CLC, et al. *v.* Bandag, Inc. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 697.

No. 97–910. Kiker et vir *v.* Miller, Individually and as Circuit Judge of the Circuit Court of Russell County. C. A. 11th Cir. Certiorari denied. Reported below: 110 F. 3d 798.

No. 97–917. Litton Industrial Automation Systems, Inc. *v.* Nationwide Power Corp. et al. C. A. 11th Cir. Certiorari denied. Reported below: 106 F. 3d 366.

No. 97–924. HIBBS ET AL. *v.* CITY OF SAN BUENAVENTURA. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–984. REMINGTON INVESTMENTS, INC. *v.* HAMEDANI. Ct. App. Cal., 2d App. Dist. Certiorari denied. Reported below: 55 Cal. App. 4th 1033, 64 Cal. Rptr. 2d 376.

No. 97–1023. CHAMPION INTERNATIONAL CORP. *v.* SMITH, EXECUTRIX FOR THE ESTATE OF SMITH. C. A. 4th Cir. Certiorari denied. Reported below: 125 F. 3d 848.

No. 97–1055. FINOVA CAPITAL CORP., SUCCESSOR IN INTEREST TO BELL ATLANTIC TRICON LEASING CORP. *v.* LIFECARE X-RAY, INC., ET AL. Super. Ct. Pa. Certiorari denied. Reported below: 456 Pa. Super. 84, 689 A. 2d 924.

No. 97–1091. SUMMIT *v.* S–B POWER TOOL (SKIL CORP.). C. A. 8th Cir. Certiorari denied. Reported below: 121 F. 3d 416.

No. 97–1098. DANCY *v.* HYSTER CO. C. A. 8th Cir. Certiorari denied. Reported below: 127 F. 3d 649.

No. 97–1103. ELEWSKI *v.* CITY OF SYRACUSE ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 123 F. 3d 51.

No. 97–1104. FARMER *v.* UNIVERSITY AND COMMUNITY COLLEGE SYSTEM OF NEVADA. Sup. Ct. Nev. Certiorari denied. Reported below: 113 Nev. 90, 930 P. 2d 730.

No. 97–1105. DERZACK ET VIR *v.* ALLEGHENY COUNTY CHILDREN AND YOUTH SERVICES. Super. Ct. Pa. Certiorari denied. Reported below: 456 Pa. Super. 440, 690 A. 2d 1192.

No. 97–1109. LAND & LAKES CO. ET AL. *v.* HENDERSON, COMMISSIONER, ILLINOIS DEPARTMENT OF ENVIRONMENT, ET AL. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 286 Ill. App. 3d 1113, 709 N. E. 2d 1006.

No. 97–1115. METROPOLITAN DADE COUNTY ET AL. *v.* ENGINEERING CONTRACTORS ASSOCIATION OF SOUTH FLORIDA, INC., ET AL.; and

No. 97–1160. ALLIED MINORITY CONTRACTORS ASSN., INC. *v.* ENGINEERING CONTRACTORS ASSOCIATION OF SOUTH FLORIDA, INC., ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 895.

No. 97–1125. SURGIDEV CORP. *v.* NIEHOFF. Sup. Ct. Ky. Certiorari denied. Reported below: 950 S. W. 2d 816.

No. 97–1132. TAYLOR, EXECUTOR OF THE ESTATE OF TAYLOR, DECEASED, ET AL. *v.* JAQUEZ ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 126 F. 3d 1294.

No. 97–1138. COMENOUT ET AL. *v.* WASHINGTON DEPARTMENT OF COMMUNITY DEVELOPMENT ET AL. Ct. App. Wash. Certiorari denied. Reported below: 85 Wash. App. 1099.

No. 97–1140. WINGFIELD *v.* MASSIE, WARDEN. C. A. 10th Cir. Certiorari denied. Reported below: 122 F. 3d 1329.

No. 97–1150. TRAHAN *v.* BELLSOUTH TELECOMMUNICATIONS, INC. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 609.

No. 97–1151. GENDREAU *v.* GENDREAU. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 815.

No. 97–1158. SUMMERS *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 917.

No. 97–1180. OLDHAM, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF OLDHAM, DECEASED *v.* KOREAN AIR LINES CO., LTD. C. A. D. C. Cir. Certiorari denied. Reported below: 127 F. 3d 43.

No. 97–1182. ELLIS *v.* HILL ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–1186. MIZELL *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 117 F. 3d 1432.

No. 97–1187. DOBROVOLNY ET AL. *v.* MOORE, SECRETARY OF STATE OF NEBRASKA. C. A. 8th Cir. Certiorari denied. Reported below: 126 F. 3d 1111.

No. 97–1193. REMINGTON INVESTMENTS, INC. *v.* XEP NGUYEN ET AL. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–1197. NESBITT *v.* WEST VIRGINIA. Cir. Ct. Upshur County, W. Va. Certiorari denied.

No. 97–1198. MOORE *v.* CITY OF WESTMINSTER ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 116 F. 3d 1486.

No. 97–1221. RING *v.* FEDERAL NATIONAL MORTGAGE ASSOCIATION ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 124 F. 3d 208.

No. 97–1237. LOCAL UNION 7107, UNITED MINE WORKERS OF AMERICA, DISTRICT 28 *v.* CLINCHFIELD COAL CO. C. A. 4th Cir. Certiorari denied. Reported below: 124 F. 3d 639.

No. 97–1266. PATENT OFFICE PROFESSIONAL ASSN. *v.* FEDERAL LABOR RELATIONS AUTHORITY. C. A. D. C. Cir. Certiorari denied. Reported below: 128 F. 3d 751.

No. 97–1268. SCHOUMAN *v.* SECURITIES AND EXCHANGE COMMISSION ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1265.

No. 97–1270. BIRD *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 124 F. 3d 667.

No. 97–1277. HASELOW *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 97–1281. MOORE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 609.

No. 97–1304. HUGHES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1453.

No. 97–1305. GOLLAPUDI *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 130 F. 3d 66.

No. 97–1306. WRIGHT *v.* MASS TRANSIT ADMINISTRATION. Ct. Sp. App. Md. Certiorari denied. Reported below: 114 Md. App. 728.

No. 97–6033. WASHINGTON *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 547 Pa. 563, 692 A. 2d 1024.

No. 97–6353. NEWBY *v.* MILLER, GOVERNOR OF GEORGIA, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 114 F. 3d 1203.

No. 97–6410. JACKSON *v.* DAY, WARDEN, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 121 F. 3d 705.

No. 97–6691. ONE JUVENILE MALE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 117 F. 3d 1415.

No. 97–6835. BARR *v.* JONES, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–6836. WEE ET UX. *v.* ANDREWS ET AL. C. A. 2d Cir. Certiorari denied.

No. 97–7038. STEARNS ET AL. *v.* GREGOIRE, ATTORNEY GENERAL OF WASHINGTON, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 124 F. 3d 1079.

No. 97–7058. TAYLOR *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 702.

No. 97–7273. LEE *v.* ARIZONA (two judgments). Sup. Ct. Ariz. Certiorari denied. Reported below: 189 Ariz. 608, 944 P. 2d 1222 (first judgment); 189 Ariz. 590, 944 P. 2d 1204 (second judgment).

No. 97–7278. KEVIN B. *v.* NEW HAMPSHIRE. Sup. Ct. N. H. Certiorari denied.

No. 97–7283. BROWN *v.* WASHINGTON. Sup. Ct. Wash. Certiorari denied. Reported below: 132 Wash. 2d 529, 940 P. 2d 546.

No. 97–7303. SIMPSON *v.* PHILLIPS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–7304. SWAFFORD *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7332. MUHAMMAD, AKA GARRETT *v.* ANGELONE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1260.

No. 97–7333. LEWIS *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 97–7337. MCPHERSON *v.* VANDLEN ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1264.

No. 97–7338. JACKSON *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7339. LAWRENCE *v.* EVANS, WARDEN. C. A. 10th Cir. Certiorari denied. Reported below: 124 F. 3d 217.

No. 97–7340. TEEL *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 607.

No. 97–7342. GARCIA PEREZ *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 122 F. 3d 1067.

No. 97–7347. STENSON *v.* WASHINGTON. Sup. Ct. Wash. Certiorari denied. Reported below: 132 Wash. 2d 668, 940 P. 2d 1239.

No. 97–7348. STEPHEN *v.* ROMANI. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7351. SMITH *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 629.

No. 97–7353. BLEVINS *v.* WATSON, DISTRICT JUDGE, COTTON COUNTY, OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 97–7354. CULLEN *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 1009.

No. 97–7358. VALDEZ ET UX. *v.* ZIONS SECURITIES CORP. ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 719.

No. 97–7360. BENTLEY *v.* CITY OF NEW YORK ET AL. C. A. 2d Cir. Certiorari denied.

No. 97–7362. KENDRICK *v.* YOUNG, WARDEN. Sup. Ct. Va. Certiorari denied.

No. 97–7364. MOSTEK *v.* FORD MOTOR CO. ET AL. C. A. 6th Cir. Certiorari denied.

No. 97–7366. JAMES *v.* LAMAR. C. A. 11th Cir. Certiorari denied. Reported below: 117 F. 3d 1431.

No. 97–7369. MCCOY *v.* NORRIS, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION. C. A. 8th Cir. Certiorari denied. Reported below: 125 F. 3d 1186.

No. 97–7379. HOLLOWELL *v.* JOHNSON, SHERIFF, PULASKI COUNTY, ARKANSAS, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 124 F. 3d 208.

No. 97–7382. GUARDADO *v.* CALIFORNIA. Ct. App. Cal., 4th App. Dist. Certiorari denied.

No. 97–7389. OMEGBU *v.* MEQUON-THIENSVILLE SCHOOL DISTRICT ET AL. C. A. 7th Cir. Certiorari denied.

No. 97–7390. SEIBERT *v.* EIGHTH JUDICIAL DISTRICT COURT, CLARK COUNTY, NEVADA. Sup. Ct. Nev. Certiorari denied. Reported below: 113 Nev. 1648, 970 P. 2d 1129.

No. 97–7391. COHEN *v.* MORTON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–7393. JACKS ET AL. *v.* CRABTREE, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 114 F. 3d 983.

No. 97–7394. SHARP *v.* MAKOWSKI, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–7398. ALEXANDER *v.* OHIO. Ct. App. Ohio, Cuyahoga County. Certiorari denied. Reported below: 120 Ohio App. 3d 164, 697 N. E. 2d 255.

No. 97–7399. WHITE *v.* SHEESLEY. C. A. 10th Cir. Certiorari denied.

No. 97–7402. ZANKICH *v.* PHOENIX CARDIOLOGISTS ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–7405. BORNE *v.* LOUISIANA. Ct. App. La., 4th Cir. Certiorari denied. Reported below: 691 So. 2d 1281.

No. 97–7410. THOMAS *v.* GEORGIA. Ct. App. Ga. Certiorari denied. Reported below: 226 Ga. App. 409, 486 S. E. 2d 673.

No. 97–7411. WOODS *v.* ALEX-BELL OXFORD LIMITED PARTNERSHIP ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 121 F. 3d 711.

No. 97–7426. WHITE *v.* TATE, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–7429. COUCH *v.* FEDERAL PAPER BOARD CO., INC. C. A. 11th Cir. Certiorari denied.

No. 97–7430. BREWER *v.* DISTRICT COURT OF TEXAS, DALLAS COUNTY, ET AL. Sup. Ct. Tex. Certiorari denied.

No. 97–7432. SANDS *v.* LOS ANGELES COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7435. BLANCHARD *v.* TULANE UNIVERSITY MEDICAL CENTER. C. A. 5th Cir. Certiorari denied. Reported below: 125 F. 3d 852.

No. 97–7451. SWEET *v.* BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER. C. A. 8th Cir. Certiorari denied. Reported below: 125 F. 3d 1144.

No. 97–7482. MCNEIL *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 545 Pa. 42, 679 A. 2d 1253.

No. 97–7483. MIRANDA *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 291 Ill. App. 3d 1120, 716 N. E. 2d 879.

No. 97–7499. HENRY *v.* STINSON, SUPERINTENDENT, GREAT MEADOW CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 113.

No. 97–7510. FERGUSON *v.* JONES, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 97–7532. WADDY *v.* OHIO. Ct. App. Ohio, Franklin County. Certiorari denied.

No. 97–7544. PARKS *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 698 A. 2d 670.

No. 97–7589. SHELINE *v.* TENNESSEE. Sup. Ct. Tenn. Certiorari denied. Reported below: 955 S. W. 2d 42.

No. 97–7614. ESPINOZA *v.* TEXAS. Ct. App. Tex., 4th Dist. Certiorari denied. Reported below: 949 S. W. 2d 10.

No. 97–7635. KOSYLA *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 288 Ill. App. 3d 1102, 711 N. E. 2d 824.

No. 97–7657. HILL *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 48 M. J. 352.

No. 97–7658. MARTINEZ *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7670. GOFF *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7682. COLEMAN *v.* MILLER, GOVERNOR OF GEORGIA, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 117 F. 3d 527.

No. 97–7709. REEVIS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 150.

No. 97–7720. KIBLER *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 46 M. J. 160.

No. 97–7722. TARKOWSKI *v.* ILLINOIS DEPARTMENT OF PUBLIC AID. Sup. Ct. Ill. Certiorari denied.

No. 97–7730. LANIER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 123 F. 3d 945.

No. 97–7733. S. A. *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 129 F. 3d 995.

No. 97–7735. RESTREPO-VALENCIA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 221.

No. 97–7744. ALPHONSE *v.* UNITED STATES; and
No. 97–7820. HUGHEY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–7745. LOCKETT *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 97–7756. FITZGERALD *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 141.

No. 97–7757. GANNON *v.* COPELAND, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 146.

No. 97–7758. GUSTUS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 122 F. 3d 235.

No. 97–7759. BAIRD *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 127 F. 3d 1231.

No. 97–7771. SMITH *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 987.

No. 97–7775. SPINDLE *v.* TILLERY. C. A. 10th Cir. Certiorari denied. Reported below: 124 F. 3d 217.

No. 97–7779. BROWN *v.* UNITED STATES. Ct. App. D. C. Certiorari denied.

No. 97–7781. CALLE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 120 F. 3d 43.

No. 97–7783. IRIARTE-ORTEGA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 113 F. 3d 1022 and 127 F. 3d 1200.

No. 97–7787. WALDRIP *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 125 F. 3d 638.

No. 97–7788. WACASTER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 611.

No. 97–7789. BROWN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–7794. WOODS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 97–7795. URENA-COLLADO *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 97–7796. WARREN *v.* MARYLAND. Ct. Sp. App. Md. Certiorari denied. Reported below: 116 Md. App. 749.

No. 97–7799. QUINN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 123 F. 3d 1415.

No. 97–7800. ROGERS *v.* MCCAUGHTRY, WARDEN. Ct. App. Wis. Certiorari denied.

No. 97–7803. FIELDS *v.* UNITED STATES. Ct. App. D. C. Certiorari denied. Reported below: 698 A. 2d 485.

No. 97–7807. DAVIDSON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 124 F. 3d 213.

No. 97–7812. HILL *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1261.

No. 97–7813. JOSHUA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 1078.

No. 97–7819. BROWN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1260.

No. 97–7826. ALKAZOFF *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 97–7828. ALLEN J. *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 127 F. 3d 1292.

No. 97–7846. RHODEN *v.* WYATT ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 199.

No. 97–7852. EGGERSDORF *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 126 F. 3d 1318.

No. 97–7853. GARRETT *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 131 F. 3d 155.

No. 97–7855. HUGHES *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 127 F. 3d 1132.

No. 97–7872. GARCES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 10.

*Rehearing Denied*

No. 96–9333. CITIZEN *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION, 522 U. S. 842;

No. 97–756. BURGE ET AL. *v.* BEHR ET UX., 522 U. S. 1049;

No. 97–909. MADDOX *v.* CAPITOL BANKERS LIFE INSURANCE CO. ET AL., 522 U. S. 1091;

No. 97–1083. IN RE COLE, 522 U. S. 1088;

No. 97–6678. HARRIS *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION, 522 U. S. 1059;

No. 97–6729. HUGHES *v.* DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT ET AL., 522 U. S. 1060;

No. 97–6736. ERDMAN *v.* STEGALL, WARDEN, 522 U. S. 1079;

No. 97–6880. BEAVEN *v.* MCBRIDE, SUPERINTENDENT, WESTVILLE CORRECTIONAL FACILITY, 522 U. S. 1062; and

No. 97–6975. GRETZLER *v.* STEWART, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTION, 522 U. S. 1081. Petitions for rehearing denied.

MARCH 11, 1998

*Certiorari Denied*

No. 97–8156 (A–665). HOGUE *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE SCALIA, and by him referred to the Court, denied. Certiorari denied. JUSTICE STEVENS and JUSTICE GINSBURG would grant the application for stay of execution. Reported below: 131 F. 3d 466.

MARCH 17, 1998

*Rehearing Denied*

No. 97–7022. GRIFFIN-EL *v.* BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER, 522 U. S. 1082. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Petition for rehearing denied.

MARCH 18, 1998

*Miscellaneous Order*

No. A–695. BUCHANAN *v.* GILMORE, GOVERNOR OF VIRGINIA, ET AL. Application for stay of execution of sentence of death, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied.

MARCH 20, 1998

*Miscellaneous Order*

No. 97–679. AMERICAN TELEPHONE & TELEGRAPH CO. *v.* CENTRAL OFFICE TELEPHONE, INC. C. A. 9th Cir. [Certiorari granted, 522 U. S. 1024.] Motion of respondent to permit Ad Hoc Telecommunications Users Committee et al. to present argument as *amici curiae* denied. JUSTICE O'CONNOR took no part in the consideration or decision of this motion.

*Certiorari Denied*

No. 97–7646. JONES *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 701 So. 2d 76.

MARCH 22, 1998

*Certiorari Denied*

No. 97–8377 (A–704). STANO *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to

JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied.

MARCH 23, 1998

*Dismissal Under Rule 46*

No. 96–1925. CATERPILLAR INC. *v.* INTERNATIONAL UNION, UNITED AUTOMOBILE, AEROSPACE AND AGRICULTURAL IMPLEMENT WORKERS OF AMERICA, ET AL. C. A. 3d Cir. [Certiorari granted, 521 U. S. 1152.*] Writ of certiorari dismissed under this Court's Rule 46.1.

*Certiorari Granted—Vacated and Remanded*

No. 96–7726. LEWIS *v.* UNITED STATES. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Lewis* v. *United States*, *ante*, p. 155. Reported below: 92 F. 3d 1371.

*Certiorari Granted—Reversed.* (See No. 97–954, *ante*, p. 208.)

*Miscellaneous Orders*

No. A–691. GRIFFIN-EL *v.* BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER. Application for certificate of probable cause or, in the alternative, a certificate of appealability and stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied.

No. D–1880. IN RE DISBARMENT OF JOHNSON. Disbarment entered. [For earlier order herein, see 522 U. S. 1012.]

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*[REPORTER'S NOTE: Argued January 20, 1998. *Columbus R. Gangemi, Jr.*, argued the cause for petitioner. With him on the briefs were *Gerald C. Peterson* and *Joseph J. Torres.*

*David M. Silberman* argued the cause for respondents. With him on the brief were *Daniel W. Sherrick*, *Jordan Rossen*, and *Wendy L. Kahn.*

*Beth S. Brinkmann* argued the cause for the United States as *amicus curiae* urging affirmance. With her on the brief were *Solicitor General Waxman*, *Acting Assistant Attorney General Keeney*, *Deputy Solicitor General Dreeben*, *Marvin Krislov*, *Allen H. Feldman*, and *Edward D. Sieger.*

*James B. Coppess*, *Jonathan P. Hiatt*, and *Marsha S. Berzon* filed a brief for the American Federation of Labor and Congress of Industrial Organizations as *amicus curiae* urging affirmance.

*William J. Rodgers* and *Phillip D. Brady* filed a brief for the American Automobile Manufacturers Association as *amicus curiae.*]

No. D–1883. IN RE DISBARMENT OF FIERER. Disbarment entered. [For earlier order herein, see 522 U. S. 1013.]

No. D–1888. IN RE DISBARMENT OF MOORE. Disbarment entered. [For earlier order herein, see 522 U. S. 1026.]

No. D–1892. IN RE DISBARMENT OF PAIRO. Disbarment entered. [For earlier order herein, see 522 U. S. 1040.]

No. D–1894. IN RE DISBARMENT OF CHRISTIE. Disbarment entered. [For earlier order herein, see 522 U. S. 1040.]

No. D–1896. IN RE DISBARMENT OF BARNTHOUSE. Disbarment entered. [For earlier order herein, see 522 U. S. 1040.]

No. D–1897. IN RE DISBARMENT OF HANTMAN. Disbarment entered. [For earlier order herein, see 522 U. S. 1041.]

No. D–1898. IN RE DISBARMENT OF POREDA. Disbarment entered. [For earlier order herein, see 522 U. S. 1041.]

No. D–1899. IN RE DISBARMENT OF GAMMONS. Disbarment entered. [For earlier order herein, see 522 U. S. 1041.]

No. D–1901. IN RE DISBARMENT OF AZORSKY. Disbarment entered. [For earlier order herein, see 522 U. S. 1041.]

No. D–1902. IN RE DISBARMENT OF GARDNER. Disbarment entered. [For earlier order herein, see 522 U. S. 1041.]

No. D–1904. IN RE DISBARMENT OF QUINT. Disbarment entered. [For earlier order herein, see 522 U. S. 1041.]

No. D–1907. IN RE DISBARMENT OF ROME. Disbarment entered. [For earlier order herein, see 522 U. S. 1073.]

No. D–1919. IN RE DISBARMENT OF WHITE. Charles Henry White, Sr., of New Orleans, La., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1920. IN RE DISBARMENT OF SCHANER. Brian Keith Schaner, of Cleveland Heights, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1921. IN RE DISBARMENT OF BROWN. Robert Kenneth Brown, of Fresno, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1922. IN RE DISBARMENT OF GOLDFLAM. Stanley Z. Goldflam, of Los Angeles, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1923. IN RE DISBARMENT OF MCGOWEN. Richard Miles McGowen, of Los Altos, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1924. IN RE DISBARMENT OF MONTAGUE. James Paul Montague, of San Diego, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1925. IN RE DISBARMENT OF HINDIN. Arthur Theodore Hindin, of Beverly Hills, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. M–49. BROWN *v.* GENERAL TELEPHONE COMPANY OF CALIFORNIA; and

No. M–50. TABBYTITE *v.* MUNICIPALITY OF ANCHORAGE ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time under this Court's Rule 14.5 denied.

No. M–51. RICH *v.* BRUCE;

No. M–53. MILLER *v.* UNITED STATES; and

No. M–54. WINSETT *v.* WASHINGTON, WARDEN. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. M–52. SANCHEZ-VELASCO *v.* FLORIDA. Motion for leave to proceed *in forma pauperis* without an affidavit of indigency executed by petitioner denied.

No. 97–634. PENNSYLVANIA DEPARTMENT OF CORRECTIONS ET AL. *v.* YESKEY. C. A. 3d Cir. [Certiorari granted, 522 U. S. 1086.] Motion of Republican Caucus of Pennsylvania House of Representatives for leave to file a brief as *amicus curiae* granted.

No. 97–689. GEISSAL, BENEFICIARY AND REPRESENTATIVE OF THE ESTATE OF GEISSAL, DECEASED *v.* MOORE MEDICAL CORP. ET AL. C. A. 8th Cir. [Certiorari granted, 522 U. S. 1086.] Motion of American Association of Retired Persons for leave to file a brief as *amicus curiae* granted. Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–873. UNITED STATES *v.* BALSYS. C. A. 2d Cir. [Certiorari granted, 522 U. S. 1072.] Motion of World Jewish Congress and Holocaust Survivors et al. for leave to file a brief as *amici curiae* granted.

No. 97–7385. IN RE COOPER;
No. 97–7386. IN RE COOPER;
No. 97–7387. IN RE COOPER; and
No. 97–7388. IN RE COOPER. Motions of petitioner for leave to proceed *in forma pauperis* denied. See this Court's Rule 39.8. Petitioner is allowed until April 13, 1998, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 97–7821. HUTCHINS *v.* UNITED STATES. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until April 13, 1998, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 97–7947. IN RE RONDEAU;
No. 97–8005. IN RE KUKES;
No. 97–8009. IN RE CASTANEDA; and
No. 97–8057. IN RE BARRETT. Petitions for writs of habeas corpus denied.

No. 97–8376 (A–702). IN RE GRIFFIN-EL. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

No. 97–8388 (A–705). IN RE JONES. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

No. 97–969. IN RE SAI;
No. 97–7512. IN RE ALSTON; and
No. 97–7542. IN RE PATZLAFF. Petitions for writs of mandamus denied.

No. 97–7731. IN RE JOHNSON. Petition for writ of mandamus and/or prohibition denied.

No. 97–8401 (A–708). IN RE JONES. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Petition for writ of mandamus and/or prohibition denied.

No. 97–7572. IN RE SPRINGER. Petition for writ of prohibition denied.

*Certiorari Granted*

No. 97–1056. MARQUEZ *v.* SCREEN ACTORS GUILD, INC., ET AL. C. A. 9th Cir. Certiorari granted. Reported below: 124 F. 3d 1034.

No. 96–1570. NYNEX CORP. ET AL. *v.* DISCON, INC. C. A. 2d Cir. Motions of Association of the Bar of the City of New York and Consumer Electronics Manufacturers Association for leave to file briefs as *amici curiae* granted. Certiorari granted. Reported below: 93 F. 3d 1055.

No. 97–7597. KNOWLES *v.* IOWA. Sup. Ct. Iowa. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted. Reported below: 569 N. W. 2d 601.

No. 97–7213. MOSLEY *v.* UNITED STATES. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted limited to Question 1 presented by the petition. Reported below: 126 F. 3d 200.

*Certiorari Denied*

No. 97–872. ROBERSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 97–878. CITY OF BIRMINGHAM *v.* MORRO. C. A. 11th Cir. Certiorari denied. Reported below: 117 F. 3d 508.

No. 97–952. PACE INDUSTRIES, INC., DBA PRECISION INDUSTRIES, INC., ET AL. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. 8th Cir. Certiorari denied. Reported below: 118 F. 3d 585.

No. 97–977. DIAMOND WALNUT GROWERS, INC. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. D. C. Cir. Certiorari denied. Reported below: 113 F. 3d 1259.

No. 97–982. GARNER ET UX. *v.* FEDERAL DEPOSIT INSURANCE CORPORATION. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 1272.

No. 97–990. RILEY *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 118 F. 3d 1220.

No. 97–993. FLORIDA *v.* SMITH. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 629.

No. 97–999. SOFTEL, INC. *v.* DRAGON MEDICAL & SCIENTIFIC COMMUNICATIONS, INC., ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 118 F. 3d 955.

No. 97–1005. DOYLE ET VIR *v.* VOLKSWAGEN OF AMERICA, INC., ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 114 F. 3d 1134.

No. 97–1006. CHURCH OF SCIENTOLOGY INTERNATIONAL ET AL. *v.* CULT AWARENESS NETWORK. Sup. Ct. Ill. Certiorari denied. Reported below: 177 Ill. 2d 267, 685 N. E. 2d 1347.

No. 97–1012. COUPE *v.* FEDERAL EXPRESS CORP. C. A. 6th Cir. Certiorari denied. Reported below: 121 F. 3d 1022.

No. 97–1018. MITCHELL ET VIR *v.* COLLAGEN CORP. C. A. 7th Cir. Certiorari denied. Reported below: 126 F. 3d 902.

No. 97–1032. MEEHAN SEAWAY SERVICE CO. ET AL. *v.* DIRECTOR, OFFICE OF WORKERS' COMPENSATION PROGRAMS, DEPARTMENT OF LABOR, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 125 F. 3d 1163.

No. 97–1035. 440 CO. *v.* BOROUGH OF FORT LEE, NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 129 F. 3d 1254.

No. 97–1039. MERRITT ET UX. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 716.

No. 97–1041. SMITH ET VIR *v.* MARYLAND NATIONAL CAPITAL PARK AND PLANNING COMMISSION ET AL. Ct. Sp. App. Md. Certiorari denied. Reported below: 115 Md. App. 750.

No. 97–1128. AMERICA WEST AIRLINES, INC. *v.* NATIONAL MEDIATION BOARD ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 119 F. 3d 772.

No. 97–1149. NATIONAL SHIPPING COMPANY OF SAUDI ARABIA *v.* MORAN TRADE CORPORATION OF DELAWARE ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1062.

No. 97–1171. ODDINO *v.* ODDINO ET AL. Sup. Ct. Cal. Certiorari denied. Reported below: 16 Cal. 4th 67, 939 P. 2d 1266.

No. 97–1173. BATES ET AL. *v.* JONES, SECRETARY OF STATE OF CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 843.

No. 97–1175. ENTERTAINMENT RESEARCH GROUP, INC. *v.* GENESIS CREATIVE GROUP, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1211.

No. 97–1183. DOVE VALLEY BUSINESS PARK ASSOCIATES, LTD., ET AL. *v.* BOARD OF COUNTY COMMISSIONERS OF ARAPAHOE COUNTY, COLORADO, ET AL. Sup. Ct. Colo. Certiorari denied. Reported below: 945 P. 2d 395.

No. 97–1188. ELLIOTT ET AL. *v.* UNITED CENTER, A JOINT VENTURE FKA METRO-CHICAGO SPORTS STADIUM JOINT VENTURE. C. A. 7th Cir. Certiorari denied. Reported below: 126 F. 3d 1003.

No. 97–1189. SMANIA *v.* FLORIDA BAR. Sup. Ct. Fla. Certiorari denied. Reported below: 701 So. 2d 835.

No. 97–1190. YOSHISATO *v.* CALIFORNIA. Ct. App. Cal., 4th App. Dist. Certiorari denied.

No. 97–1196. BURGESS *v.* LOGAN ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1070.

No. 97–1200. WHERRY *v.* IOWA SUPREME COURT BOARD OF PROFESSIONAL ETHICS AND CONDUCT. Sup. Ct. Iowa. Certiorari denied. Reported below: 569 N. W. 2d 822.

No. 97–1207. MILLET *v.* WOODWARD ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–1208. MAKAREWICZ ET AL. *v.* AMERICAN EXPRESS FINANCIAL ADVISORS, INC., ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 936.

No. 97–1211. WILLIAMS *v.* YELLOW FREIGHT SYSTEMS, INC., ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 115.

No. 97–1212. WEBSTER *v.* BERT BELL/PETE ROZELLE NFL PLAYER RETIREMENT PLAN ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 607.

No. 97–1213. JENKINS *v.* HEINTZ ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 124 F. 3d 824.

No. 97–1214. CHRISTIAN *v.* ST. ANTHONY'S MEDICAL CENTER. C. A. 7th Cir. Certiorari denied. Reported below: 117 F. 3d 1051.

No. 97–1219. TORBECK ET AL. *v.* BOZZO ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 700.

No. 97–1223. TOWNSHIP OF NORTH BERGEN *v.* NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–1226. HEWLETT-PACKARD CO. *v.* REPEAT-O-TYPE STENCIL MANUFACTURING CORP., INC., ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 123 F. 3d 1445.

No. 97–1231. TREECE *v.* LYONS TOWNSHIP HIGH SCHOOL ET AL. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 229 Ill. App. 3d 1107, 648 N. E. 2d 632.

No. 97–1232. MCDANIEL *v.* APPRAISAL INSTITUTE. C. A. 9th Cir. Certiorari denied. Reported below: 117 F. 3d 421 and 127 F. 3d 1135.

No. 97–1233. PAUL ET AL. *v.* LEVY ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1073.

No. 97–1238. BOURGEOIS *v.* AVONDALE SHIPYARDS, INC. C. A. 5th Cir. Certiorari denied. Reported below: 121 F. 3d 219.

No. 97–1240. BERNER *v.* DELAHANTY, JUDGE, SUPERIOR COURT OF MAINE. C. A. 1st Cir. Certiorari denied. Reported below: 129 F. 3d 20.

No. 97–1251. AGAN *v.* VAUGHN, WARDEN. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 1538.

No. 97–1255. SMITH *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 127 F. 3d 35.

No. 97–1257. POLYAK *v.* HOADLEY ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 221.

No. 97–1258. SIMEON ET AL. *v.* HARDIN, DISTRICT ATTORNEY FOR THE FOURTEENTH JUDICIAL DISTRICT. Ct. App. N. C. Certiorari denied. Reported below: 126 N. C. App. 831, 488 S. E. 2d 854.

No. 97–1260. CLEMENTS *v.* BABCOCK & WILCOX CO. ET AL. Sup. Ct. Va. Certiorari denied.

No. 97–1261. NORTHEN *v.* CITY OF CHICAGO ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 126 F. 3d 1024.

No. 97–1273. MILLET *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 123 F. 3d 268.

No. 97–1276. JONES *v.* FEDERAL COMMUNICATIONS COMMISSION. C. A. D. C. Cir. Certiorari denied.

No. 97–1279. BROWN *v.* IVES ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 129 F. 3d 209.

No. 97–1290. VELEZ *v.* STALDER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 97–1293. TAHA *v.* PORTLAND TAXI CAB CO. ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 127.

No. 97–1309. GILCHRIST *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 130 F. 3d 1131.

No. 97–1313. DAVIS *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied. Reported below: 957 S. W. 2d 9.

No. 97–1314. DALEY ET AL. *v.* COMMISSIONER, DEPARTMENT OF MARINE RESOURCES OF MAINE. Sup. Jud. Ct. Me. Certiorari denied. Reported below: 698 A. 2d 1053.

No. 97–1326. O'STEEN *v.* CSX TRANSPORTATION, INC. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 40.

No. 97–1330. KING *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 126 F. 3d 394.

No. 97–1334. PICKREL ET AL. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 149.

No. 97–1335. SCOTT *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 108 F. 3d 1380.

No. 97–1339. BUCHBINDER *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 9th Cir. Certiorari denied.

No. 97–1352. CHAUDHURI *v.* TENNESSEE ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 130 F. 3d 232.

No. 97–1373. LLOYD *v.* LEVINE, ASSISTANT UNITED STATES ATTORNEY, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 127 F. 3d 1095.

No. 97–1383. ROE *v.* BUTTERWORTH, ATTORNEY GENERAL OF FLORIDA. C. A. 11th Cir. Certiorari denied. Reported below: 129 F. 3d 1221.

No. 97–5089. BARNES *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 345 N. C. 184, 481 S. E. 2d 44.

No. 97–5269. SANIN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 113 F. 3d 1230.

No. 97–5388. MARINELLI *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 547 Pa. 294, 690 A. 2d 203.

No. 97–5829. GREEN ET AL. *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 115 F. 3d 1479.

No. 97–6126. HELM *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 106 F. 3d 411.

No. 97–6207. BELLAMY *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 116 F. 3d 1066.

No. 97–6568. SEGIEN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 114 F. 3d 1014.

No. 97–6797. RUDD *v.* FORREST ET AL. C. A. 5th Cir. Certiorari denied.

No. 97–6863. ROMERO *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 122 F. 3d 1334.

No. 97–6886. JUVENILE A *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 125 F. 3d 852.

No. 97–7065. HORNE *v.* CROZIER ET AL. Sup. Ct. S. D. Certiorari denied. Reported below: 565 N. W. 2d 50.

No. 97–7117. SCOTT *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 15 Cal. 4th 1188, 939 P. 2d 354.

No. 97–7193. FRALEY *v.* DEPARTMENT OF JUSTICE ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 113 F. 3d 1234.

No. 97–7448. ROCHON *v.* CAIN, WARDEN, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 367.

No. 97–7452. CRAIG *v.* UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF NORTH CAROLINA. C. A. 4th Cir. Certiorari denied. Reported below: 127 F. 3d 1099.

No. 97–7458. ROBERTS *v.* DISTRICT COURT OF NEVADA, CLARK COUNTY, ET AL. (two judgments). Sup. Ct. Nev. Certiorari denied. Reported below: 113 Nev. 1645, 970 P. 2d 1126.

No. 97–7459. RIDDLE *v.* CITY OF PALMDALE, CALIFORNIA, ET AL. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7467. COLEMAN *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 97–7474. NOVOSAD *v.* NEW MEXICO BOARD OF PHARMACY ET AL. Sup. Ct. N. M. Certiorari denied.

No. 97–7475. LAMBRIGHT *v.* UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT. C. A. 4th Cir. Certiorari denied. Reported below: 127 F. 3d 1099.

No. 97–7476. JOHNSON *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 97–7480. PEDROSO *v.* CAIN, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 97–7484. MILIAN *v.* FLORIDA. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 688 So. 2d 944.

No. 97–7485. BROWN *v.* FLORIDA. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 221.

No. 97–7487. BLACKSHAW *v.* OHIO. Ct. App. Ohio, Cuyahoga County. Certiorari denied.

No. 97–7489. KARAGIANES *v.* KARAGIANES ET AL. Sup. Ct. Haw. Certiorari denied. Reported below: 84 Haw. 499, 936 P. 2d 194.

No. 97–7493. HALL *v.* SHELBY COUNTY GOVERNMENT ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 197.

No. 97–7500. HARMON *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 97–7504. HOWARD *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7505. DAVIS *v.* DUBOIS, COMMISSIONER, MASSACHUSETTS DEPARTMENT OF CORRECTION, ET AL. C. A. 1st Cir. Certiorari denied.

No. 97–7506. GOMEZ *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 97–7513. DECKER *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7515. TEFFETELLER *v.* GRIMES, CHIEF JUSTICE, SUPREME COURT OF FLORIDA, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 121 F. 3d 722.

No. 97–7520. AL-AMIN *v.* SEITER, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 97–7522. BANKS *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 700 So. 2d 363.

No. 97–7526. WILLIAMS *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 16 Cal. 4th 635, 941 P. 2d 752.

No. 97–7531. OWEN-WILLIAMS *v.* MERRILL LYNCH, PIERCE, FENNER & SMITH INC. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–7533. ANZOATEGUI ET AL. *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7535. BANDRUP *v.* CALIFORNIA. Ct. App. Cal., 4th App. Dist. Certiorari denied.

No. 97–7536. CARTWRIGHT *v.* MICHIGAN. Recorder's Court, City of Detroit, Mich. Certiorari denied.

No. 97–7537. CUNNINGHAM *v.* KITZHABER, GOVERNOR OF OREGON. Sup. Ct. Ore. Certiorari denied.

No. 97–7543. PATZLAFF *v.* E. STEEVES SMITH, P. C. Sup. Ct. S. D. Certiorari denied.

No. 97–7547. RAMOS *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 15 Cal. 4th 1133, 938 P. 2d 950.

No. 97–7552. WEST *v.* FARBER. Ct. Civ. App. Okla. Certiorari denied.

No. 97–7553. VENTIMIGLIA *v.* WATTER ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 719.

No. 97–7560. SPREITZ *v.* ARIZONA. Sup. Ct. Ariz. Certiorari denied. Reported below: 190 Ariz. 129, 945 P. 2d 1260.

No. 97–7565. OIMEN *v.* MCCAUGHTRY, WARDEN, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 130 F. 3d 809.

No. 97–7568. SHAW *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7569. PRESTON *v.* BRADLEY ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 199.

No. 97–7570. BROWN *v.* INDIANA. Ct. App. Ind. Certiorari denied. Reported below: 684 N. E. 2d 529.

No. 97–7576. KIMBROUGH *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 700 So. 2d 634.

No. 97–7577. BRODEUR *v.* CITY OF NEW YORK ET AL. C. A. 2d Cir. Certiorari denied.

No. 97–7582. VILLARREAL *v.* FLORIDA DEPARTMENT OF CORRECTIONS ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 129 F. 3d 615.

No. 97–7583. WHITAKER *v.* WHITAKER ET AL. Ct. App. Tenn. Certiorari denied. Reported below: 957 S. W. 2d 834.

No. 97–7584. JACKSON *v.* LEWIS ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 47.

No. 97–7585. BOUFFORD *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 699 So. 2d 1045.

No. 97–7587. WILKINSON *v.* SUMNER, MAGISTRATE JUDGE, UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF MISSISSIPPI. C. A. D. C. Cir. Certiorari denied.

No. 97–7591. SMALLEY *v.* FEDERAL BUREAU OF PRISONS ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 611.

No. 97–7595. BENIGNI *v.* COWLES MEDIA CO. ET AL. Ct. App. Minn. Certiorari denied.

No. 97–7601. HENRY *v.* ARIZONA. Sup. Ct. Ariz. Certiorari denied. Reported below: 189 Ariz. 542, 944 P. 2d 57.

No. 97–7604. GOODEN *v.* ARKANSAS. Sup. Ct. Ark. Certiorari denied. Reported below: 329 Ark. 485, 950 S. W. 2d 461.

No. 97–7605. GREEN *v.* ROE, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 146.

No. 97–7608. FLANAGAN ET UX. *v.* WELLS FARGO BANK ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 124 F. 3d 211.

No. 97–7609. GRAY *v.* WHITE, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 97–7613. ENGLISH *v.* PAGE, WARDEN. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 36.

No. 97–7616. MacKenzie *v.* Owens et al. Sup. Ct. Okla. Certiorari denied.

No. 97–7617. Jenkins *v.* Georgia. Sup. Ct. Ga. Certiorari denied. Reported below: 268 Ga. 468, 491 S. E. 2d 54.

No. 97–7626. Washington *v.* Diesslin, Western Regional Director, Colorado Department of Corrections, et al. C. A. 10th Cir. Certiorari denied.

No. 97–7629. Agadaga *v.* Immigration and Naturalization Service. C. A. 9th Cir. Certiorari denied. Reported below: 116 F. 3d 482.

No. 97–7641. Cothren *v.* Alabama. Sup. Ct. Ala. Certiorari denied. Reported below: 705 So. 2d 861.

No. 97–7648. King *v.* Johnson, Director, Texas Department of Criminal Justice, Institutional Division, et al. C. A. 5th Cir. Certiorari denied. Reported below: 124 F. 3d 194.

No. 97–7650. Spann *v.* Illinois. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 286 Ill. App. 3d 1125, 709 N. E. 2d 1012.

No. 97–7652. Schwarz *v.* Woodruff, Inc. Sup. Ct. Utah. Certiorari denied.

No. 97–7659. Gasero *v.* Johnson, Director, Texas Department of Criminal Justice, Institutional Division. C. A. 5th Cir. Certiorari denied.

No. 97–7664. Palmer *v.* Mazurkiewicz, Superintendent, State Correctional Institution at Rockview, et al. C. A. 3d Cir. Certiorari denied.

No. 97–7692. Henry *v.* Illinois. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 288 Ill. App. 3d 1121, 711 N. E. 2d 832.

No. 97–7695. Altimus *v.* Department of Defense et al. C. A. D. C. Cir. Certiorari denied.

No. 97–7704. Wallace *v.* Shalala, Secretary of Health and Human Services. C. A. 4th Cir. Certiorari denied. Reported below: 112 F. 3d 512.

No. 97–7707. YOUNG *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–7708. STOWE *v.* DALTON, SECRETARY OF THE NAVY. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 148.

No. 97–7710. CHRISTY *v.* FEDERAL BUREAU OF INVESTIGATION. C. A. D. C. Cir. Certiorari denied.

No. 97–7736. COLLINS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 37.

No. 97–7748. GRIFFIN *v.* CHARLOTTE MEMORIAL HOSPITAL AND MEDICAL CENTER ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 698.

No. 97–7770. PATTERSON *v.* MERIT SYSTEMS PROTECTION BOARD. C. A. Fed. Cir. Certiorari denied. Reported below: 121 F. 3d 728.

No. 97–7773. LOGAN *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7792. BREWER *v.* SOUTHERN PILOT INSURANCE CO., INC. C. A. 5th Cir. Certiorari denied. Reported below: 125 F. 3d 852.

No. 97–7798. SNIDER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 1392.

No. 97–7809. HARTSELL ET AL. *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 127 F. 3d 343.

No. 97–7818. SCHERZER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1108.

No. 97–7823. MANNING *v.* UNITED STATES ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 135 F. 3d 144.

No. 97–7824. ANDERSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 97–7827. BAKER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1454.

No. 97–7830. MINNIECHESKE *v.* WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 212 Wis. 2d 645, 570 N. W. 2d 64.

No. 97–7832. JONES *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 133 F. 3d 911.

No. 97–7834. NORMAN T. *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 1099.

No. 97–7838. PHILLIPS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 129 F. 3d 615.

No. 97–7839. STORY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 150.

No. 97–7845. PORTER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 131.

No. 97–7848. HEATON *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 46 M. J. 175.

No. 97–7851. GRAY *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 347 N. C. 143, 491 S. E. 2d 538.

No. 97–7854. HOGAN *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 133 F. 3d 911.

No. 97–7858. CRAIG *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 1030.

No. 97–7860. WEAVER *v.* SCHOOL BOARD OF LEON COUNTY, FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 1377.

No. 97–7870. HURST *v.* NORTH CAROLINA. Ct. App. N. C. Certiorari denied. Reported below: 127 N. C. App. 54, 487 S. E. 2d 846.

No. 97–7871. DALY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 767.

No. 97–7879. WESTMORELAND *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 130 F. 3d 765.

No. 97–7883. DeWig *v.* Stewart, Director, Arizona Department of Correction, et al. C. A. 9th Cir. Certiorari denied.

No. 97–7886. Nimrod *v.* United States. C. A. 8th Cir. Certiorari denied. Reported below: 122 F. 3d 660.

No. 97–7897. Taylor *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 613.

No. 97–7899. Antonio Lujan *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1455.

No. 97–7900. Moore *v.* United States. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1261.

No. 97–7903. Hochschild *v.* United States. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1266.

No. 97–7905. Francis *v.* United States. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 137.

No. 97–7906. Gonzalez *v.* DeTella, Warden. C. A. 7th Cir. Certiorari denied. Reported below: 127 F. 3d 619.

No. 97–7909. Donovan *v.* Strack, Superintendent, Fishkill Correctional Facility. C. A. 2d Cir. Certiorari denied.

No. 97–7910. Gallardo *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 97–7911. Escobar-Venzor *v.* United States. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 131.

No. 97–7914. Garcia-Rosell *v.* United States. C. A. 9th Cir. Certiorari denied.

No. 97–7917. Herrera *v.* United States. C. A. 7th Cir. Certiorari denied. Reported below: 108 F. 3d 1379.

No. 97–7918. Ortega Ramirez *v.* United States. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 114.

No. 97–7919. Richmond *v.* United States. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1266.

No. 97–7922. Larry *v.* United States. C. A. 6th Cir. Certiorari denied. Reported below: 134 F. 3d 372.

No. 97–7923. McDermott *v.* United States. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 859.

No. 97–7925. Johnson *v.* United States. C. A. 3d Cir. Certiorari denied. Reported below: 133 F. 3d 911.

No. 97–7927. Mills *v.* California. Ct. App. Cal., 4th App. Dist. Certiorari denied.

No. 97–7929. Anderson *v.* United States. C. A. 4th Cir. Certiorari denied. Reported below: 125 F. 3d 849.

No. 97–7932. Bahe *v.* United States. C. A. 10th Cir. Certiorari denied. Reported below: 128 F. 3d 1440.

No. 97–7933. Black *v.* United States. C. A. 7th Cir. Certiorari denied. Reported below: 125 F. 3d 454.

No. 97–7934. Torres-Montalvo et al. *v.* United States. C. A. 3d Cir. Certiorari denied. Reported below: 121 F. 3d 841.

No. 97–7938. Pappadopoulos *v.* United States. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 860.

No. 97–7939. Reyna *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 130 F. 3d 104.

No. 97–7941. Calderon *v.* United States; and
No. 97–7942. Caderno *v.* United States. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 1314.

No. 97–7943. Coleman *v.* United States. C. A. 10th Cir. Certiorari denied. Reported below: 125 F. 3d 863.

No. 97–7944. Manson *v.* United States. C. A. 11th Cir. Certiorari denied. Reported below: 131 F. 3d 154.

No. 97–7949. Soumphonphankdy *v.* United States. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 153.

No. 97–7950. Smith *v.* United States. C. A. 8th Cir. Certiorari denied. Reported below: 122 F. 3d 531.

No. 97–7951. Newman *v.* United States. C. A. 7th Cir. Certiorari denied. Reported below: 129 F. 3d 1268.

No. 97–7952. Rubio-Barrero *v.* United States. C. A. 8th Cir. Certiorari denied.

No. 97–7954. WILLIAMS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1454.

No. 97–7955. TINDER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 611.

No. 97–7957. MCINTOSH *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 289 Ill. App. 3d 1134, 713 N. E. 2d 831.

No. 97–7963. ANCHICO-MOSQUERA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 1299.

No. 97–7967. BRUCE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 131 F. 3d 144.

No. 97–7971. GROSS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 200.

No. 97–7972. DESDUNE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 114.

No. 97–7974. MOORE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 134 F. 3d 374.

No. 97–7975. DIAZ SANCHEZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 44.

No. 97–7980. GONZALES, AKA GONZALEZ-JIMENEZ *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 112 F. 3d 506.

No. 97–7981. HICKS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 131 F. 3d 154.

No. 97–7982. DAVIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1454.

No. 97–7984. GONZALEZ-DIAZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 128.

No. 97–7987. EVERETTE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 131 F. 3d 156.

No. 97–7992. AHRENS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 130 F. 3d 297.

No. 97–7994. ROCHELLE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 150.

No. 97–7995. SCIARROTTA *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 34.

No. 97–8001. KNIBBS, AKA BOUGLE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 137.

No. 97–8003. FITZEN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 134 F. 3d 380.

No. 97–8004. MORA-MEDRANO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1455.

No. 97–8008. CARRILLO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 140.

No. 97–8010. AQUILAR-AVELLAVEDA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 131 F. 3d 154.

No. 97–8012. BETEMIT *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–8018. WACKER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 153.

No. 97–8021. SMITH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 150.

No. 97–8022. BERGER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 149.

No. 97–8024. CAIN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 130 F. 3d 381.

No. 97–8039. GRAVENS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 129 F. 3d 974.

No. 97–8040. HICKMAN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1260.

No. 97–8041. GONZALEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 149.

No. 97–8044. GUTIERREZ-DANIEZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 939.

No. 97–8045. HERNANDEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 859.

No. 97–8050. MOUDY *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 618.

No. 97–8052. BUTLER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 110 F. 3d 63.

No. 97–8053. CERCEO *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1063.

No. 97–8062. SMITH *v.* UNITED STATES; and
No. 97–8081. BYNES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 45.

No. 97–8064. MCGEE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 45.

No. 97–8065. WALKER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 1298.

No. 97–8066. TOMPKINS, AKA YATES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 130 F. 3d 117.

No. 97–8070. HOYLE ET AL. *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. Reported below: 122 F. 3d 48.

No. 97–8080. ANDERSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 45.

No. 97–8088. DOMINGUEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1454.

No. 97–8089. GERARD *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 129 F. 3d 119.

No. 97–715. GUERRA *v.* CARLO. C. A. 9th Cir. Motion of Criminal Justice Legal Foundation for leave to file a brief as *amicus curiae* granted. Certiorari denied. Reported below: 105 F. 3d 493.

No. 97–934. VOINOVICH, GOVERNOR OF OHIO, ET AL. *v.* WOMEN'S MEDICAL PROFESSIONAL CORP. ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 130 F. 3d 187.

JUSTICE THOMAS, with whom THE CHIEF JUSTICE and JUSTICE SCALIA join, dissenting.

In 1995, the Ohio General Assembly passed, by an overwhelming majority, House Bill 135, which, among other things, places certain restrictions on abortions after fetal viability. To that end, it provides that—

> "(A) No person shall purposely perform or induce or attempt to perform or induce an abortion upon a pregnant woman if the unborn human is viable, unless . . .
>
> "(1) The abortion is performed or induced or attempted to be performed or induced by a physician, and that physician determines, in good faith and in the exercise of reasonable medical judgment, that the abortion is necessary to prevent the death of the pregnant woman or a serious risk of the substantial and irreversible impairment of a major bodily function of the pregnant woman." Ohio Rev. Code Ann. § 2919.17 (1996).

The District Court enjoined the law as unconstitutional on its face, and a divided panel of the United States Court of Appeals for the Sixth Circuit affirmed. 130 F. 3d 187 (1997). The panel majority held that the statute's limitation of postviability abortions is unconstitutionally vague and that it impermissibly lacks an exception for abortions based upon the "mental health" of the mother. Both of these conclusions are unwarranted extensions of our precedents. Moreover, reflecting our recent reaffirmation of the principle that a State's interests in restricting abortions are at their strongest after viability, see *Planned Parenthood of Southeastern Pa.* v. *Casey*, 505 U. S. 833, 879 (1992) (joint opinion of O'CONNOR, KENNEDY, and SOUTER, JJ.), over three-quarters of the States have in place statutes limiting the reasons for which abortions may be performed late in pregnancy. The vast majority of those statutes do not contain an explicit mental health exception. I would therefore grant the State's petition for certiorari to decide the constitutionality of House Bill 135's postviability restrictions.

The panel majority first found unconstitutional the Ohio statute's requirement that a physician's determination of medical necessity be made "in good faith and in the exercise of reasonable

medical judgment." Ohio Rev. Code Ann. § 2919.17(A)(1) (1996).* Relying on our decision in *Colautti* v. *Franklin*, 439 U. S. 379 (1979), the panel held that the "combination of . . . objective and subjective standards without a scienter requirement" renders the medical necessity exception "unconstitutionally vague." 130 F. 3d, at 205. The panel explained that the statute does not "adequately notify a physician that certain conduct is prohibited; rather, a physician may be held criminally and civilly liable for adhering to his or her own best medical judgment." *Id.*, at 206.

This holding is simply not supported by *Colautti*. The statute in that case required physicians to adhere to a standard of care calculated to preserve the life and health of the fetus if the physician determined that "the fetus is viable" or "*if there is sufficient reason to believe* that the fetus may be viable." 439 U. S., at 391 (emphasis added; internal quotation marks omitted). Our conclusion that this formulation was void for vagueness in no way suggests that the Ohio statute's more specific language—"in good faith and in the exercise of reasonable medical judgment"—is unconstitutionally vague. The statutory language in *Colautti* was ambiguous because it could be read as imposing either a purely subjective or a mixed subjective and objective mental requirement, thereby leaving physicians uncertain of the relevant legal standard. *Id.*, at 391–394. House Bill 135, by contrast, plainly imposes both a subjective and an objective mental requirement, and thus its commands are clear.

The panel majority appears to have been concerned not so much with vagueness, but rather with the statute's lack of a scienter requirement relating to physician determinations about the medical necessity of an abortion. See 130 F. 3d, at 205 (stating that the statute was "especially troublesome" for this reason). Yet as the majority opinion implicitly recognized, see *id.*, at 204–205, we have never held that, in the abortion context, a scienter requirement is mandated by the Constitution. To the contrary, in *Colautti* itself, we explicitly declined to address whether "under a properly drafted statute, a finding of bad faith or some other type of scienter would be required before a physician could be held

*If a physician makes such a determination, he must then comply with certain certification requirements, unless he determines, also "in good faith and in the exercise of reasonable medical judgment," that a medical emergency prevents compliance. See Ohio Rev. Code Ann. § 2919.17(B)(2) (1996). The panel majority found this requirement unconstitutional as well.

criminally responsible for an erroneous determination of viability." 439 U. S., at 396. We only stated that the vagueness of the statute at issue was "compounded" by the fact that it lacked a scienter requirement. *Id.*, at 394; cf. 130 F. 3d, at 216 (Boggs, J., dissenting) ("[T]he principle invoked by the Court in *Colautti* . . . is . . . not that the absence of a scienter requirement will 'create' vagueness where it does not otherwise exist"). This Court should grant certiorari rather than allow a constitutional scienter requirement to be imposed under the guise of the void-for-vagueness doctrine.

The panel majority similarly wrenched this Court's prior statements out of context in finding the statute's lack of a mental health exception constitutionally infirm. The panel majority stated that the question whether a maternal health exception may constitutionally be limited to physical health depends upon what we meant in *Casey* by abortions "'necessary, in appropriate medical judgment, for the preservation of the life or health of the mother.'" 130 F. 3d, at 208 (quoting *Planned Parenthood of Southeastern Pa.* v. *Casey*, *supra*, at 879). To answer this question, however, the panel relied on our conclusion in *Doe* v. *Bolton*, 410 U. S. 179 (1973), that an exception in Georgia's abortion statute for abortions performed when a physician determined, "'based upon his best clinical judgment[,] [that] an abortion [was] necessary,'" *id.*, at 183, was not unconstitutionally vague because the phrase had been construed to allow physicians to consider "'all factors—physical, *emotional*, *psychological*, familial, and the woman's age—relevant to the well-being of the patient,'" *id.*, at 192 (emphasis added). Our conclusion that the statutory phrase at issue in *Doe* was not vague because it included emotional and psychological considerations in no way supports the proposition that, after viability, a mental health exception *is required as a matter of federal constitutional law.* *Doe* simply did not address that question. As with its void-for-vagueness holding, the panel majority's quarrel with the wishes of the Ohio Legislature on this score appears to be grounded in abortion policy, not constitutional law.

The decision below, moreover, may do more than thwart the will of the Ohio Legislature. The vast majority of the 38 States that have enacted postviability abortion restrictions have not specified whether such abortions must be permitted on mental health grounds. See Brief for A Majority of Members of the

Ohio General Assembly as *Amicus Curiae* 3–4. If the decision below stands, it is likely to create needless uncertainty about the constitutionality of many of those statutes as well. When state statutes on matters of significant public concern have been declared unconstitutional, we have not hesitated to review the decisions in question, even in the absence of a circuit split. See, *e. g.*, *Romer* v. *Evans*, 517 U. S. 620 (1996). This case presents not only this compelling reason for certiorari, but also the ground that our failure to review the decision below may cast unnecessary doubt on the validity of other state statutes. I would grant the State's petition.

No. 97–998. UNITED STATES EX REL. RABUSHKA ET AL. *v.* CRANE CO. C. A. 8th Cir. Motion of Taxpayers Against Fraud et al. for leave to file a brief as *amici curiae* granted. Certiorari denied. Reported below: 122 F. 3d 559.

No. 97–1148. AMERISOURCE CORP. ET AL. *v.* HJB, INC., ET AL.; and

No. 97–1152. ABBOTT LABORATORIES ET AL. *v.* HJB, INC., ET AL. C. A. 7th Cir. Certiorari denied. JUSTICE O'CONNOR took no part in the consideration or decision of these petitions. Reported below: 123 F. 3d 599.

No. 97–1177. E. J. CO. ET AL. *v.* SANDVIK AKTIEBOLAG. C. A. Fed. Cir. Motion of Tool Crib, Inc., for leave to file a brief as *amicus curiae* granted. Certiorari denied. Reported below: 121 F. 3d 669.

No. 97–1202. FLORIDA *v.* FRANQUI. Sup. Ct. Fla. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 699 So. 2d 1332.

No. 97–1203. FLORIDA *v.* FRANQUI. Sup. Ct. Fla. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 699 So. 2d 1312.

No. 97–8389 (A–706). JONES *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied. Reported below: 709 So. 2d 512.

No. 97–8392 (A–707). JONES *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to

JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied. Reported below: 717 So. 2d 533.

No. 97–8412 (A–711). JONES *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied. Reported below: 717 So. 2d 533.

No. 97–8413 (A–712). JONES *v.* CROSBY, SUPERINTENDENT, FLORIDA STATE PRISON, ET AL. C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied. Reported below: 137 F. 3d 1279.

*Rehearing Denied*

No. 96–8926. CARSON *v.* CHARTER MEDICAL, 522 U. S. 827;

No. 97–365. BRANDT *v.* SHOP 'N SAVE WAREHOUSE FOODS, INC., 522 U. S. 1075;

No. 97–404. FISHER *v.* VASSAR COLLEGE, 522 U. S. 1075;

No. 97–499. FELTMANN *v.* SIEBEN, INC., DBA PLAZA MOTORS, 522 U. S. 1075;

No. 97–602. BANKS *v.* UNITED STATES, 522 U. S. 1075;

No. 97–817. MARTIN *v.* GOODYEAR AUTO SERVICE CENTER, 522 U. S. 1077;

No. 97–5757. GRAVETTE *v.* UNITED STATES, 522 U. S. 999;

No. 97–5823. JORDAN *v.* UNITED STATES, 522 U. S. 923;

No. 97–6082. GAITHER *v.* FRENCH, WARDEN, 522 U. S. 1053;

No. 97–6277. MONROE *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION, 522 U. S. 1003;

No. 97–6472. MOORE *v.* ANDERSON, SUPERINTENDENT, MISSISSIPPI STATE PENITENTIARY, ET AL., 522 U. S. 1078;

No. 97–6486. RODRIGUEZ *v.* WATTS ET AL., 522 U. S. 1032;

No. 97–6567. AKPAETI *v.* FLORIDA DISTRICT COURT OF APPEAL, THIRD DISTRICT; and AKPAETI *v.* TERRANOVA CORP., 522 U. S. 1092;

No. 97–6626. POOLE *v.* WHITEHURST ET AL., 522 U. S. 1057;

No. 97–6682. DENNEY *v.* JONES, 522 U. S. 1059;

No. 97–6696. SIMMONS *v.* GTE NORTH, INC., ET AL., 522 U. S. 1059;

No. 97–6701. VICENTE-GUZMAN *v.* IMMIGRATION AND NATURALIZATION SERVICE, 522 U. S. 1059;

No. 97–6724. CEDILLO *v.* UNITED STATES, 522 U. S. 1060;

No. 97–6762. AKPAETI *v.* KENTUCKY, 522 U. S. 1080;

No. 97–6773. PORTER *v.* GILMORE, WARDEN, 522 U. S. 1093;

No. 97–6792. MCCOY *v.* UNITED STATES, 522 U. S. 1035;

No. 97–6837. TYLER *v.* SCOTT, FORMER DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION, ET AL., 522 U. S. 1093;

No. 97–6842. BANOS *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION, 522 U. S. 1093;

No. 97–6894. DARNE *v.* WEBER, 522 U. S. 1094;

No. 97–7020. SOLIS *v.* UNITED STATES, 522 U. S. 1082;

No. 97–7028. DARNE *v.* WISCONSIN ET AL., 522 U. S. 1096;

No. 97–7055. PALMER *v.* CIRCUIT COURT OF ILLINOIS, COOK COUNTY, 522 U. S. 1096; and

No. 97–7265. CROPP ET AL. *v.* UNITED STATES, 522 U. S. 1098. Petitions for rehearing denied.

No. 97–832. HINES *v.* CALIFORNIA, 522 U. S. 1077. Motion of petitioner for leave to proceed further herein *in forma pauperis* granted. Petition for rehearing denied.

MARCH 24, 1998

*Certiorari Denied*

No. 97–8435 (A–715). GRIFFIN-EL *v.* BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER. C. A. 8th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

MARCH 25, 1998

*Certiorari Denied*

No. 97–8386 (A–703). WATKINS *v.* ANGELONE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Application for stay of execution of sentence of death, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied. Certiorari denied. JUSTICE STEVENS and JUSTICE GINSBURG would grant the application for stay of execution. Reported below: 133 F. 3d 920.

MARCH 29, 1998

*Miscellaneous Order*

No. 97–8497 (A–724). IN RE BUENOANO. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

*Certiorari Denied*

No. 97–8496 (A–723). BUENOANO *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied. Reported below: 708 So. 2d 941.

No. 97–8498 (A–725). BUENOANO *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied.

No. 97–8499 (A–726). BUENOANO *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied.

MARCH 30, 1998

*Affirmed on Appeal*

No. 97–988. QUILTER, SPEAKER PRO TEMPORE OF THE OHIO HOUSE OF REPRESENTATIVES, ET AL. *v.* VOINOVICH, GOVERNOR OF OHIO, ET AL. Affirmed on appeal from D. C. N. D. Ohio. JUSTICE SCALIA would note probable jurisdiction and set case for oral argument. Reported below: 981 F. Supp. 1032.

*Miscellaneous Orders*

No. A–605 (97–1319). MADDEN CASSELLI *v.* CASSELLI. Ct. App. La., 5th Cir. Application for stay, addressed to JUSTICE GINSBURG and referred to the Court, denied.

No. A–656. GREEN ET AL. *v.* CARVER STATE BANK ET AL. Super. Ct. Ga., Chatham County. Application for stay, addressed to JUSTICE GINSBURG and referred to the Court, denied.

No. D–1926. IN RE DISBARMENT OF WELLONS. Chloe J. Wellons, of Goldsboro, N. C., is suspended from the practice of law in

this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

No. D–1927. IN RE DISBARMENT OF MAYS. W. Roy Mays III, of Atlanta, Ga., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1928. IN RE DISBARMENT OF GOTTLIEB. Michael R. Gottlieb, of Middletown, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1929. IN RE DISBARMENT OF POBINER. Howard J. Pobiner, of White Plains, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1930. IN RE DISBARMENT OF PATTERSON. G. Robert Patterson, of Collingswood, N. J., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. M–56. SMILEY *v.* UNITED STATES. Motion to direct the Clerk to file petition for writ of certiorari out of time under this Court's Rule 14.5 denied.

No. M–57. MCDANIEL, WARDEN, ET AL. *v.* GALLEGO; and
No. M–58. SANCHEZ *v.* UNITED STATES. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 96–1581. SOUTH DAKOTA *v.* YANKTON SIOUX TRIBE ET AL., 522 U. S. 329. Motion of respondent Yankton Sioux Tribe to retax costs denied.

No. 97–7615. WHITFIELD *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. See this Court's Rule 39.8. Petitioner is allowed until April 20, 1998, within which to pay the docketing fee

required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 97–7672. IN RE WYATT. Petition for writ of mandamus denied.

No. 97–8535 (A–728). IN RE REMETA. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

*Certiorari Granted*

No. 97–1192. SWIDLER & BERLIN ET AL. *v.* UNITED STATES. C. A. D. C. Cir. Certiorari granted. Reported below: 124 F. 3d 230.

No. 97–1235. CITY OF MONTEREY *v.* DEL MONTE DUNES AT MONTEREY, LTD., ET AL. C. A. 9th Cir. Certiorari granted. Reported below: 95 F. 3d 1422.

No. 97–6203. JONES *v.* UNITED STATES. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted.* Reported below: 116 F. 3d 1487.

*Certiorari Denied*

No. 96–6148. NAJERA-OJEDA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 95 F. 3d 48.

No. 96–6234. ROMERO-MOLINA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 95 F. 3d 58.

No. 96–6419. SANDERS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 95 F. 3d 59.

No. 96–6567. KILLORAN, AKA GIBSON, AKA PROBERT *v.* UNITED STATES; and

No. 96–6647. LOPEZ-RODRIGUEZ *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 100 F. 3d 970.

No. 96–7437. PADILLA-GALLARDO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 101 F. 3d 701.

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*[REPORTER'S NOTE: For amendment of this order, see *post*, p. 1058.]

No. 96–8426. PLATERO-UMANZOR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 101 F. 3d 699.

No. 96–9131. SANCHEZ MELGAR, AKA RAMIREZ SANCHEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 109 F. 3d 767.

No. 97–482. BEHRENS *v.* LOUISIANA. Ct. App. La., 1st Cir. Certiorari denied. Reported below: 684 So. 2d 86.

No. 97–960. K. R., AN INFANT, BY HER PARENTS AND NEXT FRIENDS, ET AL. *v.* ANDERSON COMMUNITY SCHOOL CORP. C. A. 7th Cir. Certiorari denied. Reported below: 125 F. 3d 1017.

No. 97–1040. BARNES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 606.

No. 97–1060. MITCHELL & NEELEY, INC. *v.* DIRECTOR, OFFICE OF WORKERS' COMPENSATION PROGRAMS, DEPARTMENT OF LABOR, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 39.

No. 97–1064. MADDEN *v.* WEST, ACTING SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied. Reported below: 125 F. 3d 1477.

No. 97–1069. HAPGOOD *v.* CITY OF WARREN. C. A. 6th Cir. Certiorari denied. Reported below: 127 F. 3d 490.

No. 97–1072. VIRGINIA STATE CORPORATION COMMISSION ET AL. *v.* FEDERAL COMMUNICATIONS COMMISSION ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 117 F. 3d 555 and 123 F. 3d 693.

No. 97–1078. GHIGLIERI, TEXAS BANKING COMMISSIONER *v.* SUN WORLD NATIONAL ASSN. ET AL.; and GHIGLIERI, TEXAS BANKING COMMISSIONER *v.* LUDWIG, COMPTROLLER OF THE CURRENCY, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 117 F. 3d 309 (first judgment); 125 F. 3d 941 (second judgment).

No. 97–1220. SVAY ET AL. *v.* CITY OF ATLANTA ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 1079.

No. 97–1222. PHINNEY *v.* FIRST AMERICAN NATIONAL BANK ET AL. C. A. 6th Cir. Certiorari denied.

No. 97–1228. Los Angeles Police Department et al. *v.* Perry et al. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 1365.

No. 97–1245. Merrill *v.* Arizona State Bar. Sup. Ct. Ariz. Certiorari denied.

No. 97–1246. Cassan Enterprises, Inc., et al. *v.* Chrysler Corp. et al. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 124.

No. 97–1247. Branson *v.* Greyhound Lines, Inc., Amalgamated Council Retirement and Disability Plan. C. A. 5th Cir. Certiorari denied. Reported below: 126 F. 3d 747.

No. 97–1250. Johnston, a Minor, by His Parents and Natural Guardians, Johnston et vir, et al. *v.* Gallant et al. C. A. 3d Cir. Certiorari denied.

No. 97–1253. Jane Doe #102 *v.* Georgia Department of Corrections. Sup. Ct. Ga. Certiorari denied. Reported below: 268 Ga. 582, 492 S. E. 2d 516.

No. 97–1272. Kent, aka Goichman *v.* City of Carmel et al. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 126.

No. 97–1295. Gibson *v.* National Transportation Safety Board. C. A. 9th Cir. Certiorari denied. Reported below: 118 F. 3d 1312.

No. 97–1299. Williams et ux. *v.* Turk et ux. Ct. Sp. App. Md. Certiorari denied. Reported below: 116 Md. App. 749.

No. 97–1301. Old Republic Union Insurance Co. *v.* Tillis Trucking Co., Inc., et al. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 1258.

No. 97–1307. Regional Transportation District *v.* Elam Construction, Inc., et al. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 1343.

No. 97–1318. Rich, Individually and as Administratrix of the Estate of Rich, Deceased, and as Executrix of the Estate of Rich, Deceased *v.* United States. C. A. 6th Cir. Certiorari denied. Reported below: 119 F. 3d 447.

No. 97–1328. JAMES BARLOW FAMILY LIMITED PARTNERSHIP ET AL. *v.* DAVID M. MUNSON, INC. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 1316.

No. 97–1338. GRZELAK *v.* UNITED STATES POSTAL SERVICE DESIGNEE. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 1077.

No. 97–1347. CENTRICUT, LLC, ET AL. *v.* ESAB GROUP, INC. C. A. 4th Cir. Certiorari denied. Reported below: 126 F. 3d 617.

No. 97–1355. CROCHIERE *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 129 F. 3d 233.

No. 97–1375. NEW *v.* COHEN, SECRETARY OF DEFENSE, ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 129 F. 3d 639.

No. 97–1401. TATE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 130 F. 3d 765.

No. 97–1413. LOVE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 131 F. 3d 144.

No. 97–1416. EARTHLY ET AL. *v.* CITY OF BEVERLY HILLS ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 858.

No. 97–1419. HUEREQUE-MERCADO *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 43.

No. 97–1434. DOLENZ *v.* AKIN ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 612.

No. 97–1447. ELECTRONIC PLATING CO. ET AL. *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 291 Ill. App. 3d 328, 683 N. E. 2d 465.

No. 97–5945. HERNANDEZ-ARIAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 119 F. 3d 2.

No. 97–6448. VASQUEZ-CRUZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 121 F. 3d 705.

No. 97–6710. MIGUEL-CRUZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 612.

No. 97–6775. Rodriguez Ortiz *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 125 F. 3d 851.

No. 97–6822. Hernandez-Jasso *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 124 F. 3d 193.

No. 97–6854. Garcia-Torres *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 613.

No. 97–7069. Forrett *v.* Richardson et al. C. A. 9th Cir. Certiorari denied. Reported below: 112 F. 3d 416.

No. 97–7202. Gonzalez Robles *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7203. Ochoa Ochoa *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7204. Aguilar Muniz *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 367.

No. 97–7218. Salazar-Navarro *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7241. Vargas-Villa *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7250. Saucedo-Hernandez *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7251. Basurto-Gomez *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7253. Rodriguez-Aviles *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7288. Torres-Servin *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 367.

No. 97–7298. Jones *v.* United States. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 137.

No. 97–7401. Zankich *v.* Goy. C. A. 9th Cir. Certiorari denied. Reported below: 116 F. 3d 1488.

No. 97–7578. Ayala-Fernandez *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 613.

No. 97–7588. ROMERO-CALDERON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 612.

No. 97–7649. JURY *v.* STEWART ET AL. Sup. Ct. Va. Certiorari denied.

No. 97–7654. FOWLER *v.* CAMPBELL ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 129 F. 3d 1254.

No. 97–7655. GILBERT *v.* SANDAGE ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–7656. GILBERT *v.* MOODY ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–7660. HIGGINS *v.* MISSISSIPPI ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7662. HUGHES *v.* COLORADO. Ct. App. Colo. Certiorari denied. Reported below: 946 P. 2d 509.

No. 97–7667. OLIVIER-WARD *v.* BLACKWELL ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1106.

No. 97–7669. DIAZ *v.* VAUGHN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GRATERFORD, ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–7673. WINSLOW *v.* SMITH ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 141.

No. 97–7675. THOMPSON *v.* NIXON, ATTORNEY GENERAL OF MISSOURI, ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–7678. WATSON *v.* BOONE, WARDEN. Ct. Crim. App. Okla. Certiorari denied.

No. 97–7679. MCLAMB *v.* KEANE, SUPERINTENDENT, SING SING CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 97–7687. MCPHERSON *v.* KELSEY ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 125 F. 3d 989.

No. 97–7689. MENDOZA-ROJAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–7694. OKPARAOCHA *v.* LAZARUS, INC. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1264.

No. 97–7697. COLE *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 701 So. 2d 845.

No. 97–7700. RIEGER *v.* NORTH DAKOTA. Sup. Ct. N. D. Certiorari denied. Reported below: 575 N. W. 2d 224.

No. 97–7702. EATON *v.* GERDES. C. A. 8th Cir. Certiorari denied. Reported below: 124 F. 3d 207.

No. 97–7706. ROCHA *v.* PRICE, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 125 F. 3d 862.

No. 97–7711. ARVIE *v.* LASTRAPES ET AL. C. A. 5th Cir. Certiorari denied.

No. 97–7712. GRAY *v.* CHESTERFIELD-COLONIAL HEIGHTS DEPARTMENT OF SOCIAL SERVICES. Sup. Ct. Va. Certiorari denied.

No. 97–7721. MACIEL *v.* YARBOROUGH ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–7740. MALUMPHY *v.* RYAN, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–7760. BOOZ *v.* SHANKS, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 130.

No. 97–7777. JOHNS *v.* BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER. C. A. 8th Cir. Certiorari denied. Reported below: 131 F. 3d 143.

No. 97–7793. MAXWELL *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF FLORIDA. C. A. 11th Cir. Certiorari denied.

No. 97–7797. WHITE *v.* SHEARER, SHERIFF, ADAMS COUNTY, COLORADO, ET AL. C. A. 10th Cir. Certiorari denied.

No. 97–7814. KUCERNAK *v.* FEDERAL BUREAU OF INVESTIGATION ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 126.

No. 97–7816. PACE *v.* ALABAMA. Sup. Ct. Ala. Certiorari denied. Reported below: 714 So. 2d 332.

No. 97–7840. RIVERA *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 703 So. 2d 477.

No. 97–7847. ROMAN *v.* DEPARTMENT OF THE ARMY. C. A. Fed. Cir. Certiorari denied. Reported below: 129 F. 3d 134.

No. 97–7849. HOFFMAN *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 146.

No. 97–7887. LOPEZ *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7891. SMITH *v.* DRAGOVICH, CORRECTIONS SUPERINTENDENT 2, STATE CORRECTIONAL INSTITUTION AT MAHANOY, ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–7896. ALI-BEY *v.* DEPARTMENT OF JUSTICE ET AL. C. A. 2d Cir. Certiorari denied.

No. 97–7908. ENTRUP ET UX. *v.* COLORADO ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 127 F. 3d 1109.

No. 97–7935. WELDON *v.* FERGUSON, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 127 F. 3d 1110.

No. 97–7936. WILLIAMS *v.* VENTURA COUNTY, CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–7958. MCDONALD *v.* MCDANIELS, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 97–7968. COOPER *v.* PRUNTY, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 119 F. 3d 5.

No. 97–7970. CARTER *v.* MISSOURI. Sup. Ct. Mo. Certiorari denied. Reported below: 955 S. W. 2d 548.

No. 97–7998. STRINGER *v.* KENTUCKY. Sup. Ct. Ky. Certiorari denied. Reported below: 956 S. W. 2d 883.

No. 97–7999. LEWIS *v.* TERHUNE, DIRECTOR, CALIFORNIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8006. MAYLES *v.* LECHNER, JUDGE, UNITED STATES DISTRICT COURT FOR THE DISTRICT OF NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 765.

No. 97–8038. FOLEY *v.* KENTUCKY. Sup. Ct. Ky. Certiorari denied. Reported below: 953 S. W. 2d 924.

No. 97–8047. HOLT *v.* GRAY. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1061.

No. 97–8051. HALL *v.* MISSOURI. Sup. Ct. Mo. Certiorari denied. Reported below: 955 S. W. 2d 198.

No. 97–8055. KUNZMAN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 125 F. 3d 1363.

No. 97–8063. PITT *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 138.

No. 97–8077. GILBERT *v.* WOODS, WARDEN, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 136 F. 3d 1328.

No. 97–8079. GOMEZ *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 46 M. J. 241.

No. 97–8085. MCLAUD *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 133 F. 3d 911.

No. 97–8086. LAYNE *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 34.

No. 97–8091. GRIZZLE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 608.

No. 97–8092. POLLARD *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 718.

No. 97–8095. WRIGHT *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 128 F. 3d 1274.

No. 97–8099. BECKER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 134 F. 3d 372.

No. 97–8100. PRESCOTT *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 125 F. 3d 845.

No. 97–8101. BOYLE *v.* UNITED STATES;
No. 97–8111. VAN PELT *v.* UNITED STATES;
No. 97–8149. COOLEY *v.* UNITED STATES; and
No. 97–8158. WACKER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 153.

No. 97–8104. LEMONS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 46.

No. 97–8105. MUSCHETTE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 134 F. 3d 386.

No. 97–8106. MARCEAU *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 133 F. 3d 930.

No. 97–8108. JONES *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 133 F. 3d 933.

No. 97–8109. MARONEY *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 153.

No. 97–8114. ALARCON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 148.

No. 97–8115. BACON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 45.

No. 97–8121. WILLIAMS *v.* UNITED STATES PAROLE COMMISSION. C. A. 11th Cir. Certiorari denied. Reported below: 128 F. 3d 733.

No. 97–8125. HAMILTON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 97–8135. RICE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 97–8145. YOUNGER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 131 F. 3d 722.

No. 97–8153. MCCLOUD *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 129 F. 3d 615.

No. 97–8154. MARSH *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 162 F. 3d 1149.

No. 97–8162. BIVENS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 114 F. 3d 1202.

No. 97–1234. NEWMAN *v.* CONSOLIDATION COAL CO. C. A. 3d Cir. Motion of petitioner for leave to proceed as a seaman granted. Certiorari denied. Reported below: 123 F. 3d 126.

No. 97–1239. GONZALEZ TRADING, INC., ET AL. *v.* YALE MATERIALS HANDLING CORP. C. A. 11th Cir. Motion of petitioners to consolidate this case with No. 97–1446, *Baeza et al.* v. *NACCO Industries, Inc., et al.*, denied. Certiorari denied. Reported below: 119 F. 3d 1485.

No. 97–8493 (A–721). REMETA *v.* STOVALL, ATTORNEY GENERAL OF KANSAS, ET AL. C. A. 10th Cir. Application for stay of execution of sentence of death, presented to JUSTICE BREYER, and by him referred to the Court, denied. Certiorari denied.

No. 97–8537 (A–729). REMETA *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied. JUSTICE STEVENS and JUSTICE BREYER would grant the application for stay of execution. Reported below: 710 So. 2d 543.

No. 97–8546 (A–734). REMETA *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE KENNEDY, and by him referred to the Court, denied. Certiorari denied. JUSTICE STEVENS, JUSTICE SOUTER, JUSTICE GINSBURG, and JUSTICE BREYER would grant the application for stay of execution. Reported below: 717 So. 2d 536.

*Rehearing Denied*

No. 97–6384. LONGEST *v.* DALTON, SECRETARY OF THE NAVY, ET AL., 522 U. S. 1004;

No. 97–6643. WILLIS *v.* UNIVERSITY OF LOUISVILLE ET AL., 522 U. S. 1058;

No. 97–7239. WHITEHEAD *v.* TENET, DIRECTOR OF CENTRAL INTELLIGENCE, 522 U. S. 1129; and

No. 97–7335. TILLI *v.* SMITH ET AL., 522 U. S. 1132. Petitions for rehearing denied.

No. 97–815. TIMEHIN *v.* CITY AND COUNTY OF SAN FRANCISCO ET AL., 522 U. S. 1050; and

No. 97–6922. WATKIS *v.* THRASHER ET AL., 522 U. S. 1095. Motions for leave to file petitions for rehearing denied.

No. 97–6602. STAFFORD *v.* E. I. DU PONT DE NEMOURS & CO. ET AL., 522 U. S. 1069. Petition for rehearing denied. JUSTICE O'CONNOR took no part in the consideration or decision of this petition.

April 6, 1998

*Certiorari Granted—Vacated and Remanded*

No. 96–1134. United States *v.* Mobley; United States *v.* Nash; and United States *v.* Lynn. C. A. Armed Forces. Certiorari granted, judgments vacated, and case remanded for further consideration in light of *United States* v. *Scheffer*, *ante*, p. 303. Reported below: 44 M. J. 453 (first judgment) and 456 (second judgment); 45 M. J. 403 (third judgment).

No. 97–6492. Mejia *v.* United States. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996, 8 U. S. C. § 1229a(a). Reported below: 121 F. 3d 722.

*Miscellaneous Orders*

No. A–722. Philip Morris Inc. et al. *v.* Minnesota et al. Sup. Ct. Minn. Application for stay, presented to Justice Scalia, and by him referred to the Court, denied.

No. D–1876. In re Disbarment of Germain. Disbarment entered. [For earlier order herein, see 522 U. S. 992.]

No. D–1884. In re Disbarment of Bloodworth. Disbarment entered. [For earlier order herein, see 522 U. S. 1013.]

No. D–1889. In re Disbarment of Jamison. Disbarment entered. [For earlier order herein, see 522 U. S. 1026.]

No. D–1903. In re Disbarment of Fisher. Disbarment entered. [For earlier order herein, see 522 U. S. 1041.]

No. D–1905. In re Disbarment of Fiddes. Disbarment entered. [For earlier order herein, see 522 U. S. 1073.]

No. D–1931. In re Disbarment of Southard. Richard C. Southard, of Lockport, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1932. IN RE DISBARMENT OF TAUB. Barry L. Taub, of Eugene, Ore., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1933. IN RE DISBARMENT OF PHILLIPS. Thomas Ewing Phillips, of Chillicothe, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. M–59. JOHNSON *v.* UNITED STATES. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. M–60. LUNDGREN ET AL. *v.* STEELE. Motion to direct the Clerk to file petition for writ of certiorari out of time under this Court's Rule 14.5 denied.

No. 97–501. RICCI *v.* VILLAGE OF ARLINGTON HEIGHTS. C. A. 7th Cir. [Certiorari granted, 522 U. S. 1038.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–704. DOOLEY, PERSONAL REPRESENTATIVE OF THE ESTATE OF CHUAPOCO, ET AL. *v.* KOREAN AIR LINES CO., LTD. C. A. D. C. Cir. [Certiorari granted, 522 U. S. 1038.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–1192. SWIDLER & BERLIN ET AL. *v.* UNITED STATES. C. A. D. C. Cir. [Certiorari granted, *ante,* p. 1045.] Motion of Independent Counsel to expedite the briefing and argument schedule granted. Brief of petitioners and joint appendix are to be filed with the Clerk and served upon Independent Counsel on or before 3 p.m., Wednesday, April 29, 1998. Brief of Independent Counsel is to be filed with the Clerk and served upon petitioners on or before 3 p.m., Wednesday, May 20, 1998. A reply brief, if any, may be filed with the Clerk and served upon Independent Counsel on or before 3 p.m., Monday, June 1, 1998. Briefs may be submitted in compliance with this Court's Rule 33.2 to be replaced with briefs prepared in compliance with Rule 33.1 as soon as possible thereafter. Rule 29.2 does not apply. Argument is set for 10 a.m., Monday, June 8, 1998.

No. 97–1254. PRACTICE MANAGEMENT INFORMATION CORP. *v.* AMERICAN MEDICAL ASSN. C. A. 9th Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 97–1374. CLINTON, PRESIDENT OF THE UNITED STATES, ET AL. *v.* CITY OF NEW YORK ET AL. D. C. D. C. [Probable jurisdiction noted, 522 U. S. 1144.] Motion of appellees for divided argument granted to be divided as follows: appellants, 30 minutes; New York City appellees, 15 minutes; Snake River appellees, 15 minutes. Request for additional time for oral argument denied.

No. 97–5737. FORNEY *v.* APFEL, COMMISSIONER OF SOCIAL SECURITY. C. A. 9th Cir. [Certiorari granted, 522 U. S. 1072.] Motion of the Solicitor General for divided argument granted to be divided as follows: petitioner, 15 minutes; the Solicitor General, 15 minutes; *amicus curiae* in support of the judgment below, 30 minutes.

No. 97–6203. JONES *v.* UNITED STATES. C. A. 9th Cir. [Certiorari granted, *ante*, p. 1045.] The order entered March 30, 1998, granting a writ of certiorari is amended as follows: "The writ of certiorari is limited to the following questions: 1. Does 18 U. S. C. §§ 2119(1)–(3) describe sentencing factors or elements of the offense? 2. If 18 U. S. C. §§ 2119(1)–(3) sets forth sentencing factors, is the statute constitutional?"

No. 97–8202. IN RE KENNEDY;

No. 97–8217. IN RE MITCHELL; and

No. 97–8235. IN RE DOYLE. Petitions for writs of habeas corpus denied.

No. 97–1329. IN RE MORRIS; and

No. 97–7741. IN RE MUZAKKIR. Petitions for writs of mandamus denied.

No. 97–8234. IN RE GRIFFIN. Petition for writ of mandamus and/or prohibition denied.

*Certiorari Denied*

No. 97–530. PORTER *v.* CONNECTICUT. Sup. Ct. Conn. Certiorari denied. Reported below: 241 Conn. 57, 698 A. 2d 739.

No. 97–723. HUNTER *v.* CONNECTICUT. Sup. Ct. Conn. Certiorari denied. Reported below: 241 Conn. 165, 694 A. 2d 1317.

No. 97–918. Lovilia Coal Co. et al. *v.* Harvey et al. C. A. 8th Cir. Certiorari denied. Reported below: 109 F. 3d 445.

No. 97–1080. Ohuegbe *v.* Immigration and Naturalization Service. C. A. 6th Cir. Certiorari denied.

No. 97–1101. Barnes *v.* Logan et ux., Trustees for the Logan Inter Vivos Trust. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 820.

No. 97–1118. Bresnahan *v.* California Highway Patrol et al. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1069.

No. 97–1133. Walls *v.* County of Los Angeles, Office of the District Attorney. Ct. App. Cal., 2d App. Dist. Certiorari denied. Reported below: 55 Cal. App. 4th 187, 63 Cal. Rptr. 2d 661.

No. 97–1134. Baughans, Inc., et al. *v.* Domino's Pizza, Inc. C. A. 3d Cir. Certiorari denied. Reported below: 124 F. 3d 430.

No. 97–1241. Crawford, Administratrix of the Estates of Kelley et vir, Deceased *v.* Andrew Systems, Inc. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 925.

No. 97–1242. Kennametal, Inc. *v.* Commissioner of Revenue of Massachusetts. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 426 Mass. 39, 686 N. E. 2d 436.

No. 97–1256. Sinclair Oil Corp. *v.* County of Santa Barbara et al. C. A. 9th Cir. Certiorari denied. Reported below: 96 F. 3d 401.

No. 97–1264. Bank One, Texas, National Assn., Trustee of the Red Crest Trust, et al. *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 606.

No. 97–1282. Stetler *v.* Sanders et al. Ct. App. Ky. Certiorari denied.

No. 97–1285. Shephard *v.* Provident Life & Accident Insurance Co. C. A. 9th Cir. Certiorari denied. Reported below: 87 F. 3d 1322.

No. 97–1303. Ross *v.* Michigan. Ct. App. Mich. Certiorari denied.

No. 97–1315. STIVENDER *v.* POWELL. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 859.

No. 97–1323. POLLAK ET AL. *v.* COURSHON ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 9.

No. 97–1358. HADJI-ELIAS ET AL. *v.* LOS ANGELES COUNTY SUPERIOR COURT (SHAHBAZ ET AL., REAL PARTIES IN INTEREST). Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–1359. GOLIA-PALADIN *v.* NEVADA STATE BAR. Sup. Ct. Nev. Certiorari denied. Reported below: 112 Nev. 1718.

No. 97–1360. SHEPHARD *v.* POMONA FAIRPLEX ET AL. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–1392. KIMBALL *v.* CLAUSNTIZER ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 1298.

No. 97–1415. BARRON ET AL. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 859.

No. 97–1428. GRUBBS *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 120 F. 3d 1174.

No. 97–1450. CARLSON ET UX. *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 126 F. 3d 915.

No. 97–1465. SPENCER *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 246.

No. 97–1471. HASTINGS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 126 F. 3d 310.

No. 97–1474. LEDFORD *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 127 F. 3d 1103.

No. 97–1493. JOHN CONLEE ENTERPRISES, INC. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 198.

No. 97–6977. WALTERS *v.* MAHONEY, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1172.

No. 97–7331. NORIEGA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 117 F. 3d 1206.

No. 97–7365. MONROE *v.* UNITED STATES; and
No. 97–7606. DURAN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 127 F. 3d 911.

No. 97–7685. BEELER *v.* CALDERON, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 128 F. 3d 1283.

No. 97–7723. VOGEL *v.* INDUSTRIAL COMMISSION OF ARIZONA ET AL. Ct. App. Ariz. Certiorari denied.

No. 97–7725. TUCKER *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 347 N. C. 235, 490 S. E. 2d 559.

No. 97–7728. JARVI *v.* MCCARTHY ET AL. Ct. App. Mich. Certiorari denied.

No. 97–7729. KREIGER *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 97–7732. JACKSON *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 241 App. Div. 2d 526, 663 N. Y. S. 2d 988.

No. 97–7734. SMOUSE *v.* LYTLE, WARDEN. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 131.

No. 97–7742. SULLIVAN *v.* LOUISIANA. Ct. App. La., 4th Cir. Certiorari denied. Reported below: 688 So. 2d 1245.

No. 97–7743. PAPESH *v.* AMERICAN NATIONAL CAN CO. ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–7749. HETTLER *v.* DODY. Ct. App. Colo. Certiorari denied.

No. 97–7751. GALLOWAY *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 97–7755. HUGHES *v.* ABBOTT NORTHWESTERN HOSPITAL SECURITY ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–7763. KNIGHT *v.* YOUMANS. C. A. 11th Cir. Certiorari denied. Reported below: 130 F. 3d 443.

No. 97–7765. BROWN *v.* ARTUZ, SUPERINTENDENT, GREEN HAVEN CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 97–7766. WILLIAMS *v.* BOWERS ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–7769. ROBINSON *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7774. REYES *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 97–7776. BERKOWITZ *v.* STATE OF ISRAEL ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 133 F. 3d 907.

No. 97–7778. WOODS *v.* COOK. Ct. App. Ohio, Summit County. Certiorari denied.

No. 97–7780. ARIAS *v.* ARIAS. Ct. App. Neb. Certiorari denied. Reported below: 6 Neb. App. xv.

No. 97–7784. KELLEHER *v.* AEROSPACE COMMUNITY CREDIT UNION. C. A. 8th Cir. Certiorari denied. Reported below: 114 F. 3d 745.

No. 97–7791. WALTON *v.* PRINCETON BAPTIST MEDICAL CENTER. C. A. 11th Cir. Certiorari denied.

No. 97–7804. GRIFFIN *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. Sup. Ct. Fla. Certiorari denied. Reported below: 700 So. 2d 685.

No. 97–7805. DEWITT *v.* JONES, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–7806. HEIMERMANN *v.* GLOBAL SECURITIES TRUST CO. ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 36.

No. 97–7808. HOLLAND *v.* LOUISIANA SECRETARY OF REVENUE AND TAXATION ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 612.

No. 97–7810. GONZALEZ *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 700 So. 2d 1217.

No. 97–7815. BURRELL *v.* TENNESSEE. Ct. Crim. App. Tenn. Certiorari denied.

No. 97–7825. CHAPMAN *v.* CONNECTICUT. App. Ct. Conn. Certiorari denied. Reported below: 46 Conn. App. 24, 698 A. 2d 347.

No. 97–7831. KEITH *v.* OHIO. Sup. Ct. Ohio. Certiorari denied. Reported below: 79 Ohio St. 3d 514, 684 N. E. 2d 47.

No. 97–7833. JOHNSON *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF OHIO. C. A. 6th Cir. Certiorari denied.

No. 97–7836. JOHNSON *v.* UTAH. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 151.

No. 97–7837. BOGGESS *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1454.

No. 97–7850. DAVIS *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied.

No. 97–7862. TATTA *v.* MILLER, SUPERINTENDENT, EASTERN CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 97–7875. BRUNDIDGE *v.* OHIO. Ct. App. Ohio, Cuyahoga County. Certiorari denied.

No. 97–7878. FULLER *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–7902. WARNER *v.* OHIO. Ct. App. Ohio, Lorain County. Certiorari denied.

No. 97–7921. STANDISH *v.* NIXON, ATTORNEY GENERAL OF MISSOURI, ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–7928. KELLY *v.* CALDERON, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 782.

No. 97–7940. PHILLIPS *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist. Certiorari denied. Reported below: 56 Cal. App. 4th 1307, 66 Cal. Rptr. 2d 380.

No. 97–7961. COUCH *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 695 A. 2d 435.

No. 97–7979. HOSKINSON *v.* INDIANA. Ct. App. Ind. Certiorari denied. Reported below: 688 N. E. 2d 433.

No. 97–7991. BRIDGES *v.* GEORGIA. Sup. Ct. Ga. Certiorari denied. Reported below: 268 Ga. 700, 492 S. E. 2d 877.

No. 97–8000. MCNAIR *v.* ALABAMA. Ct. Crim. App. Ala. Certiorari denied. Reported below: 706 So. 2d 828.

No. 97–8017. NWOSUN *v.* GENERAL MILLS RESTAURANTS, INC. C. A. 10th Cir. Certiorari denied. Reported below: 124 F. 3d 1255.

No. 97–8019. ESTRADA RUEDA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 137 F. 3d 1350.

No. 97–8020. YANEZ PENALOZA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 137 F. 3d 1352.

No. 97–8049. FLETCHER *v.* WILLIAMS ET AL. Sup. Ct. Ill. Certiorari denied. Reported below: 179 Ill. 2d 225, 688 N. E. 2d 635.

No. 97–8072. BIVINS *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–8076. HAYNES *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–8078. FONTAINE *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 97–8117. REYNERO-LOPEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 137 F. 3d 1352.

No. 97–8119. PILJAK *v.* INTERNAL REVENUE SERVICE. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1073.

No. 97–8130. MCQUOWN *v.* SAFEWAY, INC. Sup. Ct. Va. Certiorari denied.

No. 97–8138. HORTON *v.* GEE, WARDEN, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 116.

No. 97–8139. KARRIEM *v.* UNITED STATES ET AL. C. A. D. C. Cir. Certiorari denied.

No. 97–8157. REGANS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 125 F. 3d 685.

No. 97–8159. WILLIAMS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 121 F. 3d 615.

No. 97–8164. ROBINSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 1459.

No. 97–8167. BARR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 130 F. 3d 711.

No. 97–8168. WOOTEN *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. Reported below: 124 F. 3d 1309.

No. 97–8170. NATTIER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 127 F. 3d 655.

No. 97–8171. CONNOR *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NEW YORK. C. A. 2d Cir. Certiorari denied.

No. 97–8175. CARDENAS *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 152.

No. 97–8179. SIMMONS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 136 F. 3d 136.

No. 97–8190. TRUJILLO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 486.

No. 97–8197. BEARD *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 46.

No. 97–8200. ALLEN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 136 F. 3d 137.

No. 97–8204. JOHNSON *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 97–8205. RIVERA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 128 F. 3d 38.

No. 97–8206. PINA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 366.

No. 97–8207. LOZA ROMO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 829.

No. 97–8208. PHILLIPS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 134 F. 3d 365.

No. 97–8209. RIVERA *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 767.

No. 97–8215. CARLE *v.* UNITED STATES. Ct. App. D. C. Certiorari denied. Reported below: 705 A. 2d 682.

No. 97–8219. MCKINNON *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 44.

No. 97–8221. BANKS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 130 F. 3d 621.

No. 97–8227. GAYTAN-CARRANZA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 366.

No. 97–8231. GRZESCZUK *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 128.

No. 97–8232. HARRELL *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 129 F. 3d 616.

No. 97–8233. DIERLING *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 131 F. 3d 722.

No. 97–8238. HINEBAUGH *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 118.

No. 97–8241. FALLIS, AKA HURD *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 152.

No. 97–8243. HAZEL *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 137.

No. 97–8251. JENKINS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 367.

No. 97–8253. ZORIO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 124 F. 3d 215.

No. 97–8260. HUDGINS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 137.

No. 97–8271. MOORE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 129 F. 3d 989.

No. 97–8282. WILLIAMS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1108.

No. 97–1263. FLORIDA DEPARTMENT OF BUSINESS AND PROFESSIONAL REGULATION ET AL. *v.* ROCHAMBEAU WINES & LIQUORS, INC., ET AL. C. A. 11th Cir. Motion of National Alcohol Beverage Control Association et al. for leave to file a brief as *amici curiae* granted. Certiorari denied. Reported below: 125 F. 3d 1399.

No. 97–1269. FICALORA *v.* INTERNATIONAL BUSINESS MACHINES CORP. ET AL. C. A. 9th Cir. Certiorari denied. JUSTICE STEVENS took no part in the consideration or decision of this petition. Reported below: 124 F. 3d 211.

*Rehearing Denied*

No. 97–6757. RUTHERFORD *v.* ALDERMAN ET AL., 522 U. S. 1079;

No. 97–6934. RIEGER *v.* NORTH DAKOTA, 522 U. S. 1120; and

No. 97–6991. CARSON *v.* DIRECTOR, OFFICE OF WORKERS' COMPENSATION PROGRAMS, ET AL., 522 U. S. 1121. Petitions for rehearing denied.

No. 97–6869. BROWN *v.* KEARNEY, WARDEN, ET AL., 522 U. S. 1062. Motion for leave to file petition for rehearing denied.

## APRIL 7, 1998

*Dismissal Under Rule 46*

No. 97–6958. WATKINS *v.* UNITED STATES. C. A. 11th Cir. Certiorari dismissed under this Court's Rule 46.1. Reported below: 120 F. 3d 254.

## APRIL 8, 1998

*Miscellaneous Order*

No. 97–1390. REPUBLIC OF PARAGUAY ET AL. *v.* GILMORE, GOVERNOR OF VIRGINIA, ET AL.; and

No. 97–8214. BREARD *v.* GREENE, WARDEN. C. A. 4th Cir. The Solicitor General is invited to file a brief in these cases expressing the views of the United States on or before 5 p.m., Monday, April, 13, 1998.

APRIL 13, 1998

*Miscellaneous Order*

No. A–753. HUNT, GOVERNOR OF NORTH CAROLINA, ET AL. *v.* CROMARTIE ET AL. D. C. E. D. N. C. Application for stay, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied. JUSTICE STEVENS, JUSTICE GINSBURG, and JUSTICE BREYER would grant the application for stay.

APRIL 14, 1998

*Miscellaneous Orders.* (See Nos. A–732, A–738, A–767, A–771, 97–8660, and 125, Orig., *ante,* p. 371.)

*Certiorari Denied.* (See Nos. 97–1390 and 97–8214, *ante,* p. 371.)

APRIL 20, 1998

*Miscellaneous Orders*

No. A–700. GUTERMUTH *v.* DEPARTMENT OF CHILDREN AND FAMILIES. Dist. Ct. App. Fla., 4th Dist. Application for stay, addressed to JUSTICE GINSBURG and referred to the Court, denied.

No. D–1175. IN RE DISBARMENT OF HICKEY. Disbarment entered. [For earlier order herein, see 506 U. S. 913.]

No. D–1895. IN RE DISBARMENT OF JACKSON. Disbarment entered. [For earlier order herein, see 522 U. S. 1040.]

No. D–1908. IN RE DISBARMENT OF TRAMMELL. Disbarment entered. [For earlier order herein, see 522 U. S. 1087.]

No. D–1929. IN RE DISBARMENT OF POBINER. Howard J. Pobiner, of White Plains, N. Y., having requested to resign as a member of the Bar of this Court, it is ordered that his name be stricken from the roll of attorneys admitted to the practice of law before this Court. The rule to show cause, issued on March 30, 1998 [*ante,* p. 1044], is discharged.

No. D–1934. IN RE DISBARMENT OF SADLER. Gerald A. Sadler, of Houston, Tex., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1935. IN RE DISBARMENT OF AHAM-NEZE. L. Obioma Aham-Neze, of Houston, Tex., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1936. IN RE DISBARMENT OF GREER. Michael Ira Greer, of Poway, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1937. IN RE DISBARMENT OF FEY. Walter Benjamin Fey, of Reno, Nev., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1938. IN RE DISBARMENT OF ROTTER. Seth R. Rotter, of New York, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1939. IN RE DISBARMENT OF IRONS. Eugene J. Irons, of Mesa, Ariz., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1940. IN RE DISBARMENT OF LEWINSON. Barbara Kaplan Lewinson, of East Brunswick, N. J., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

No. D–1941. IN RE DISBARMENT OF HUBER. Richard Laurence Huber, of Washington, D. C., is suspended from the practice

of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. M–61. ESPINOSA *v.* WILLIAMS, WARDEN, ET AL.;
No. M–63. MACRI *v.* MAGNA COMMUNITY DEVELOPMENT CORP. ET AL.; and
No. M–64. CELESTINE *v.* FOSTER, GOVERNOR OF LOUISIANA, ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. M–62. WIGGINS *v.* UNITED STATES. Motion for leave to proceed *in forma pauperis* without an affidavit of indigency executed by petitioner denied.

No. 96–1037. KIOWA TRIBE OF OKLAHOMA *v.* MANUFACTURING TECHNOLOGIES, INC. Ct. Civ. App. Okla. [Certiorari granted, 521 U. S. 1117.] Motion of petitioner for leave to file a supplemental brief after argument denied.

No. 97–371. NATIONAL ENDOWMENT FOR THE ARTS ET AL. *v.* FINLEY ET AL. C. A. 9th Cir. [Certiorari granted, 522 U. S. 991.] Motion of respondents for leave to file a supplemental brief after argument granted.

No. 97–569. BURLINGTON INDUSTRIES, INC. *v.* ELLERTH. C. A. 7th Cir. [Certiorari granted, 522 U. S. 1086.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–634. PENNSYLVANIA DEPARTMENT OF CORRECTIONS ET AL. *v.* YESKEY. C. A. 3d Cir. [Certiorari granted, 522 U. S. 1086.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–6146. MONGE *v.* CALIFORNIA. Sup. Ct. Cal. [Certiorari granted, 522 U. S. 1072.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 97–1008. CLEVELAND *v.* POLICY MANAGEMENT SYSTEMS CORP. ET AL. C. A. 5th Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 97–1374. CLINTON, PRESIDENT OF THE UNITED STATES, ET AL. *v.* CITY OF NEW YORK ET AL. D. C. D. C. [Probable jurisdiction noted, 522 U. S. 1144.] Motion of John S. Baker, Jr., for leave to file a brief as *amicus curiae* granted.

No. 97–8325. IN RE TURNER. Motion of petitioner for leave to proceed *in forma pauperis* denied. See this Court's Rule 39.8. Petitioner is allowed until May 11, 1998, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 97–8462. IN RE CHATMAN;
No. 97–8478. IN RE ALLEN; and
No. 97–8500. IN RE FLOWERS. Petitions for writs of habeas corpus denied.

No. 97–7841. IN RE ROBINSON;
No. 97–7962. IN RE LONGENETTE; and
No. 97–8276. IN RE MALONE. Petitions for writs of mandamus denied.

*Certiorari Granted*

No. 97–1121. CITY OF CHICAGO *v.* MORALES ET AL. Sup. Ct. Ill. Motion of respondents Jesus Morales et al. for leave to proceed *in forma pauperis* without affidavits of indigency granted. Certiorari granted. Reported below: 177 Ill. 2d 440, 687 N. E. 2d 53.

*Certiorari Denied*

No. 97–805. MULDERIG *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 120 F. 3d 534.

No. 97–965. BRYANT *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. Reported below: 117 F. 3d 1464.

No. 97–1062. PARKER *v.* VIRGINIA. Ct. App. Va. Certiorari denied. Reported below: 24 Va. App. 681, 485 S. E. 2d 150.

No. 97–1095. BECTON DICKINSON VASCULAR ACCESS, INC. *v.* CRITIKON, INC.; and
No. 97–1292. CRITIKON, INC. *v.* BECTON DICKINSON VASCULAR ACCESS, INC. C. A. Fed. Cir. Certiorari denied. Reported below: 120 F. 3d 1253.

No. 97–1117. SHULTZ *v.* DEPARTMENT OF THE ARMY. C. A. 9th Cir. Certiorari denied. Reported below: 96 F. 3d 1222.

No. 97–1137. CYPRUS BAGDAD COPPER CORP. ET AL. *v.* NELSON ET UX. C. A. 9th Cir. Certiorari denied. Reported below: 119 F. 3d 756.

No. 97–1142. CHEMICAL DISTRIBUTORS, INC. *v.* RESURE, INC. C. A. 5th Cir. Certiorari denied. Reported below: 114 F. 3d 1184.

No. 97–1157. RODRIGUEZ ET AL. *v.* SABATINO ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 120 F. 3d 589.

No. 97–1164. GLEASON, INDIVIDUALLY AND AS EXECUTRIX OF THE ESTATE OF GLEASON, DECEASED *v.* NOYES ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 125 F. 3d 855.

No. 97–1165. JONES *v.* SECURITIES AND EXCHANGE COMMISSION. C. A. 4th Cir. Certiorari denied. Reported below: 115 F. 3d 1173.

No. 97–1179. TURNER, INDIVIDUALLY AND AS ADMINISTRATOR OF THE ESTATE OF TURNER *v.* FALLON COMMUNITY HEALTH PLAN, INC. C. A. 1st Cir. Certiorari denied. Reported below: 127 F. 3d 196.

No. 97–1191. ANDERSON ET AL. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1190.

No. 97–1194. EASTERN KENTUCKY RESOURCES ET AL. *v.* FISCAL COURT OF MAGOFFIN COUNTY, KENTUCKY, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 127 F. 3d 532.

No. 97–1204. FLORIDA *v.* ESCOBAR. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 988.

No. 97–1244. GIBBS INTERNATIONAL, INC., FKA GIBBS TEXTILES, INC. *v.* INTERNAL REVENUE SERVICE. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 116.

No. 97–1283. HAYNSWORTH ET AL. *v.* LLOYD'S OF LONDON ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 121 F. 3d 956.

No. 97–1284. FAYETTE COUNTY BOARD OF EDUCATION *v.* L. G. P. ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1263.

No. 97–1286. ZEHNER *v.* SMITH ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 698.

No. 97–1288. NATIONAL MEDICAL ENTERPRISES, INC. *v.* BLEASDELL. C. A. 9th Cir. Certiorari denied. Reported below: 124 F. 3d 210.

No. 97–1289. BARSCH ET UX. *v.* BRANN ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1069.

No. 97–1291. SCHMIDT *v.* SHEET METAL WORKERS' NATIONAL PENSION FUND ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 128 F. 3d 541.

No. 97–1297. DEBORD ET UX., INDIVIDUALLY AND AS NEXT FRIENDS FOR DEBORD, MINOR *v.* BOARD OF EDUCATION OF THE FERGUSON-FLORISSANT SCHOOL DISTRICT ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 126 F. 3d 1102.

No. 97–1300. MCDONALD ET AL. *v.* HAMMONS, INDIVIDUALLY AND AS COMMISSIONER, NEW YORK CITY DEPARTMENT OF SOCIAL SERVICES, ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 114.

No. 97–1308. TEXAS LOTTERY COMMISSION ET AL. *v.* WENNER ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 123 F. 3d 321.

No. 97–1311. BOURQUE *v.* LOUISIANA. Sup. Ct. La. Certiorari denied. Reported below: 699 So. 2d 1.

No. 97–1312. PEACE & LOVE, INC., ET AL. *v.* MARSHALL, DBA R. K. MARSHALL CONSTRUCTION. Ct. Civ. App. Okla. Certiorari denied.

No. 97–1316. PANDA-KATHLEEN, L. P. *v.* FLORIDA POWER CORPORATION ET AL. Sup. Ct. Fla. Certiorari denied. Reported below: 701 So. 2d 322.

No. 97–1319. CASSELLI *v.* CASSELLI. Ct. App. La., 5th Cir. Certiorari denied.

No. 97–1321. HOLLINGSWORTH & VOSE CO. *v.* HOROWITZ ET UX. Ct. App. Cal., 1st App. Dist. Certiorari denied.

No. 97–1324. WASHINGTON *v.* SUMMERVILLE ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 127 F. 3d 552.

No. 97–1325. PALADIN ENTERPRISES, INC., AKA PALADIN PRESS *v.* RICE, GUARDIAN AND NEXT FRIEND OF HORN, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 128 F. 3d 233.

No. 97–1327. JORDAN *v.* PLAYTEX FAMILY PRODUCTS, INC. C. A. 2d Cir. Certiorari denied. Reported below: 116 F. 3d 465.

No. 97–1331. UNION SECURITY LIFE INSURANCE CO. *v.* CROCKER. Sup. Ct. Ala. Certiorari denied. Reported below: 709 So. 2d 1118.

No. 97–1332. YEAROUS ET AL. *v.* NIOBRARA COUNTY MEMORIAL HOSPITAL, BY AND THROUGH ITS BOARD OF TRUSTEES. C. A. 10th Cir. Certiorari denied. Reported below: 128 F. 3d 1351.

No. 97–1333. SMITHWICK ET UX. *v.* GREEN TREE FINANCIAL SERVICING CORP. C. A. 5th Cir. Certiorari denied. Reported below: 121 F. 3d 211.

No. 97–1341. KABIR *v.* SILICON VALLEY BANK ET AL. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 97–1345. DAXOR CORP. ET AL. *v.* NEW YORK STATE DEPARTMENT OF HEALTH ET AL. Ct. App. N. Y. Certiorari denied. Reported below: 90 N. Y. 2d 89, 681 N. E. 2d 356.

No. 97–1348. WILSON *v.* MARCHINGTON ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 805.

No. 97–1349. PAINTER *v.* GOLDEN RULE INSURANCE CO. C. A. 8th Cir. Certiorari denied. Reported below: 121 F. 3d 436.

No. 97–1350. WALDEN ET AL. *v.* GEORGIA-PACIFIC CORP. ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 126 F. 3d 506.

No. 97–1351. MESSAM *v.* MORTON, SUPERINTENDENT, NEW JERSEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 133 F. 3d 910.

No. 97–1353. FAZIO *v.* CITY AND COUNTY OF SAN FRANCISCO ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 1328.

No. 97–1361. BRONX HOUSEHOLD OF FAITH ET AL. *v.* BOARD OF EDUCATION OF THE CITY OF NEW YORK ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 127 F. 3d 207.

No. 97–1362. BARRETT *v.* HARRINGTON. C. A. 6th Cir. Certiorari denied. Reported below: 130 F. 3d 246.

No. 97–1363. SCHLOSSBERG, TRUSTEE *v.* MARYLAND COMPTROLLER OF THE TREASURY. C. A. 4th Cir. Certiorari denied. Reported below: 119 F. 3d 1140.

No. 97–1365. UNITED MEXICAN STATES ET AL. *v.* WOODS, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 126 F. 3d 1220.

No. 97–1366. MATTHEWS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1261.

No. 97–1367. ORMAN ET AL. *v.* CHARLES SCHWAB & CO., INC., ET AL. Sup. Ct. Ill. Certiorari denied. Reported below: 179 Ill. 2d 282, 688 N. E. 2d 620.

No. 97–1369. IN RE CAPITAL CITY PRESS ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 128 F. 3d 267.

No. 97–1370. ZOK *v.* EASTAUGH ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 720.

No. 97–1372. WHITLEY ET AL. *v.* ROCHON. C. A. 5th Cir. Certiorari denied. Reported below: 122 F. 3d 319.

No. 97–1377. WATERS ET UX. *v.* FRAZIER. Ct. App. Cal., 4th App. Dist. Certiorari denied.

No. 97–1379. HIGHTOWER *v.* KENDALL CO. Ct. App. Ga. Certiorari denied. Reported below: 225 Ga. App. 71, 483 S. E. 2d 294.

No. 97–1385. STONE ET UX. *v.* CITY OF LYNN ET AL. App. Ct. Mass. Certiorari denied. Reported below: 43 Mass. App. 1112, 684 N. E. 2d 1212.

No. 97–1387. ROOF *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 97–1391. FORD MOTOR CO. *v.* SPERAU ET AL. Sup. Ct. Ala. Certiorari denied. Reported below: 708 So. 2d 111.

No. 97–1393. IN RE DYER. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1455.

No. 97–1398. CROSS ET AL. *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 128 F. 3d 145.

No. 97–1405. SAID *v.* RUNYON, POSTMASTER GENERAL. C. A. 1st Cir. Certiorari denied.

No. 97–1409. KOSKELA ET AL. *v.* KING COUNTY ET AL.; and No. 97–7859. SCANNELL *v.* KING COUNTY ET AL. Sup. Ct. Wash. Certiorari denied. Reported below: 133 Wash. 2d 584, 949 P. 2d 1260.

No. 97–1412. MAHER *v.* LONG ISLAND UNIVERSITY ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 131 F. 3d 131.

No. 97–1436. ISGRO *v.* NEW YORK STATE FRESHWATER WETLAND APPEALS BOARD. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 239 App. Div. 2d 419, 658 N. Y. S. 2d 893.

No. 97–1437. YOHN *v.* UNIVERSITY OF MICHIGAN REGENTS ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 142 F. 3d 438.

No. 97–1438. CLEMENT *v.* VIRGINIA BOARD OF BAR EXAMINERS. C. A. 4th Cir. Certiorari denied. Reported below: 125 F. 3d 847.

No. 97–1457. CENTER FOR STUDY AND APPLICATION OF BLACK ECONOMIC DEVELOPMENT *v.* FEDERAL COMMUNICATIONS COMMISSION ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 132 F. 3d 1481.

No. 97–1460. UNITED WE STAND, AMERICA, NEW YORK, INC., ET AL. *v.* UNITED WE STAND AMERICA. C. A. 2d Cir. Certiorari denied. Reported below: 128 F. 3d 86.

No. 97–1464. NEWCO, INC. *v.* CESSNA AIRCRAFT CO. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–1466. SALZMAN *v.* BFI TIRE RECYCLERS OF MN, INC., ET AL. Ct. App. Wis. Certiorari denied.

No. 97–1467. PETERSON *v.* WISCONSIN DEPARTMENT OF INDUSTRY, LABOR AND HUMAN RELATIONS ET AL. Ct. App. Wis. Certiorari denied. Reported below: 212 Wis. 2d 642, 570 N. W. 2d 63.

No. 97–1475. YADAV ET AL. *v.* WEST WINDSOR TOWNSHIP. C. A. 3d Cir. Certiorari denied. Reported below: 129 F. 3d 1257.

No. 97–1476. RICHARDSON *v.* DISTRICT OF COLUMBIA COURT OF APPEALS ET AL. C. A. D. C. Cir. Certiorari denied.

No. 97–1480. PRO-FOOTBALL, INC., DBA THE WASHINGTON REDSKINS *v.* HARTFORD ACCIDENT & INDEMNITY CO. C. A. D. C. Cir. Certiorari denied. Reported below: 127 F. 3d 1111.

No. 97–1482. CASE FARMS OF NORTH CAROLINA, INC. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. 4th Cir. Certiorari denied. Reported below: 128 F. 3d 841.

No. 97–1490. ESTATE OF GORDON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 97–1492. WATSON *v.* PACE WEST DIVISION, SUBDIVISION OF THE REGIONAL TRANSPORTATION AUTHORITY. C. A. 7th Cir. Certiorari denied. Reported below: 129 F. 3d 1268.

No. 97–1494. GREB ET AL. *v.* GENERAL MOTORS CORP. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 33.

No. 97–1498. POWELL ET AL. *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 321.

No. 97–1499. LUSK *v.* FEDERAL ADJUSTMENT BUREAU, INC. Ct. App. Ohio, Franklin County. Certiorari denied.

No. 97–1500. JOYCE *v.* CONNECTICUT. Sup. Ct. Conn. Certiorari denied. Reported below: 243 Conn. 282, 705 A. 2d 181.

No. 97–1502. SCHLEI *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 944.

No. 97–1504. THOMPSON *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 47 M. J. 378.

No. 97–1505. CORNISH *v.* COURT OF APPEALS OF MARYLAND ET AL. Ct. App. Md. Certiorari denied.

No. 97–1506. SEALED APPELLEE *v.* SEALED APPELLANT. C. A. 5th Cir. Certiorari denied. Reported below: 130 F. 3d 695.

No. 97–1512. BANKHEAD *v.* MISSISSIPPI ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 119 F. 3d 3.

No. 97–1513. FOX *v.* BANDAG, INC. C. A. 3d Cir. Certiorari denied. Reported below: 124 F. 3d 186.

No. 97–1521. RAZ *v.* BROWN. Ct. App. Wis. Certiorari denied. Reported below: 213 Wis. 2d 296, 570 N. W. 2d 605.

No. 97–1524. FOROOHAR *v.* SUPREME COURT OF ILLINOIS ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 129 F. 3d 119.

No. 97–1525. MITCHELL *v.* MULLIGAN, CHIEF JUSTICE, SUPERIOR COURT OF MASSACHUSETTS. C. A. 1st Cir. Certiorari denied. Reported below: 132 F. 3d 30.

No. 97–1527. RUCK *v.* UNITED TRANSPORTATION UNION, EXECUTIVE BOARD, ET AL. C. A. 6th Cir. Certiorari denied.

No. 97–1529. CAMPBELL *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied. Reported below: 132 F. 3d 53.

No. 97–1531. SHETTY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 130 F. 3d 1324.

No. 97–1538. ALMANZAR DURAN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 131 F. 3d 132.

No. 97–1542. O'KEEFE ET AL. *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 128 F. 3d 885.

No. 97–1552. STOUGHTON TRAILERS, INC. *v.* PACE DESIGN & FAB, INC. C. A. 9th Cir. Certiorari denied. Reported below: 132 F. 3d 39.

No. 97–1559. DOE, INDIVIDUALLY AND IN HER CAPACITY AS ONE OF THE WRONGFUL DEATH BENEFICIARIES OF DOE, DECEASED *v.* MISSISSIPPI BLOOD SERVICES, INC. Sup. Ct. Miss. Certiorari denied. Reported below: 704 So. 2d 1016.

No. 97–1583. REA *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 919.

No. 97–1584. SCHMITZ *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 124 F. 3d 206.

No. 97–1585. AGOSTINO *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 1183.

No. 97–7024. HARGUS *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 128 F. 3d 1358.

No. 97–7039. SKINNER *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied. Reported below: 956 S. W. 2d 532.

No. 97–7116. AUSTIN *v.* BELL, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 126 F. 3d 843.

No. 97–7121. CHAPPELL *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 114 F. 3d 1192.

No. 97–7137. JETT *v.* UNITED STATES. Ct. App. D. C. Certiorari denied.

No. 97–7252. WISE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 125 F. 3d 845.

No. 97–7431. CONCEPCION *v.* IMMIGRATION AND NATURALIZATION SERVICE. C. A. 1st Cir. Certiorari denied.

No. 97–7465. PENA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 125 F. 3d 285.

No. 97–7478. BELL *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 121 F. 3d 712.

No. 97–7492. GREYSON *v.* HAWAII. Sup. Ct. Haw. Certiorari denied. Reported below: 85 Haw. 320, 944 P. 2d 693.

No. 97–7511. LEFKOWITZ *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 125 F. 3d 608.

No. 97–7514. DUMAS *v.* CHICAGO HOUSING AUTHORITY. C. A. 7th Cir. Certiorari denied.

No. 97–7573. MOORE *v.* INDIANA. Sup. Ct. Ind. Certiorari denied. Reported below: 678 N. E. 2d 1258.

No. 97–7738. ROBERTS *v.* BOB EVANS FARMS, INC. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1265.

No. 97–7842. CLEARY *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied. Reported below: 942 P. 2d 736.

No. 97–7843. PLUMMER *v.* PURKETT, SUPERINTENDENT, FARMINGTON CORRECTIONAL CENTER. C. A. 8th Cir. Certiorari denied.

No. 97–7844. ORIAKHI *v.* PARSONS ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 125 F. 3d 852.

No. 97–7861. TOEGEMANN *v.* PROCHASKA ET AL. C. A. 1st Cir. Certiorari denied.

No. 97–7863. VILLACRES *v.* KRAMER, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–7864. WILLIAMS *v.* CARLTON, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 201.

No. 97–7865. WHITE *v.* MCMILLAN ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 128 F. 3d 732.

No. 97–7866. MCBROOM *v.* PUBLIC UTILITIES COMMISSION OF OHIO ET AL. Ct. App. Ohio, Franklin County. Certiorari denied.

No. 97–7867. DUBUC *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 97–7873. WHITE *v.* MCMILLAN ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–7874. ARMSTRONG *v.* ROLM A. SIEMANS CO. ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1258.

No. 97–7877. CARGILL *v.* TURPIN, WARDEN. C. A. 11th Cir. Certiorari denied. Reported below: 120 F. 3d 1366.

No. 97–7880. TERRY *v.* VANCE COUNTY, NORTH CAROLINA, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–7881. HOUSTON *v.* WOODS ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 109 F. 3d 767.

No. 97–7882. GRIFFIN *v.* CITY OF TAMPA, FLORIDA, ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–7884. VALDEZ ET AL. *v.* FONOIMOANA ET AL. Sup. Ct. Haw. Certiorari denied. Reported below: 86 Haw. 17, 946 P. 2d 971.

No. 97–7889. ASPELMEIER *v.* ILLINOIS. App. Ct. Ill., 3d Dist. Certiorari denied.

No. 97–7892. TARR *v.* ESHENBAUGH ET UX. Super. Ct. Pa. Certiorari denied. Reported below: 698 A. 2d 675.

No. 97–7893. ALLARD *v.* ELO, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–7894. SAELEE *v.* CALIFORNIA. Ct. App. Cal., 1st App. Dist. Certiorari denied.

No. 97–7895. CONROD *v.* DAVIS ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 120 F. 3d 92.

No. 97–7898. NIK-KHAH *v.* ZANDI. Ct. App. Kan. Certiorari denied. Reported below: 24 Kan. App. 2d ——, 946 P. 2d 115.

No. 97–7901. MURRAY *v.* UNIVERSITY OF MARYLAND MEDICAL SYSTEMS. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 117.

No. 97–7904. HEARD *v.* IOWA FINANCE AUTHORITY ET AL. Dist. Ct. Iowa, Polk County. Certiorari denied.

No. 97–7907. HOFFMANN *v.* GSF INVESTMENT CO. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 697 So. 2d 855.

No. 97–7912. HENRY *v.* LANGNER & ASSOCIATES, INC. C. A. 9th Cir. Certiorari denied. Reported below: 112 F. 3d 516.

No. 97–7913. GIBSON *v.* MURRAY ET AL. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–7915. FOLLETT *v.* ARIZONA. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 715.

No. 97–7916. ERDHEIM *v.* THALER. C. A. 2d Cir. Certiorari denied.

No. 97–7920. SAMPSON *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 97–7924. LINCOLN *v.* HEE ET AL. Sup. Ct. Haw. Certiorari denied. Reported below: 86 Haw. 19, 946 P. 2d 973.

No. 97–7926. KARASEK *v.* COURT OF COMMON PLEAS OF OHIO, MONTGOMERY COUNTY. Ct. App. Ohio, Montgomery County. Certiorari denied. Reported below: 119 Ohio App. 3d 615, 695 N. E. 2d 1209.

No. 97–7930. ATWOOD *v.* ARIZONA. Super. Ct. Ariz., Pima County. Certiorari denied.

No. 97–7937. REID *v.* CITY OF FLINT ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 121 F. 3d 709.

No. 97–7945. MCDONALD *v.* TENNESSEE. Sup. Ct. Tenn. Certiorari denied.

No. 97–7953. BURTON *v.* WASHINGTON. Ct. App. Wash. Certiorari denied. Reported below: 86 Wash. App. 1035.

No. 97–7960. LITZENBERG *v.* LITZENBERG. C. A. 4th Cir. Certiorari denied. Reported below: 125 F. 3d 848.

No. 97–7964. AZEEZ *v.* DUNCIL, WARDEN. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1060.

No. 97–7965. POLAND *v.* STEWART, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTION, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 117 F. 3d 1094.

No. 97–7966. BEWRY *v.* HARTFORD POLICE DEPARTMENT ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 125 F. 3d 843.

No. 97–7969. CARPENTER *v.* OHIO. Ct. App. Ohio, Cuyahoga County. Certiorari denied. Reported below: 122 Ohio App. 3d 16, 701 N. E. 2d 10.

No. 97–7973. BERRYMAN *v.* COLBERT. C. A. 6th Cir. Certiorari denied.

No. 97–7977. GATES *v.* UNITED STATES DISTRICT COURT FOR THE CENTRAL DISTRICT OF CALIFORNIA. C. A. 9th Cir. Certiorari denied.

No. 97–7978. GOODROAD *v.* FITZGERALD ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 121 F. 3d 712.

No. 97–7983. HALL *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 549 Pa. 269, 701 A. 2d 190.

No. 97–7985. DeBlase *v.* Roth, Warden, et al. C. A. 3d Cir. Certiorari denied.

No. 97–7986. Flanagan *v.* Nevada; and
No. 97–8014. Moore *v.* Nevada. Sup. Ct. Nev. Certiorari denied. Reported below: 112 Nev. 1409, 930 P. 2d 691.

No. 97–7988. Haynes *v.* Kepka et al. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 151.

No. 97–7989. Evans *v.* Hartwig, Warden. C. A. 7th Cir. Certiorari denied.

No. 97–7990. Hawkins *v.* Pennsylvania. Sup. Ct. Pa. Certiorari denied. Reported below: 549 Pa. 352, 701 A. 2d 492.

No. 97–7993. Chandler *v.* Florida. Sup. Ct. Fla. Certiorari denied. Reported below: 702 So. 2d 186.

No. 97–8002. Tapia *v.* Henigman. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 152.

No. 97–8007. Jackson *v.* Walker, Superintendent, Auburn Correctional Facility. C. A. 2d Cir. Certiorari denied.

No. 97–8013. Moore *v.* Florida. Sup. Ct. Fla. Certiorari denied. Reported below: 701 So. 2d 545.

No. 97–8023. Baze *v.* Kentucky. Sup. Ct. Ky. Certiorari denied. Reported below: 965 S. W. 2d 817.

No. 97–8029. Mason-Neubarth *v.* Dameron Hospital Assn. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 97–8031. Kaluna *v.* Kaneshiro, Director, Hawaii Department of Public Safety. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 146.

No. 97–8032. Wheatley *v.* Oregon. Ct. App. Ore. Certiorari denied. Reported below: 150 Ore. App. 370, 944 P. 2d 1002.

No. 97–8033. Bland *v.* Tennessee. Sup. Ct. Tenn. Certiorari denied. Reported below: 958 S. W. 2d 651.

No. 97–8035. Sparkman *v.* Texas. Ct. App. Tex., 12th Dist. Certiorari denied. Reported below: 968 S. W. 2d 373.

No. 97–8046. HAYES *v.* WESTERN WEIGHING AND INSPECTION BUREAU. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 607.

No. 97–8058. MCLAVEY *v.* OREGON. Ct. App. Ore. Certiorari denied. Reported below: 149 Ore. App. 779, 944 P. 2d 1003.

No. 97–8060. ENOCH *v.* ILLINOIS. Sup. Ct. Ill. Certiorari denied.

No. 97–8068. SHELLITO *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 701 So. 2d 837.

No. 97–8073. GARCIA *v.* DATILLO ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 117 F. 3d 1428.

No. 97–8103. KIDD *v.* ILLINOIS. Sup. Ct. Ill. Certiorari denied. Reported below: 178 Ill. 2d 92, 687 N. E. 2d 945.

No. 97–8124. WEYMAN *v.* MIFFLIN COUNTY, PENNSYLVANIA, ET AL. Sup. Ct. Pa. Certiorari denied.

No. 97–8128. M. L. MC., A MINOR *v.* ILLINOIS. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 289 Ill. App. 3d 1149, 713 N. E. 2d 838.

No. 97–8137. CAMPBELL *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 703 So. 2d 475.

No. 97–8146. SANDOVAL MACIAS *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 16 Cal. 4th 739, 941 P. 2d 838.

No. 97–8147. LEE *v.* KYLER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AND DIAGNOSTIC/CLASSIFICATION CENTER AT CAMP HILL, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 142 F. 3d 428.

No. 97–8163. SHAUGHNESSY *v.* CITY OF LACONIA. Sup. Ct. N. H. Certiorari denied.

No. 97–8169. CROOKS *v.* WILLIAMS. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 697.

No. 97–8185. POWELL *v.* DEPARTMENT OF THE AIR FORCE. C. A. Fed. Cir. Certiorari denied. Reported below: 132 F. 3d 54.

No. 97–8199. UMPHFREY *v.* DORMIRE, SUPERINTENDENT, JEFFERSON CITY CORRECTIONAL CENTER. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 923.

No. 97–8201. BROWN *v.* WILSON ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–8222. COLE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 113 F. 3d 1230.

No. 97–8226. FEENEY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 767.

No. 97–8240. DEVER *v.* OHIO. Sup. Ct. Ohio. Certiorari denied. Reported below: 80 Ohio St. 3d 1425, 685 N. E. 2d 238.

No. 97–8249. MICHAUD *v.* MAINE. Sup. Jud. Ct. Me. Certiorari denied.

No. 97–8259. HOLLINGSWORTH *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1063.

No. 97–8261. FLORY-OUTTEN *v.* OFFICE OF PERSONNEL MANAGEMENT. C. A. Fed. Cir. Certiorari denied. Reported below: 129 F. 3d 135.

No. 97–8263. HESTERLEE *v.* GOODWIN, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 97–8264. CALDWELL *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 97–8267. AARON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 97–8273. SMITH *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 141 F. 3d 1155.

No. 97–8277. WARREN *v.* BELL, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–8283. TERRY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 919.

No. 97–8285. SMITH *v.* TEXAS. Ct. App. Tex., 12th Dist. Certiorari denied.

No. 97–8290. GUESS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 368.

No. 97–8292. GASKELL *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 134 F. 3d 1039.

No. 97–8293. JONES *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 137.

No. 97–8294. KEY *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 131 F. 3d 132 and 141 F. 3d 394.

No. 97–8296. NADEAU *v.* INTERNAL REVENUE SERVICE. C. A. 1st Cir. Certiorari denied. Reported below: 121 F. 3d 695.

No. 97–8297. KRITZMAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 367.

No. 97–8300. CROCHRAN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 129 F. 3d 615.

No. 97–8301. MCGRIFF *v.* UNITED STATES. Ct. App. D. C. Certiorari denied. Reported below: 705 A. 2d 282.

No. 97–8310. JOHNSON *v.* CRIST, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 97–8313. CARROLL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 137 F. 3d 1352.

No. 97–8314. SARICH *v.* UNITED STATES; and
No. 97–8363. GUERRIERI *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 320.

No. 97–8319. BREWSTER *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 127 F. 3d 22.

No. 97–8322. LEACH *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 97–8326. WALDEN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 133 F. 3d 931.

No. 97–8327. WATSON *v.* UNITED STATES. Ct. App. D. C. Certiorari denied.

No. 97–8331. CHILTON *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 1392.

No. 97–8333. MODGLIN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 221.

No. 97–8334. WALLACE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 1460.

No. 97–8336. VENTURA *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 44.

No. 97–8337. CONLEY *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 1387.

No. 97–8338. BURNS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 1460.

No. 97–8339. MITCHELL *v.* ARTUZ, SUPERINTENDENT, GREEN HAVEN CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 97–8342. BULLOCK *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 129 F. 3d 1256.

No. 97–8344. SPENCE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 125 F. 3d 1192.

No. 97–8346. PHILLIPS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 97–8347. SMITH *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 44.

No. 97–8349. JOOST *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 133 F. 3d 125.

No. 97–8350. JOHNSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 367.

No. 97–8351. JOHNSON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 124 F. 3d 209.

No. 97–8354. NUNES *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 767.

No. 97–8366. HERNANDEZ *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 1460.

No. 97–8369. PERALTA-REYES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 131 F. 3d 956.

No. 97–8381. REYNOLDS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 608.

No. 97–8391. WICKS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 383.

No. 97–8394. MESSINA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 131 F. 3d 36.

No. 97–8396. MOORE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 134 F. 3d 386.

No. 97–8399. JOHNSON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 133 F. 3d 930.

No. 97–8400. MORRIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 1136.

No. 97–8403. BRAWNER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 653.

No. 97–8404. BAGAROZY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 766.

No. 97–8407. WILLIAMS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 112 F. 3d 518.

No. 97–8417. RICH *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 135 F. 3d 140.

No. 97–8444. GILBERT *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 130 F. 3d 1458.

No. 97–1112. BELL, WARDEN *v.* AUSTIN. C. A. 6th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 126 F. 3d 843.

No. 97–1159. BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER *v.* CLEMMONS. C. A. 8th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 124 F. 3d 944.

No. 97–1205. FLORIDA *v.* ESCOBAR. Sup. Ct. Fla. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 699 So. 2d 984.

No. 97–1201. REGENTS OF THE UNIVERSITY OF CALIFORNIA *v.* ELI LILLY & CO. C. A. Fed. Cir. Certiorari denied. JUSTICE O'CONNOR took no part in the consideration or decision of this petition. Reported below: 119 F. 3d 1559.

No. 97–1380. ELI LILLY & CO. *v.* REGENTS OF THE UNIVERSITY OF CALIFORNIA. C. A. Fed. Cir. Certiorari denied. JUSTICE O'CONNOR took no part in the consideration or decision of this petition. Reported below: 119 F. 3d 1559.

No. 97–1343. LAWVERE ET UX. *v.* EAST LYCOMING SCHOOL DISTRICT ET AL. C. A. 3d Cir. Motion of petitioners Scott Lawvere et ux. to strike a brief in opposition denied. Certiorari denied. Reported below: 133 F. 3d 910.

No. 97–7868. GORE *v.* THE ENTERPRISE. C. A. 11th Cir. Certiorari before judgment denied.

No. 97–8155 (A–658). BROCKMAN *v.* SWEETWATER COUNTY SCHOOL DISTRICT NO. 1. C. A. 10th Cir. Application for stay, addressed to THE CHIEF JUSTICE and referred to the Court, denied. Certiorari denied. Reported below: 131 F. 3d 151.

*Rehearing Denied*

No. 97–944. CRADDOCK ET AL. *v.* CIRCUIT COURT OF VIRGINIA, PRINCE WILLIAM COUNTY, 522 U. S. 1111;

No. 97–1042. HIMBER *v.* POWERS ET AL., 522 U. S. 1092;

No. 97–1046. MCDONALD *v.* ST. LOUIS SOUTHWESTERN RAILROAD, 522 U. S. 1115;

No. 97–1076. AMERICAN RELOCATION NETWORK INTERNATIONAL, INC. *v.* WAL-MART STORES, INC., ET AL., 522 U. S. 1116;

No. 97–1079. STALLWORTH *v.* ALABAMA, 522 U. S. 1116;

No. 97–1093. SHIFMAN *v.* UNITED STATES, 522 U. S. 1116;

No. 97–6173. WELLS *v.* WELLS, 522 U. S. 1001;

No. 97–6382. JACKSON *v.* ANDERSON, SUPERINTENDENT, MISSISSIPPI STATE PENITENTIARY, 522 U. S. 1119;

No. 97–6504. MCCLAIN *v.* PRICE, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT PITTSBURGH, ET AL., 522 U. S. 1055;

No. 97–6610. BISHOP *v.* GEORGIA, 522 U. S. 1119;

No. 97–6697. SCOTT *v.* BRUNDAGE, 522 U. S. 1059;

No. 97–6706. JOZAITIS *v.* FORT DEARBORN LIFE INSURANCE CO., 522 U. S. 1120;

No. 97–6806. MITCHELL *v.* REES, WARDEN, 522 U. S. 1120;

No. 97–6851. SIMPSON *v.* FLORIDA, 522 U. S. 1093;

No. 97–6872. BATES *v.* UNITED STATES, 522 U. S. 1062;

No. 97–7076. RANDALL *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION, 522 U. S. 1123;

No. 97–7147. BRADFORD *v.* LOUISIANA STATE UNIVERSITY MEDICAL CENTER ET AL., 522 U. S. 1125;

No. 97–7157. HOLMAN *v.* PAGE, WARDEN, 522 U. S. 1150;

No. 97–7194. BAADE *v.* COLUMBIA HOSPITAL FOR WOMEN ET AL., 522 U. S. 1127;

No. 97–7240. THOMASON *v.* GEORGIA, 522 U. S. 1129;

No. 97–7277. BROWN *v.* UNITED STATES, 522 U. S. 1130;

No. 97–7293. TAVAKOLI-NOURI *v.* WASHINGTON HOSPITAL CENTER ET AL., 522 U. S. 1150;

No. 97–7323. SOMMERS *v.* KENTUCKY, 522 U. S. 1132;

No. 97–7329. KESELICA *v.* VIRGINIA, 522 U. S. 1132;

No. 97–7394. SHARP *v.* MAKOWSKI, WARDEN, *ante*, p. 1009;

No. 97–7449. RICKS *v.* THOMAS ET AL., 522 U. S. 1136;

No. 97–7587. WILKINSON *v.* SUMNER, MAGISTRATE JUDGE, UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF MISSISSIPPI, *ante*, p. 1028; and

No. 97–7610. HAAKE *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL., 522 U. S. 1140. Petitions for rehearing denied.

No. 97–699. COOPER *v.* UNITED STATES, 522 U. S. 1089. Motion of petitioner for leave to proceed further herein *in forma pauperis* granted. Petition for rehearing denied.

APRIL 21, 1998

*Miscellaneous Orders*

No. A–794. SWEET *v.* MISSOURI. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied.

No. 97–8769 (A–793). IN RE VILLAFUERTE. Application for stay of execution of sentence of death, presented to JUSTICE O'CONNOR, and by her referred to the Court, denied. Petition for writ of habeas corpus denied.

*Certiorari Denied*

No. 97–8717 (A–785). VILLAFUERTE *v.* ARIZONA. Sup. Ct. Ariz. Application for stay of execution of sentence of death, presented to JUSTICE O'CONNOR, and by her referred to the Court, denied. Certiorari denied.

APRIL 22, 1998

*Miscellaneous Order*

No. 97–8742 (A–784). IN RE CANNON. Application for stay of execution of sentence of death, presented to JUSTICE SCALIA, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

APRIL 24, 1998

*Miscellaneous Orders.* (For the Court's orders prescribing amendments to the Federal Rules of Appellate Procedure, see *post,* p. 1149; amendments to the Federal Rules of Civil Procedure, see *post,* p. 1223; amendments to the Federal Rules of Criminal Procedure, see *post,* p. 1229; and amendments to the Federal Rules of Evidence, see *post,* p. 1237.)

APRIL 27, 1998

*Certiorari Granted—Vacated and Remanded*

No. 96–1936. FAIRPORT INTERNATIONAL EXPLORATION, INC. *v.* SHIPWRECKED VESSEL KNOWN AS THE CAPTAIN LAWRENCE, IN REM, ET AL. C. A. 6th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *California* v. *Deep Sea Research, Inc., ante,* p. 491. Reported below: 105 F. 3d 1078.

*Miscellaneous Orders*

No. A–684 (97–1688). COLORADO *v.* ROMERO. Sup. Ct. Colo. Application for stay, addressed to JUSTICE O'CONNOR and referred to the Court, denied.

No. A–788. HALE *v.* ARKANSAS. Application for stay of state court proceedings, addressed to JUSTICE SOUTER and referred to the Court, denied.

No. D–1909. IN RE DISBARMENT OF BERNSTEIN. Disbarment entered. [For earlier order herein, see 522 U. S. 1103.]

No. D–1910. IN RE DISBARMENT OF CARANCHINI. Further consideration of response to the rule to show cause deferred. [For earlier order herein, see 522 U. S. 1104.]

No. D–1913. IN RE DISBARMENT OF SHELDRAKE. Disbarment entered. [For earlier order herein, see 522 U. S. 1104.]

No. D–1914. IN RE DISBARMENT OF GURSTEL. Disbarment entered. [For earlier order herein, see 522 U. S. 1104.]

No. D–1916. IN RE DISBARMENT OF CAMPBELL. Disbarment entered. [For earlier order herein, see 522 U. S. 1104.]

No. D–1917. IN RE DISBARMENT OF BARTON. Disbarment entered. [For earlier order herein, see 522 U. S. 1145.]

No. D–1942. IN RE DISBARMENT OF COLLINS. Ephraim Collins, of Boca Raton, Fla., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1943. IN RE DISBARMENT OF KANTOR. Stanley Lewis Kantor, of New York, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1944. IN RE DISBARMENT OF HALL. Sylvia E. Hall, of Deep Water, N. J., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

No. M–66. ASHIEGBU *v.* GRAY ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 97–8191. TORAIN *v.* SIEMENS ROLM COMMUNICATIONS, INC. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until May 18, 1998, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 97–1633. IN RE COSSETT, DBA COSSETT CONSTRUCTION CO., INC. Sup. Ct. Ohio. Petition for writ of common-law certio-

rari denied. Reported below: 81 Ohio St. 3d 1468, 690 N. E. 2d 1288.

No. 97–8542. IN RE WAGNER. Petition for writ of mandamus denied.

*Probable Jurisdiction Noted*

No. 97–1396. LOPEZ ET AL. *v.* MONTEREY COUNTY ET AL. Appeal from D. C. N. D. Cal. Probable jurisdiction noted.

*Certiorari Granted*

No. 97–1287. HUGHES AIRCRAFT CO. ET AL. *v.* JACOBSON ET AL. C. A. 9th Cir. Motions of Hughes Aircraft Retirees et al., Chamber of Commerce of the United States et al., and ERISA Industry Committee for leave to file briefs as *amici curiae* granted. Certiorari granted. Reported below: 105 F. 3d 1288 and 128 F. 3d 1305.

No. 97–7164. HOLLOWAY, AKA ALI *v.* UNITED STATES. C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted. Reported below: 126 F. 3d 82.

*Certiorari Denied.* (See also No. 97–1633, *supra.*)

No. 96–1448. BEMIS *v.* RMS LUSITANIA. C. A. 4th Cir. Certiorari denied. Reported below: 99 F. 3d 1129.

No. 97–928. BILZERIAN *v.* HSSM #7 LIMITED PARTNERSHIP. C. A. 11th Cir. Certiorari denied. Reported below: 100 F. 3d 886.

No. 97–1025. HESS ET AL. *v.* FEDERAL DEPOSIT INSURANCE CORPORATION, AS RECEIVER FOR SOUTHEAST BANK, N. A., ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 120 F. 3d 1140.

No. 97–1178. ROCKWELL INTERNATIONAL CORP. *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 124 F. 3d 1194.

No. 97–1216. DOWD, FOR HIMSELF AND ALL SIMILARLY SITUATED DISABLED VETERANS *v.* HINCHMAN, ACTING COMPTROLLER

GENERAL, ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 124 F. 3d 229.

No. 97–1218. NATIONAL STEEL & SHIPBUILDING CO. *v.* SMITH ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 751.

No. 97–1229. UNITED STATES *v.* NEW YORK LIFE INSURANCE CO. C. A. Fed. Cir. Certiorari denied. Reported below: 118 F. 3d 1553.

No. 97–1259. METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY *v.* WASTE MANAGEMENT, INC. OF TENNESSEE. C. A. 6th Cir. Certiorari denied. Reported below: 130 F. 3d 731.

No. 97–1298. EASTMAN KODAK CO. *v.* IMAGE TECHNICAL SERVICES, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 1195.

No. 97–1342. CULLINAN ET AL. *v.* ABRAMSON ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 128 F. 3d 301.

No. 97–1364. SPRINGSTON *v.* CONSOLIDATED RAIL CORPORATION ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 130 F. 3d 241.

No. 97–1381. STARK ET AL. *v.* INDEPENDENT SCHOOL DISTRICT NO. 640. C. A. 8th Cir. Certiorari denied. Reported below: 123 F. 3d 1068.

No. 97–1382. SCHUDEL ET AL. *v.* GENERAL ELECTRIC CO. ET AL.;

No. 97–1386. HOPKINS ET VIR *v.* GENERAL ELECTRIC CO. ET AL.; and

No. 97–1410. CARLSON *v.* GENERAL ELECTRIC CO. ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 120 F. 3d 991.

No. 97–1384. MILLER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 117 F. 3d 1414.

No. 97–1389. DELOREAN ET AL. *v.* MORGANROTH & MORGANROTH ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 123 F. 3d 374.

No. 97–1395. PETRO STOPPING CENTERS, L. P. *v.* JAMES RIVER PETROLEUM, INC. C. A. 4th Cir. Certiorari denied. Reported below: 130 F. 3d 88.

No. 97–1406. KIRLIN *v.* IOWA SUPREME COURT BOARD OF PROFESSIONAL ETHICS AND CONDUCT. Sup. Ct. Iowa. Certiorari denied. Reported below: 570 N. W. 2d 643.

No. 97–1420. LAMADRID ALVAREZ *v.* LAMADRID ALVAREZ ET AL. Ct. App. P. R. Certiorari denied.

No. 97–1421. WORLEY *v.* PENNSYLVANIA PUBLIC SCHOOL EMPLOYEES' RETIREMENT BOARD. Commw. Ct. Pa. Certiorari denied. Reported below: 689 A. 2d 334.

No. 97–1423. SMITH *v.* KAISER PERMANENTE MEDICAL GROUP, INC. Sup. Ct. Cal. Certiorari denied.

No. 97–1424. TOLERSON *v.* AUBURN STEEL CO., INC., ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 131 F. 3d 1255.

No. 97–1429. RODITIS ET UX. *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 122 F. 3d 108.

No. 97–1432. GONZALEZ FIGUEROA ET AL. *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 125 F. 3d 841.

No. 97–1439. OLIVER *v.* ARKANSAS. Ct. App. Ark. Certiorari denied. Reported below: 59 Ark. App. xix.

No. 97–1449. GUZMAN *v.* MILEY, DEPUTY REGIONAL DIRECTOR, DRUG ENFORCEMENT ADMINISTRATION, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 197.

No. 97–1461. LITTLE ROCK NEWSPAPERS, INC. *v.* FITZHUGH. Sup. Ct. Ark. Certiorari denied. Reported below: 330 Ark. 561, 954 S. W. 2d 914.

No. 97–1463. SHELL OFFSHORE, INC., ET AL. *v.* DIRECTOR, OFFICE OF WORKERS' COMPENSATION PROGRAMS, DEPARTMENT OF LABOR, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 122 F. 3d 312.

No. 97–1473. FABRIC ET AL. *v.* PROVIDENT LIFE & ACCIDENT INSURANCE CO. C. A. 11th Cir. Certiorari denied. Reported below: 115 F. 3d 908.

No. 97–1484. GOOD NEWS COMMUNICATIONS, INC. *v.* UNITED STATES PATENT AND TRADEMARK OFFICE. C. A. Fed. Cir. Certiorari denied. Reported below: 132 F. 3d 54.

No. 97–1486. GULF PARK WATER CO., INC. *v.* MISSISSIPPI PUBLIC SERVICE COMMISSION. Sup. Ct. Miss. Certiorari denied. Reported below: 700 So. 2d 330.

No. 97–1528. DOE ET AL. *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied. Reported below: 302 N. J. Super. 255, 695 A. 2d 319.

No. 97–1558. SMITH *v.* MCBRAYER, MCGINNIS, LESLIE & KIRKLAND ET AL. Ct. App. Ky. Certiorari denied.

No. 97–1561. ARNOLD *v.* BOATMEN'S TRUST CO. C. A. 8th Cir. Certiorari denied. Reported below: 124 F. 3d 207.

No. 97–1580. TENZER *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 127 F. 3d 222.

No. 97–1593. CHAHIL *v.* GLICKMAN, SECRETARY OF AGRICULTURE. C. A. 4th Cir. Certiorari denied. Reported below: 125 F. 3d 847.

No. 97–1595. JOHNSON BROTHERS WHOLESALE LIQUOR CO., INC. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 922.

No. 97–1596. FERRANTI *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 135 F. 3d 116.

No. 97–1598. NUNEZ GUTIERREZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1075.

No. 97–1605. LARUE ET AL. *v.* UNITED STATES ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 124 F. 3d 204.

No. 97–1607. DIXON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 192.

No. 97–1611. COUSINO *v.* ELLIOTT, PERSONAL REPRESENTATIVE OF THE ESTATE OF COUSINO, DECEASED, ET AL. Ct. App. Mich. Certiorari denied.

No. 97–7677. WILSON *v.* ROGERS, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 125 F. 3d 856.

No. 97–7762. LOMAX *v.* CITY OF JOPLIN, MISSOURI, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 129 F. 3d 122.

No. 97–7822. NARRON *v.* VANCE ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 610.

No. 97–7856. FRANQUI *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 1312.

No. 97–7857. FRANQUI *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 1332.

No. 97–8011. BRADFORD *v.* CAMBRA, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8015. MCDONALD *v.* NEVADA. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 126.

No. 97–8027. SAYMAN *v.* NUSSBAUM ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–8028. MCBRIDE *v.* TEXAS. Ct. App. Tex., 3d Dist. Certiorari denied.

No. 97–8030. SIDDEN *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 347 N. C. 218, 491 S. E. 2d 225.

No. 97–8034. REDD *v.* MARSHALL, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 110 F. 3d 69.

No. 97–8036. MARK *v.* EVANS, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 130.

No. 97–8037. NICHOLS *v.* HOLT, WARDEN, ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–8043. HUGHES *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied. Reported below: 328 S. C. 146, 493 S. E. 2d 821.

No. 97–8048. HOFFMAN *v.* DAL BELLO. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–8056. JORDAN *v.* ROUSE ET AL. C. A. 7th Cir. Certiorari denied.

No. 97–8059. SATHER *v.* WASHINGTON. Ct. App. Wash. Certiorari denied. Reported below: 86 Wash. App. 127, 936 P. 2d 36.

No. 97–8061. ALLS *v.* QUESTCARE, INC., ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–8067. CHARLES *v.* CAIN, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 97–8071. ABIDEKUN *v.* COMMISSIONER OF SOCIAL SERVICES OF THE CITY OF NEW YORK ET AL. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 237 App. Div. 2d 294, 654 N. Y. S. 2d 806.

No. 97–8075. DENARD *v.* TERHUNE, DIRECTOR, CALIFORNIA DEPARTMENT OF CORRECTIONS. C. A. 9th Cir. Certiorari denied.

No. 97–8082. BARUCH *v.* SMITH, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 91 F. 3d 150.

No. 97–8084. MIKKO *v.* PITCHER, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–8087. DOVE *v.* DAVIS, CHAIRMAN, MARYLAND PAROLE COMMISSION, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1060.

No. 97–8090. ANGEL *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 97–8102. BRANCH *v.* MINNESOTA ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 130 F. 3d 305.

No. 97–8107. MADEJ *v.* ILLINOIS. Sup. Ct. Ill. Certiorari denied. Reported below: 177 Ill. 2d 116, 685 N. E. 2d 908.

No. 97–8129. MILLSON *v.* NEW YORK. Ct. App. N. Y. Certiorari denied. Reported below: 91 N. Y. 2d 877, 691 N. E. 2d 647.

No. 97–8144. VOLKOVA *v.* IMMIGRATION AND NATURALIZATION SERVICE. C. A. 9th Cir. Certiorari denied.

No. 97–8151. TELLIER *v.* PETRILLO ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 133 F. 3d 907.

No. 97–8177. STOKES *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 97–8187. TRAVIS-BARKER *v.* U. S. BANK OF WASHINGTON. C. A. 9th Cir. Certiorari denied. Reported below: 124 F. 3d 212.

No. 97–8192. MARTINEZ *v.* IMMIGRATION AND NATURALIZATION SERVICE. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 140.

No. 97–8194. MENDOZA *v.* SSC&B LINTAS, NEW YORK. C. A. 2d Cir. Certiorari denied. Reported below: 125 F. 3d 844.

No. 97–8196. JONES *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 97–8239. ENGLERT *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied. Reported below: 132 F. 3d 54.

No. 97–8242. FORT *v.* HOWES ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1061.

No. 97–8272. CARTER *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 452.

No. 97–8280. NELSON *v.* CORBETT ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–8287. CEMINCHUK *v.* COHEN, SECRETARY OF DEFENSE, ET AL. C. A. D. C. Cir. Certiorari denied.

No. 97–8311. RICHARDSON *v.* SOUTH CAROLINA. Ct. App. S. C. Certiorari denied.

No. 97–8312. BRAY *v.* WEST, SECRETARY OF THE ARMY. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 133.

No. 97–8318. TATLIS *v.* DUNCAN, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 97–8321. ORSINI *v.* ARKANSAS. Sup. Ct. Ark. Certiorari denied. Reported below: 331 Ark. xxiv.

No. 97–8323. LANDERS *v.* KANSAS. Ct. App. Kan. Certiorari denied. Reported below: 24 Kan. App. 2d ——, 945 P. 2d 888.

No. 97–8359. ALADEKOBA ET AL. *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1260.

No. 97–8360. DELGADO *v.* BARRERAS, WARDEN. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 42.

No. 97–8365. EVANS *v.* DALTON, SECRETARY OF THE NAVY, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 612.

No. 97–8378. RHODEN *v.* SUNDQUIST, GOVERNOR OF TENNESSEE, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 127 F. 3d 1103.

No. 97–8393. BREWER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 134 F. 3d 386.

No. 97–8406. WILLIAMS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 920.

No. 97–8414. OWENS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 136 F. 3d 1332.

No. 97–8418. SMITH *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 766.

No. 97–8419. PASTRANO *v.* UNITED STATES; and
No. 97–8532. MENDIOLA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: No. 97–8419, 129 F. 3d 611; No. 97–8532, 129 F. 3d 611 and 612.

No. 97–8421. CASTRO *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 129 F. 3d 226.

No. 97–8422. BELHOMME *v.* WIDNALL, SECRETARY OF THE AIR FORCE. C. A. 10th Cir. Certiorari denied. Reported below: 127 F. 3d 1214.

No. 97–8430. MCCORD *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 132 F. 3d 41.

No. 97–8433. COOPER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 125 F. 3d 849.

No. 97–8436. HARDWELL *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 139 F. 3d 913.

No. 97–8438. DAVENPORT *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1107.

No. 97–8439. DAMM *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 636.

No. 97–8440. FINCK *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 767.

No. 97–8441. HARDEMAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 135 F. 3d 140.

No. 97–8443. HEBERT *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 514.

No. 97–8445. GANGLER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 125 F. 3d 856.

No. 97–8448. MCCOWAN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 97–8449. MAASS *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 44.

No. 97–8454. LACY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 119 F. 3d 742.

No. 97–8459. SALLAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 610.

No. 97–8474. REED *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 95 F. 3d 48.

No. 97–8481. ATKINS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 142 F. 3d 437.

No. 97–8483. WYNN *v.* UNITED STATES. Ct. App. D. C. Certiorari denied.

No. 97–8487. QUEEN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 132 F. 3d 991.

No. 97–8488. MALLETT *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 134 F. 3d 373.

No. 97–8491. LATOUF *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 320.

No. 97–8502. GUTIERREZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 134 F. 3d 380.

No. 97–8504. HARRIS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 134 F. 3d 386.

No. 97–8505. GOODE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 132 F. 3d 41.

No. 97–8508. HENDERSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 97–8510. SELF *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 132 F. 3d 1039.

No. 97–8512. BENITEZ *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 134 F. 3d 385.

No. 97–8516. ENIGWE *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 141 F. 3d 1155.

No. 97–8523. SLIGH *v.* RUNYON, POSTMASTER GENERAL. C. A. 4th Cir. Certiorari denied. Reported below: 127 F. 3d 1100.

No. 97–8529. NWANERI *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 118.

No. 97–8538. OKORO *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 142 F. 3d 430.

No. 97–8543. UDELL *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 132 F. 3d 41.

No. 97–8545. AHMAD *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 97–8548. HILL *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 221.

No. 97–8549. GRAVES *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 97–1403. MANOR ET UX. *v.* NESTLE FOOD CO. Sup. Ct. Wash. Certiorari denied. JUSTICE O'CONNOR took no part in the consideration or decision of this petition. Reported below: 131 Wash. 2d 439, 932 P. 2d 628.

No. 97–1414. CALDERON, WARDEN *v.* MCDOWELL. C. A. 9th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 130 F. 3d 833.

No. 97–1448. RATELLE, WARDEN, ET AL. *v.* FARMER. C. A. 9th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 131 F. 3d 146.

No. 97–8042. DIAS *v.* BOGINS. C. A. 1st Cir. Certiorari denied. JUSTICE SOUTER took no part in the consideration or decision of this petition. Reported below: 134 F. 3d 361.

*Rehearing Denied*

No. 97–1107. LAUGHLIN ET AL. *v.* PEROT ET AL., 522 U. S. 1148;
No. 97–1143. IN RE RICHARDSON, 522 U. S. 1118;
No. 97–1186. MIZELL *v.* UNITED STATES, *ante*, p. 1005;
No. 97–6691. ONE JUVENILE MALE *v.* UNITED STATES, *ante*, p. 1007;
No. 97–6836. WEE ET UX. *v.* ANDREWS ET AL., *ante*, p. 1007;
No. 97–6980. YOUNG *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF TEXAS, 522 U. S. 1121;
No. 97–7009. JOHNSON *v.* VAUGHN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GRATERFORD, ET AL., 522 U. S. 1122;
No. 97–7013. MORRIS *v.* BELL, WARDEN, 522 U. S. 1149;
No. 97–7339. LAWRENCE *v.* EVANS, WARDEN, *ante*, p. 1007;
No. 97–7399. WHITE *v.* SHEESLEY, *ante*, p. 1009;
No. 97–7426. WHITE *v.* TATE, WARDEN, *ante*, p. 1009;
No. 97–7684. ADAMS *v.* UNITED STATES, 522 U. S. 1152; and
No. 97–7686. LOWERY *v.* UNITED STATES, 522 U. S. 1152. Petitions for rehearing denied.

APRIL 28, 1998

*Miscellaneous Order*

No. A–801. MCFARLAND *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. Application for certificate of probable cause and stay of execution of sentence of death, presented to JUSTICE SCALIA, and by him referred to the Court, denied. JUSTICE STEVENS and JUSTICE GINSBURG would grant the application for stay of execution.

*Certiorari Denied*

No. 97–8397 (A–733). McFarland *v.* Johnson, Director, Texas Department of Criminal Justice, Institutional Division. C. A. 5th Cir. Application for stay of execution of sentence of death, presented to Justice Scalia, and by him referred to the Court, denied. Certiorari denied. Justice Stevens and Justice Ginsburg would grant the application for stay of execution. Reported below: 137 F. 3d 1352.

May 4, 1998

*Miscellaneous Orders*

No. D–1945. In re Disbarment of Sanborn. Thomas Herbert Sanborn, of Amherst, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1946. In re Disbarment of Blumenthal. Howard Earl Blumenthal, of Marina Del Rey, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1947. In re Disbarment of Krupa. Stanley Michael Krupa, of Middletown, Conn., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1948. In re Disbarment of Perlman. David H. Perlman, of Brooklyn, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1949. In re Disbarment of Meyer. Stanley Marvin Meyer, of Merrick, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1950. IN RE DISBARMENT OF BOXER. Jeffrey V. Boxer, of Wellesley, Mass., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. M–23. IN RE DOE. Further consideration of motion to unseal the petition for writ of certiorari lodged under seal deferred. [For earlier order herein, see 522 U. S. 946.]

No. M–67. BRUCE *v.* UNITED STATES;
No. M–68. FARRAKHAN ET AL. *v.* N. Y. P. HOLDINGS ET AL.;
No. M–69. GREENBERG *v.* GORDON ET AL.; and
No. M–70. ENGELS *v.* WALDRUP ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 97–7385. IN RE COOPER;
No. 97–7386. IN RE COOPER;
No. 97–7387. IN RE COOPER; and
No. 97–7388. IN RE COOPER. Motions of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [*ante,* p. 1018] denied.

No. 97–7647. IN RE LITZENBERG; and
No. 97–8195. IN RE LITZENBERG. Motions of petitioner for leave to proceed *in forma pauperis* denied. See this Court's Rule 39.8. Petitioner is allowed until May 26, 1998, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 97–8257. IN RE JOHNSON; and
No. 97–8618. IN RE GREEN. Petitions for writs of habeas corpus denied.

No. 97–8541. IN RE VERBECK. Petition for writ of mandamus and/or prohibition denied.

*Certiorari Granted*

No. 97–1230. CITY OF WEST COVINA *v.* PERKINS ET AL. C. A. 9th Cir. Motion of Sixty-seven Cities, Counties, and Towns Within California for leave to file a brief as *amici curiae* granted. Certiorari granted. Reported below: 113 F. 3d 1004.

No. 97–1418. BANK OF AMERICA NATIONAL TRUST AND SAVINGS ASSN. *v.* 203 NORTH LASALLE STREET PARTNERSHIP. C. A. 7th Cir. Motions of American College of Real Estate Lawyers, American Council of Life Insurance, and American Bankers Association et al. for leave to file briefs as *amici curiae* granted. Certiorari granted. Reported below: 126 F. 3d 955.

*Certiorari Denied*

No. 97–315. MANGES ET AL. *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 116 F. 3d 1479.

No. 97–1181. PARKER ET AL. *v.* WAKELIN ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 123 F. 3d 1.

No. 97–1236. PATTERSON *v.* INTERNATIONAL BROTHERHOOD OF TEAMSTERS, LOCAL 959. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 1345.

No. 97–1249. ROAD SPRINKLER FITTERS LOCAL UNION NO. 669, UNITED ASSOCIATION OF JOURNEYMEN AND APPRENTICES OF THE PLUMBING AND PIPE FITTING INDUSTRY OF THE UNITED STATES AND CANADA, AFL–CIO *v.* "AUTOMATIC" SPRINKLER CORPORATION OF AMERICA ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 120 F. 3d 612.

No. 97–1265. MURPHY ET AL. *v.* SOFAMOR DANEK GROUP, INC., ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 123 F. 3d 394.

No. 97–1271. VISWANATHAN *v.* FAYETTEVILLE STATE UNIVERSITY BOARD OF TRUSTEES ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 125 F. 3d 850.

No. 97–1397. DERZACK ET VIR *v.* ALLEGHENY COUNTY CHILDREN AND YOUTH SERVICES. Super. Ct. Pa. Certiorari denied.

No. 97–1411. NORTH TEXAS STEEL CO., INC. *v.* R. R. DONNELLEY & SONS CO. Ct. App. Ind. Certiorari denied. Reported below: 679 N. E. 2d 513.

No. 97–1417. ALTAI, INC. *v.* COMPUTER ASSOCIATES INTERNATIONAL, INC. C. A. 2d Cir. Certiorari denied. Reported below: 126 F. 3d 365.

No. 97–1425. ROBERTS *v.* UNIDYNAMICS CORP. ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 126 F. 3d 1088.

No. 97–1426. CRAWFORD & CO. *v.* SONNIER. C. A. 3d Cir. Certiorari denied.

No. 97–1430. SCANDINAVIAN HEALTH SPA, INC. *v.* FRANKLIN. C. A. 11th Cir. Certiorari denied. Reported below: 128 F. 3d 732 and 733.

No. 97–1431. LINDSAY, EXECUTOR OF THE ESTATE OF SOSA, DECEASED *v.* JEFFERSON COUNTY ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 124 F. 3d 197.

No. 97–1433. UIS, INC. *v.* INTERKAL, INC., ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 33.

No. 97–1445. ROLLESTON *v.* CHERRY, EXECUTOR OF THE ESTATE OF SIMS, DECEASED. Ct. App. Ga. Certiorari denied. Reported below: 226 Ga. App. 750, 487 S. E. 2d 354.

No. 97–1446. BAEZA ET AL. *v.* NACCO INDUSTRIES, INC., ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 1299.

No. 97–1452. FREEDOM COMMUNICATIONS, INC., DBA THE MONITOR *v.* MANCIAS, JUDGE, 93RD JUDICIAL DISTRICT COURT OF HIDALGO COUNTY, TEXAS, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 609.

No. 97–1510. SKURATOWICZ *v.* TRACY, TAX COMMISSIONER OF OHIO. Sup. Ct. Ohio. Certiorari denied. Reported below: 80 Ohio St. 3d 52, 684 N. E. 2d 324.

No. 97–1522. SCHNEIDER *v.* CELESTINO ET VIR. Ct. App. Ohio, Lucas County. Certiorari denied.

No. 97–1545. RHEAMS *v.* MARQUETTE UNIVERSITY ET AL. C. A. 7th Cir. Certiorari denied.

No. 97–1554. SNYDER *v.* DEWOSKIN, TRUSTEE. C. A. 8th Cir. Certiorari denied. Reported below: 131 F. 3d 750.

No. 97–1563. LUEM *v.* BILLETTER. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 716.

No. 97–1571. ROSMAN ET AL. *v.* GULF INDUSTRIES, INC., ET AL. Ct. App. La., 4th Cir. Certiorari denied. Reported below: 694 So. 2d 1247.

No. 97–1576. ACHUSI *v.* IMMIGRATION AND NATURALIZATION SERVICE. C. A. 5th Cir. Certiorari denied. Reported below: 121 F. 3d 705.

No. 97–1614. JAMIESON ET UX. *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. D. C. Cir. Certiorari denied. Reported below: 132 F. 3d 1481.

No. 97–1628. COOLMAN *v.* UNITED STATES ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–1629. COX ET AL. *v.* UNITED STATES ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–1637. SANTUCCI *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 133 F. 3d 911.

No. 97–5586. LEWIS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 113 F. 3d 487.

No. 97–6494. GILLARD *v.* OHIO. Sup. Ct. Ohio. Certiorari denied. Reported below: 78 Ohio St. 3d 548, 679 N. E. 2d 276.

No. 97–7727. VENEGAS *v.* HENMAN, WARDEN. C. A. 5th Cir. Certiorari denied. Reported below: 126 F. 3d 760.

No. 97–8074. ELMORE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 97–8098. PARKS *v.* UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF INDIANA. C. A. 7th Cir. Certiorari denied.

No. 97–8110. MACIEL *v.* TERHUNE, DIRECTOR, CALIFORNIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8112. EVANS *v.* HARTWIG, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 97–8113. EVANS, AKA EVANS-BEY *v.* WASHINGTON, DIRECTOR, ILLINOIS DEPARTMENT OF CORRECTIONS. Sup. Ct. Ill. Certiorari denied.

No. 97–8116. CUNNINGHAM *v.* WOOD, SUPERINTENDENT, WASHINGTON STATE PENITENTIARY. C. A. 9th Cir. Certiorari denied.

No. 97–8118. POULLARD *v.* LOUISIANA. Sup. Ct. La. Certiorari denied. Reported below: 703 So. 2d 12.

No. 97–8123. WALKOVIAK *v.* DISTRICT COURT OF TEXAS, HARRIS COUNTY. Ct. Crim. App. Tex. Certiorari denied.

No. 97–8126. QUINTERO *v.* LEE, WARDEN. C. A. 4th Cir. Certiorari denied. Reported below: 127 F. 3d 1100.

No. 97–8131. LINDSEY *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 289 Ill. App. 3d 1134, 713 N. E. 2d 831.

No. 97–8132. FOLEY *v.* BRUMMETT ET AL. Ct. App. Ky. Certiorari denied.

No. 97–8133. WARREN *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 347 N. C. 309, 492 S. E. 2d 609.

No. 97–8134. GORNICK *v.* PAGE, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 97–8136. ANDERSON *v.* PRELESNICK. C. A. 6th Cir. Certiorari denied.

No. 97–8140. WILLIAMS *v.* ANDERSON, WARDEN, ET AL. Ct. App. Ohio, Richland County. Certiorari denied.

No. 97–8141. CUTHBERT *v.* DISTRICT COURT OF APPEAL OF FLORIDA, FIFTH DISTRICT, ET AL. Sup. Ct. Fla. Certiorari denied. Reported below: 699 So. 2d 1372.

No. 97–8148. CONSALVO *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 697 So. 2d 805.

No. 97–8152. HUTCHINS *v.* GEORGIA DEPARTMENT OF CORRECTIONS ET AL. Ct. App. Ga. Certiorari denied.

No. 97–8161. ESPOSITO *v.* NEW YORK. App. Term, Sup. Ct. N. Y., 9th and 10th Jud. Dists. Certiorari denied.

No. 97–8165. FINK *v.* BUENA PARK POLICE DEPARTMENT ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 125.

No. 97–8166. SHAUGHNESSY *v.* SCHOOL ADMINISTRATIVE UNIT No. 30. Sup. Ct. N. H. Certiorari denied.

No. 97–8172. O'HARE *v.* GOSS ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 118 F. 3d 1577.

No. 97–8173. BARRIER *v.* JOHNSON ET AL.; and BARRIER *v.* MARIN GENERAL HOSPITAL ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 124 F. 3d 210 (first judgment); 133 F. 3d 925 (second judgment).

No. 97–8213. BEITZEL *v.* LAZAROFF, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 32.

No. 97–8224. ANDERSON *v.* EDWARDS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–8252. HUNTER *v.* BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER. C. A. 8th Cir. Certiorari denied.

No. 97–8308. PERRY *v.* INTERNAL REVENUE SERVICE ET AL. C. A. 7th Cir. Certiorari denied.

No. 97–8348. SIMONS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 114.

No. 97–8362. J. G. *v.* DEPARTMENT OF CHILDREN AND FAMILY SERVICES. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 711 So. 2d 555.

No. 97–8370. SHARP *v.* LOCK, SUPERINTENDENT, CENTRAL MISSOURI CORRECTIONAL CENTER, ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–8372. HARRIS *v.* NORRIS, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION. C. A. 8th Cir. Certiorari denied.

No. 97–8379. CARTER *v.* CURRAN, ATTORNEY GENERAL OF MARYLAND, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 120 F. 3d 260.

No. 97–8384. SCALES *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–8395. LUCERO *v.* KERBY. C. A. 10th Cir. Certiorari denied. Reported below: 133 F. 3d 1299.

No. 97–8432. LEWIS *v.* IMMIGRATION AND NATURALIZATION SERVICE ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–8437. GLOVER *v.* MCCAUGHTRY, WARDEN. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 36.

No. 97–8442. DOSS *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied. Reported below: 703 So. 2d 864.

No. 97–8469. NUNEZ *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 133 F. 3d 908.

No. 97–8492. JOHNSON *v.* WYOMING. Dist. Ct. Wyo., Laramie County. Certiorari denied.

No. 97–8503. HAASE *v.* CONNECTICUT. Sup. Ct. Conn. Certiorari denied. Reported below: 243 Conn. 324, 702 A. 2d 1187.

No. 97–8506. HAMILTON *v.* COMMISSIONER OF INTERNAL REVENUE ET AL. C. A. D. C. Cir. Certiorari denied.

No. 97–8517. FRANKLIN *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 48 M. J. 413.

No. 97–8524. SASNETT *v.* ENDICOTT, SUPERINTENDENT, COLUMBIA CORRECTIONAL INSTITUTION. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 36.

No. 97–8553. PHILLIPS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 97–8555. ZEREBNICK *v.* BECKWITH MACHINERY CO. C. A. 3d Cir. Certiorari denied.

No. 97–8557. BOLDEN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 1353.

No. 97–8567. ANDERSON *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 125 F. 3d 1076.

No. 97–8569. BRYAN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 142 F. 3d 437.

No. 97–8575. TINKER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 134 F. 3d 365.

No. 97–8582. WRONKO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 116 F. 3d 488.

No. 97–8585. CROMPTON *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 97–8587. SANCHO *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 97–8589. ROBERSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 134 F. 3d 365.

No. 97–8590. STOKES *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 134 F. 3d 373.

No. 97–8591. PALMER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 136 F. 3d 136.

No. 97–8594. SWINT *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 127 F. 3d 1097.

No. 97–8595. PIZZA *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 141 F. 3d 1155.

No. 97–8596. SALAZAR *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 119 F. 3d 8.

No. 97–8598. MIGLIO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 136 F. 3d 1330.

No. 97–8600. KEY *v.* UNITED STATES; and
No. 97–8603. JARRETT *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 133 F. 3d 519.

No. 97–8612. TAMEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 129.

No. 97–8613. ADESIDA *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 846.

No. 97–49. PORTLAND GENERAL ELECTRIC CO. *v.* COLUMBIA STEEL CASTING CO., INC. C. A. 9th Cir. Motion of Edison Electric Institute for leave to file a brief as *amicus curiae* granted. Motion of National Association of Regulatory Utility Commissioners for leave to file a brief as *amicus curiae* denied. Certiorari denied. Reported below: 111 F. 3d 1427.

*Rehearing Denied*

No. 97–1127. HOTCHKISS *v.* SUPREME COURT OF THE UNITED STATES ET AL., 522 U. S. 1149;

No. 97–1198. MOORE *v.* CITY OF WESTMINSTER ET AL., *ante*, p. 1006;

No. 97–6862. IN RE ROWE, 522 U. S. 1106;

No. 97–7025. GILMOUR *v.* ROGERSON, WARDEN, ET AL., 522 U. S. 1122;

No. 97–7114. DIXON *v.* MARION POLICE DEPARTMENT ET AL., 522 U. S. 1125;

No. 97–7434. IN RE PEARSON, *ante*, p. 1003;

No. 97–7520. AL-AMIN *v.* SEITER, WARDEN, *ante*, p. 1026;

No. 97–7626. WASHINGTON *v.* DIESSLIN, WESTERN REGIONAL DIRECTOR, COLORADO DEPARTMENT OF CORRECTIONS, ET AL., *ante*, p. 1029;

No. 97–7748. GRIFFIN *v.* CHARLOTTE MEMORIAL HOSPITAL AND MEDICAL CENTER ET AL., *ante*, p. 1030; and

No. 97–7809. HARTSELL ET AL. *v.* UNITED STATES, *ante*, p. 1030. Petitions for rehearing denied.

MAY 13, 1998

*Dismissal Under Rule 46*

No. 97–1657. CONTINENTAL MICRONESIA, INC. *v.* NATIONAL MEDIATION BOARD ET AL. C. A. 9th Cir. Certiorari dismissed under this Court's Rule 46.1. Reported below: 124 F. 3d 211.

MAY 14, 1998

*Certiorari Denied*

No. 97–8689 (A–817). MUNIZ *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE SCALIA, and by him referred to the Court, denied. Certiorari denied. JUSTICE STEVENS and JUSTICE GINSBURG would grant the application for stay of execution. Reported below: 132 F. 3d 214.

MAY 15, 1998

*Dismissal Under Rule 46*

No. 97–288. LEWIS ET VIR, INDIVIDUALLY, AS PARENTS, AS NEXT FRIENDS, AND AS ADMINISTRATORS OF THE ESTATE OF

LEWIS, DECEASED *v.* BRUNSWICK CORP. C. A. 11th Cir. [Certiorari granted, 522 U. S. 978.*] Writ of certiorari dismissed under this Court's Rule 46.1.

MAY 18, 1998

*Miscellaneous Orders*

No. D–1846. IN RE DISBARMENT OF JACKSON. Disbarment entered. [For earlier order herein, see 521 U. S. 1148.]

No. D–1872. IN RE DISBARMENT OF MANNS. Disbarment entered. [For earlier order herein, see 522 U. S. 979.]

No. D–1911. IN RE DISBARMENT OF HOUSTON. Disbarment entered. [For earlier order herein, see 522 U. S. 1104.]

No. D–1912. IN RE DISBARMENT OF GUPTON. Disbarment entered. [For earlier order herein, see 522 U. S. 1104.]

No. D–1915. IN RE DISBARMENT OF SPEERS. Disbarment entered. [For earlier order herein, see 522 U. S. 1104.]

No. D–1918. IN RE DISBARMENT OF BOULDIN. Disbarment entered. [For earlier order herein, see 522 U. S. 1145.]

No. D–1951. IN RE DISBARMENT OF BREEZE. Robert A. Breeze, of San Diego, Cal., is suspended from the practice of law

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*[REPORTER'S NOTE: Argued March 2, 1998. *David E. Hudson* argued the cause for petitioners. With him on the briefs was *R. Ben Hogan III.*

*David C. Frederick* argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Waxman*, *Assistant Attorney General Hunger*, *Deputy Solicitor General Kneedler*, and *Michael E. Robinson.*

*Kenneth S. Geller* argued the cause for respondent. With him on the brief were *John J. Sullivan*, *Daniel J. Connolly*, and *James W. Hagan.*

Briefs of *amici curiae* urging reversal were filed for the Association of Trial Lawyers of America by *Jeffrey Robert White;* for the National Conference of State Legislatures et al. by *Richard Ruda*, *James I. Crowley*, and *D. Bruce La Pierre;* and for Trial Lawyers for Public Justice, P. C., by *Leslie A. Brueckner* and *Arthur H. Bryant.*

Briefs of *amici curiae* urging affirmance were filed for General Motors Corp. by *Kenneth W. Starr*, *Paul T. Cappuccio*, *Richard A. Cordray*, *Brett M. Kavanaugh*, *David M. Heilbron*, and *Leslie G. Landau;* for the Product Liability Advisory Council, Inc., by *Malcolm E. Wheeler;* and for the Washington Legal Foundation by *Daniel J. Popeo.*]

in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1952. IN RE DISBARMENT OF STEWART. Hudson Cary Stewart, of Los Angeles, Cal., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1953. IN RE DISBARMENT OF CHITTIM. Clayton A. Chittim, Jr., of Grandview, Mo., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–1954. IN RE DISBARMENT OF WILLIAMS. Ricky Edwin Williams, of Tampa, Fla., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. M–65. ANTI-MONOPOLY, INC. *v.* HASBRO, INC.; and
No. M–71. IN RE DOE. Motions for leave to file petitions for writs of certiorari under seal denied.

No. M–72. MARSHALL *v.* FEDERAL EXPRESS. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 96–1693. HOPKINS, WARDEN *v.* REEVES. C. A. 8th Cir. [Certiorari granted, 521 U. S. 1151.] Motion of respondent for leave to file a supplemental brief after argument granted.

No. 96–8732. EDWARDS ET AL. *v.* UNITED STATES. C. A. 7th Cir. [Certiorari granted, 522 U. S. 931.] Motion of petitioner Joseph Tidwell to reconsider order denying certiorari on Question 2 [522 U. S. 931] denied.

No. 97–918. LOVILIA COAL CO. ET AL. *v.* HARVEY ET AL., *ante*, p. 1059. Motion of respondent Harvey for attorney's fees denied without prejudice to refiling in the United States Court of Appeals for the Eighth Circuit. Motion of petitioners to defer consideration of motion for attorney's fees denied.

No. 97–930. BUCKLEY, SECRETARY OF STATE OF COLORADO *v.* AMERICAN CONSTITUTIONAL LAW FOUNDATION, INC., ET AL. C. A. 10th Cir. [Certiorari granted, 522 U. S. 1107.] Motion of Council of State Governments et al. for leave to file a brief as *amici curiae* granted.

No. 97–1121. CITY OF CHICAGO *v.* MORALES ET AL. Sup. Ct. Ill. [Certiorari granted, *ante*, p. 1071.] Motion of petitioner to dispense with printing the joint appendix granted.

No. 97–1485. COATES, DIRECTOR, MASSACHUSETTS DIVISION OF MARINE FISHERIES, ET AL. *v.* STRAHAN. C. A. 1st Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 97–7615. WHITFIELD *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [*ante*, p. 1044] denied.

No. 97–8309. MARTINEZ ET AL. *v.* DOBRA (two judgments). C. A. 6th Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. See this Court's Rule 39.8. Petitioners are allowed until June 8, 1998, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 97–8186. IN RE STEIN;
No. 97–8667. IN RE SANDERS;
No. 97–8727. IN RE CHESTEEN;
No. 97–8735. IN RE FLYNN;
No. 97–8736. IN RE GIBSON; and
No. 97–8747. IN RE PRICE. Petitions for writs of habeas corpus denied.

No. 97–8270. IN RE ADAMS;
No. 97–8304. IN RE WILLIAMS LEWIS;
No. 97–8330. IN RE RICHARDS;
No. 97–8581. IN RE KEEPER; and
No. 97–8614. IN RE BAILEY. Petitions for writs of mandamus denied.

No. 97–8237. IN RE HUGHLEY. Petition for writ of prohibition denied.

*Certiorari Granted*

No. 96–1793. CEDAR RAPIDS COMMUNITY SCHOOL DISTRICT *v.* GARRET F., A MINOR, BY HIS MOTHER AND NEXT FRIEND, CHARLENE F. C. A. 8th Cir. Certiorari granted. Reported below: 106 F. 3d 822.

No. 97–1536. ARIZONA DEPARTMENT OF REVENUE *v.* BLAZE CONSTRUCTION CO., INC. Ct. App. Ariz. Certiorari granted. Reported below: 190 Ariz. 262, 947 P. 2d 836.

No. 97–475. EL AL ISRAEL AIRLINES, LTD. *v.* TSUI YUAN TSENG. C. A. 2d Cir. Motions of International Air Transport Association and Air Transport Association of America for leave to file briefs as *amici curiae* granted. Certiorari granted limited to Question 1 presented by the petition. Reported below: 122 F. 3d 99.

*Certiorari Denied*

No. 96–1963. MCKENNEY ET AL. *v.* WILLIAMS, DECEASED, BY WILLIAMS. C. A. 10th Cir. Certiorari denied.

No. 97–740. SCHWALBE ET AL. *v.* WALKER. C. A. 11th Cir. Certiorari denied. Reported below: 112 F. 3d 1127.

No. 97–1145. CONNICK *v.* UNITED STATES, ON BEHALF OF THE ASSASSINATION RECORDS REVIEW BOARD. C. A. 5th Cir. Certiorari denied. Reported below: 124 F. 3d 718.

No. 97–1195. AEROSPACE CORP. *v.* CAMPBELL. C. A. 9th Cir. Certiorari denied. Reported below: 123 F. 3d 1308.

No. 97–1248. CALLAWAY COUNTY AMBULANCE DISTRICT *v.* PEEPER. C. A. 8th Cir. Certiorari denied. Reported below: 122 F. 3d 619.

No. 97–1267. PROFESSIONAL PILOTS FEDERATION ET AL. *v.* FEDERAL AVIATION ADMINISTRATION. C. A. D. C. Cir. Certiorari denied. Reported below: 118 F. 3d 758.

No. 97–1275. ALVORD *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 694 So. 2d 704.

No. 97–1280. KAWERAK REINDEER HERDERS ASSN. *v.* WILLIAMS ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 115 F. 3d 657.

No. 97–1294. CHIARAMONTE *v.* FASHION BED GROUP, INC. C. A. 7th Cir. Certiorari denied. Reported below: 129 F. 3d 391.

No. 97–1310. CUTCLIFFE ET AL. *v.* JENNE, SHERIFF, BROWARD COUNTY, FLORIDA. C. A. 11th Cir. Certiorari denied. Reported below: 117 F. 3d 1353.

No. 97–1317. WEST BEND CO. *v.* SUNBEAM PRODUCTS, INC. C. A. 5th Cir. Certiorari denied. Reported below: 123 F. 3d 246.

No. 97–1368. AVANT! CORP. ET AL. *v.* CADENCE DESIGN SYSTEMS, INC. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 824.

No. 97–1376. CITY OF FLORENCE ET AL. *v.* CHIPMAN, ADMINISTRATOR OF THE ESTATE OF BLACK, DECEASED, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 126 F. 3d 856.

No. 97–1378. SOUTH DAKOTA ET AL. *v.* SDDS, INC. Sup. Ct. S. D. Certiorari denied. Reported below: 569 N. W. 2d 289.

No. 97–1422. COUNTY OF THURSTON ET AL. *v.* STABLER ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 129 F. 3d 1015.

No. 97–1455. BRADFORD *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 15 Cal. 4th 1229, 939 P. 2d 259.

No. 97–1456. BOK *v.* MUTUAL ASSURANCE, INC. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 927.

No. 97–1458. EASTERN NATURAL GAS CORP. ET AL. *v.* ALUMINUM COMPANY OF AMERICA. C. A. 7th Cir. Certiorari denied. Reported below: 126 F. 3d 996.

No. 97–1459. LORILLARD, INC. *v.* HOROWITZ ET UX. Ct. App. Cal., 1st App. Dist. Certiorari denied.

No. 97–1468. CAMERON ET AL. *v.* ANHEUSER-BUSCH, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 124.

No. 97–1470. CITY OF COLUMBUS *v.* JONES ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 120 F. 3d 248.

No. 97–1478. KOROTKI *v.* ATTORNEY SERVICES CORP. ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 135.

No. 97–1479. DIAZ, PERSONAL REPRESENTATIVE OF THE ESTATE OF DIAZ, AND ON BEHALF OF DIAZ ET AL. *v.* CCHC-GOLDEN GLADES, LTD., ET AL. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 696 So. 2d 1346.

No. 97–1481. LIBERTY NATIONAL LIFE INSURANCE CO. *v.* DAY. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 1012.

No. 97–1483. BURNSIDES ET AL. *v.* MJ OPTICAL, INC., ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 128 F. 3d 700.

No. 97–1487. PLAISANCE DRAGLINE & DREDGING CO., INC. *v.* VERDIN. C. A. 5th Cir. Certiorari denied. Reported below: 134 F. 3d 367.

No. 97–1491. ESTATE OF BRAUNSTEIN ET AL. *v.* MERRILL LYNCH, PIERCE, FENNER & SMITH INC. ET AL. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 238 App. Div. 2d 242, 657 N. Y. S. 2d 12.

No. 97–1495. DAVENPORT *v.* COADY, JUDGE, DISTRICT COURT OF NEBRASKA, THAYER COUNTY, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 124 F. 3d 207.

No. 97–1496. RAWSON *v.* TOSCO REFINING CO. Ct. App. Cal., 1st App. Dist. Certiorari denied. Reported below: 57 Cal. App. 4th 1520, 67 Cal. Rptr. 2d 790.

No. 97–1501. FRANCISCO ACOSTA *v.* TEXAS. Ct. App. Tex., 10th Dist. Certiorari denied. Reported below: 951 S. W. 2d 291.

No. 97–1503. MIDLAND EXPORT, LTD. *v.* ELKEM HOLDING, INC., ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–1508. HAVNER ET UX., ON BEHALF OF THEIR MINOR CHILD, HAVNER, ET AL. *v.* MERRELL DOW PHARMACEUTICALS, INC., ET AL. Sup. Ct. Tex. Certiorari denied. Reported below: 953 S. W. 2d 706.

No. 97–1516. BERG *v.* SHAPIRO ET AL. Ct. App. Colo. Certiorari denied. Reported below: 948 P. 2d 59.

No. 97–1518. YOUSSEF ET UX. *v.* MORRISON ENTITY ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1108.

No. 97–1523. MATTEI, INDIVIDUALLY AND AS EXECUTOR OF THE ESTATE OF MATTEI, DECEASED, ET AL. *v.* MATTEI. C. A. 6th Cir. Certiorari denied. Reported below: 126 F. 3d 794.

No. 97–1526. MATSUMOTO ET AL. *v.* GOTCHER ET AL. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–1530. BROWN *v.* SPECTACOR MANAGEMENT GROUP. C. A. 3d Cir. Certiorari denied. Reported below: 131 F. 3d 120.

No. 97–1533. MCDUFFIE, DBA D & M CONTRACTING CO. *v.* FIRST UNION NATIONAL BANK. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 40.

No. 97–1534. HUNT *v.* HAWTHORNE ASSOCIATES, INC., ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 888.

No. 97–1537. BERG *v.* DENTISTS INSURANCE CO. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 124.

No. 97–1539. JACKSON *v.* OFFICE OF DISCIPLINARY COUNSEL. Sup. Ct. Pa. Certiorari denied. Reported below: 550 Pa. 141, 703 A. 2d 703.

No. 97–1540. WALKER *v.* MICHIGAN PUBLIC SERVICE COMMISSION ET AL. C. A. D. C. Cir. Certiorari denied.

No. 97–1544. M. A. *v.* COLORADO, IN THE INTEREST OF K. A., A CHILD. Ct. App. Colo. Certiorari denied.

No. 97–1546. MUNKATCHY *v.* TEXAS. Ct. App. Tex., 14th Dist. Certiorari denied. Reported below: 946 S. W. 2d 349.

No. 97–1547. JOHNSON *v.* ILLINOIS ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 124 F. 3d 204.

No. 97–1548. BAVARO ET AL. *v.* PATAKI, INDIVIDUALLY AND AS GOVERNOR OF NEW YORK, ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 130 F. 3d 46.

No. 97–1551. RUSSELL *v.* PLANO BANK & TRUST. C. A. 5th Cir. Certiorari denied. Reported below: 130 F. 3d 715.

No. 97–1555. ARKANSAS CHRISTIAN EDUCATORS ASSN. ET AL. *v.* OZARKS UNLIMITED RESOURCES COOPERATIVE ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 921.

No. 97–1556. POLIS *v.* WELD ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 132 F. 3d 30.

No. 97–1572. DUGAS *v.* CLAMONT ENERGY CORP. ET AL. (two judgments). C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 140.

No. 97–1577. BRANDT ET AL. *v.* GYGAX REALTOR ET AL. Ct. App. Cal., 1st App. Dist. Certiorari denied.

No. 97–1581. ALASKA CENTER FOR THE ENVIRONMENT ET AL. *v.* ARMBRISTER, DIRECTOR, OFFICE OF PLANNING AND PROGRAM DEVELOPMENT, REGION 10, FEDERAL HIGHWAY ADMINISTRATION, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 1285.

No. 97–1588. KREUZER *v.* BROWN. C. A. 6th Cir. Certiorari denied. Reported below: 128 F. 3d 359.

No. 97–1590. JOLIGARD *v.* FINDLER ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 698.

No. 97–1591. DAMER *v.* STATE BAR OF CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 97–1597. GAMB *v.* HILTON HOTELS CORP. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 46.

No. 97–1601. JONES ET AL. *v.* UNITED STATES ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 1327.

No. 97–1602. IN RE BISBEE. C. A. 7th Cir. Certiorari denied. Reported below: 131 F. 3d 1205.

No. 97–1603. TOTAL FOODS ET AL. *v.* ALIX. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1265.

No. 97–1612. WOO *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 698 A. 2d 673.

No. 97–1613. LEWIS *v.* TEXTRON AUTOMOTIVE INTERIORS ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 132 F. 3d 30.

No. 97–1617. BAYLISS ET AL. *v.* CITY OF TULSA ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 124 F. 3d 216.

No. 97–1622. GREENE *v.* CITIBANK, N. A., ET AL. C. A. 2d Cir. Certiorari denied.

No. 97–1644. HASHIMOTO *v.* DALTON, SECRETARY OF THE NAVY. C. A. 9th Cir. Certiorari denied. Reported below: 118 F. 3d 671.

No. 97–1648. DERBIGNY *v.* GLICKMAN, SECRETARY OF AGRICULTURE. C. A. 5th Cir. Certiorari denied. Reported below: 135 F. 3d 141.

No. 97–1653. ALVAREZ ET AL. *v.* DADE COUNTY, FLORIDA. C. A. 11th Cir. Certiorari denied. Reported below: 124 F. 3d 1380.

No. 97–1654. WEISSMAN *v.* COHN, LIFLAND, PERLMAN, HERMANN & KNOPF ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 133 F. 3d 912.

No. 97–1655. GUILLORY *v.* REVIS ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 110 F. 3d 793.

No. 97–1659. HAWKINS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 124 F. 3d 205.

No. 97–1670. HASTINGS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 115 F. 3d 587.

No. 97–1673. WALTERS *v.* METZGER ET AL. Super. Ct. Pa. Certiorari denied. Reported below: 701 A. 2d 790.

No. 97–1675. SOMMERS *v.* MCKINNEY ET AL. Super. Ct. N. J., App. Div. Certiorari denied.

No. 97–1676. SALVO *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 133 F. 3d 943.

No. 97–1678. RAHMAN, AKA GRANT *v.* MARYLAND. Ct. Sp. App. Md. Certiorari denied. Reported below: 117 Md. App. 747.

No. 97–1707. BRADSTREET *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 135 F. 3d 46.

No. 97–1713. RUMMEL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1454.

No. 97–1716. RUSSELL *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 47 M. J. 412.

No. 97–1722. COMPUWARE CORP. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. 6th Cir. Certiorari denied. Reported below: 134 F. 3d 1285.

No. 97–1727. BISCOE *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 47 M. J. 398.

No. 97–1736. FLIBOTTE *v.* PENNSYLVANIA TRUCK LINES, INC. C. A. 1st Cir. Certiorari denied. Reported below: 131 F. 3d 21.

No. 97–6032. WASHINGTON *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 547 Pa. 550, 692 A. 2d 1018.

No. 97–7395. POWELL *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 125 F. 3d 845.

No. 97–7404. BROWN *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 698 A. 2d 661.

No. 97–7782. ANTONIO JIMENEZ *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 703 So. 2d 437.

No. 97–7817. PRATT *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 129 F. 3d 54.

No. 97–7821. HUTCHINS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 97–7946. VIRAY *v.* BENEFICIAL CALIFORNIA, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 129.

No. 97–7959. LEWIS *v.* KEANE, SUPERINTENDENT, SING SING CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 97–8150. BYERS *v.* MINNESOTA. Sup. Ct. Minn. Certiorari denied. Reported below: 570 N. W. 2d 487.

No. 97–8174. COLLINS *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied.

No. 97–8178. AMRINE *v.* BOWERSOX, SUPERINTENDENT, POTOSI CORRECTIONAL CENTER. C. A. 8th Cir. Certiorari denied. Reported below: 128 F. 3d 1222.

No. 97–8180. REYNOLDS *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 701 A. 2d 782.

No. 97–8181. PARKER *v.* WARD, WARDEN, ET AL. C. A. 5th Cir. Certiorari denied.

No. 97–8182. SIMON *v.* COLORADO COMPENSATION INSURANCE AUTHORITY ET AL. Sup. Ct. Colo. Certiorari denied. Reported below: 946 P. 2d 1298.

No. 97–8183. SHABAZZ *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 97–8184. ROGERS *v.* FINESILVER ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 42.

No. 97–8198. WEST *v.* SOUTHWESTERN BELL TELEPHONE CO. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 140.

No. 97–8203. MORGAN *v.* RABUN ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 128 F. 3d 694.

No. 97–8210. TURNER *v.* CHAMPION, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 152.

No. 97–8211. VAUGHN *v.* THOMPSON ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 121 F. 3d 710.

No. 97–8212. SMITH *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 287 Ill. App. 3d 1116, 710 N. E. 2d 571.

No. 97–8216. MULLEN *v.* COOPER, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 97–8218. JOHNSON *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 97–8220. TERRALL *v.* CITY OF RENO, NEVADA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8223. BEASLEY *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–8225. BODDIE *v.* GIANGER ET AL. C. A. 2d Cir. Certiorari denied.

No. 97–8228. FRESCAS *v.* LORAL VOUGHT SYSTEMS CORP. C. A. 5th Cir. Certiorari denied.

No. 97–8236. DUMAS *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 288 Ill. App. 3d 1110, 711 N. E. 2d 827.

No. 97–8244. GAERTTNER *v.* LOVE ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–8245. FOREMAN *v.* ILLINOIS. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 287 Ill. App. 3d 1134, 710 N. E. 2d 579.

No. 97–8246. ROTHMAN *v.* UNIVERSITY OF MASSACHUSETTS MEDICAL CENTER. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 426 Mass. 1009, 688 N. E. 2d 995.

No. 97–8248. STEPHEN *v.* UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT. C. A. 9th Cir. Certiorari denied.

No. 97–8250. LONGCRIER *v.* LAYTON CITY, UTAH. Ct. App. Utah. Certiorari denied. Reported below: 943 P. 2d 655.

No. 97–8254. WOLDE-GIORGIS *v.* DELECKI ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8255. TUNSTALL *v.* SOMERVILLE ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1063.

No. 97–8256. SMITH *v.* OHIO. Sup. Ct. Ohio. Certiorari denied. Reported below: 80 Ohio St. 3d 89, 684 N. E. 2d 668.

No. 97–8262. GLOVER *v.* CAIN, WARDEN, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 128 F. 3d 900.

No. 97–8265. CUNNINGHAM *v.* WOODS, WARDEN, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 131 F. 3d 141.

No. 97–8266. AZIZ *v.* SCHRIRO, DIRECTOR, MISSOURI DEPARTMENT OF CORRECTIONS, ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–8268. JEFFRESS *v.* JOHNSTON ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 120 F. 3d 261.

No. 97–8269. CLARK *v.* ST. PAUL POLICE DEPARTMENT, SUED AS CITY OF ST. PAUL POLICE. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 921.

No. 97–8274. MAHDAVI *v.* ONE HUNDRED STATE, COUNTY, AND CITY OFFICIALS ET AL. Ct. App. Cal., 4th App. Dist. Certiorari denied.

No. 97–8275. NICHOLAS *v.* MILLER ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 114 F. 3d 17.

No. 97–8278. TESORO *v.* COLORADO. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 43.

No. 97–8281. MILLER *v.* HUGL ET AL. C. A. 7th Cir. Certiorari denied.

No. 97–8286. SINGLETON *v.* MATTHEWS ET AL. Ct. App. Cal., 4th App. Dist. Certiorari denied.

No. 97–8288. BILLEMEYER *v.* MISSOURI ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–8289. HARRIS *v.* TAYLOR ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 121 F. 3d 712.

No. 97–8298. LYNCH *v.* OFFICE OF THE MAYOR OF NEW YORK. C. A. 2d Cir. Certiorari denied. Reported below: 131 F. 3d 131.

No. 97–8299. LABANKOFF ET AL. *v.* UNITED STATES BANKRUPTCY COURT ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 716.

No. 97–8302. LAMBRIX ET AL. *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 121 F. 3d 721.

No. 97–8303. JORGENSON *v.* RATELLE, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8306. PORTER *v.* IDAHO. Sup. Ct. Idaho. Certiorari denied. Reported below: 130 Idaho 772, 948 P. 2d 127.

No. 97–8307. RIGHTER *v.* DELAWARE. Sup. Ct. Del. Certiorari denied. Reported below: 704 A. 2d 262.

No. 97–8315. SAAVEDRA *v.* THOMAS, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 43.

No. 97–8316. KENDRICK *v.* ANGELONE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1061.

No. 97–8317. JOHNSON *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 97–8320. PONCE-BRAN *v.* SACRAMENTO NATURAL FOODS COOPERATIVE, INC., ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8324. WAINWRIGHT *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 704 So. 2d 511.

No. 97–8329. ROBERTS *v.* CHAMPION, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 152.

No. 97–8335. CRASE *v.* HUSKEY, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 715.

No. 97–8340. JOHNSON *v.* MARTIN ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 132 F. 3d 39.

No. 97–8343. ARVIE *v.* MCHUGH ET AL. C. A. 5th Cir. Certiorari denied.

No. 97–8352. RUFF *v.* FEDERAL EXPRESS CORP. ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1265.

No. 97–8353. MCFARLIN *v.* TRENT, WARDEN. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 916.

No. 97–8356. VILLEGAS LOPEZ *v.* ARIZONA. Super. Ct. Ariz., Maricopa County. Certiorari denied.

No. 97–8368. CLARK *v.* KENTUCKY. Sup. Ct. Ky. Certiorari denied.

No. 97–8385. RAULERSON *v.* GEORGIA. Sup. Ct. Ga. Certiorari denied. Reported below: 268 Ga. 623, 491 S. E. 2d 791.

No. 97–8408. THOMPSON *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied.

No. 97–8423. TODD *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–8424. WILKERSON *v.* PRUNTY, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8450. MEYERS *v.* CLINTON, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–8451. PRICE *v.* BARRERAS, WARDEN. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 43.

No. 97–8455. LEVY *v.* FAIRFAX COUNTY, VIRGINIA. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 135.

No. 97–8458. CLARK *v.* SYNSTELIEN. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 921.

No. 97–8472. JOHNSON *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 131 F. 3d 132.

No. 97–8475. SALINAS BRITO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 136 F. 3d 397.

No. 97–8477. PAZ-DELGADO *v.* IMMIGRATION AND NATURALIZATION SERVICE. C. A. 4th Cir. Certiorari denied.

No. 97–8484. TRAINA *v.* NIXON, ATTORNEY GENERAL OF MISSOURI, ET AL. C. A. 8th Cir. Certiorari denied.

No. 97–8494. WEXLER *v.* CITY OF PHOENIX, ARIZONA. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 719.

No. 97–8501. DUMERS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 767.

No. 97–8513. BANKS *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 347 N. C. 390, 493 S. E. 2d 58.

No. 97–8519. DIXON *v.* STEWART, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTION, ET AL. C. A. 9th Cir. Certiorari denied.

No. 97–8521. FRAZIER *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–8526. WOOD *v.* COOK, DIRECTOR, OREGON DEPARTMENT OF CORRECTIONS. C. A. 9th Cir. Certiorari denied. Reported below: 130 F. 3d 373.

No. 97–8530. LAESSIG *v.* VAUGHN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GRATERFORD, ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–8531. JOHNSON *v.* HILL, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 113 F. 3d 1241.

No. 97–8544. VIRAY *v.* STEUER. C. A. D. C. Cir. Certiorari denied. Reported below: 159 F. 3d 638.

No. 97–8550. FOSTER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 133 F. 3d 704.

No. 97–8560. TOLBERT *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–8566. COOMBS *v.* MAINE. Sup. Jud. Ct. Me. Certiorari denied. Reported below: 704 A. 2d 387.

No. 97–8568. BROWN *v.* ANDERSON, SUPERINTENDENT, MISSISSIPPI STATE PENITENTIARY. C. A. 5th Cir. Certiorari denied. Reported below: 135 F. 3d 141.

No. 97–8583. ANDERSON *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 283 Ill. App. 3d 1108, 708 N. E. 2d 849.

No. 97–8584. ANDERSON *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 281 Ill. App. 3d 1124, 701 N. E. 2d 833.

No. 97–8588. SZLOBODA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 117 F. 3d 1417.

No. 97–8599. LAWRENCE *v.* PARKE, SUPERINTENDENT, INDIANA STATE PRISON, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 129 F. 3d 1267.

No. 97–8601. LOEUN *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 17 Cal. 4th 1, 947 P. 2d 1313.

No. 97–8609. GARCIA TREVINO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 607.

No. 97–8615. BLODGETT *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 97–8621. BENAVENTA GAMEZ *v.* UNITED STATES; and
No. 97–8645. ANTONIO DAVILA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 611 and 612.

No. 97–8622. DAVIS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 125 F. 3d 454.

No. 97–8623. DECATOR *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 137.

No. 97–8628. YOUNG *v.* UNITED STATES; and
No. 97–8651. YOUNG *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 134 F. 3d 365.

No. 97–8640. BOBTAIL BEAR *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 141 F. 3d 1170.

No. 97–8643. GLASS, AKA BELLECOURT *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 132 F. 3d 440.

No. 97–8650. WULFF *v.* OFFICE OF PERSONNEL MANAGEMENT. C. A. Fed. Cir. Certiorari denied. Reported below: 133 F. 3d 880.

No. 97–8653. GOODWIN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 149.

No. 97–8657. THATSAPHONE *v.* WEBER, WARDEN, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 137 F. 3d 1041.

No. 97–8661. SOTO-SILVA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 129 F. 3d 340.

No. 97–8663. PEDEN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 97–8664. REESE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 135 F. 3d 145.

No. 97–8671. BUNN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 917.

No. 97–8679. FLOREZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 139 F. 3d 913.

No. 97–8680. HEINSOHN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 132 F. 3d 34.

No. 97–8682. FIGUEROA-LOPEZ, AKA LOPEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 1241.

No. 97–8684. ROTHWELL *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 142 F. 3d 430.

No. 97–8687. LIPORACE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 133 F. 3d 541.

No. 97–8697. LEANDRE *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. Reported below: 132 F. 3d 796.

No. 97–8699. CUNNINGHAM *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 1070.

No. 97–8704. HARMS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 136 F. 3d 136.

No. 97–8705. HALPIN *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 97–8714. LUSSIER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 128 F. 3d 1312.

No. 97–8716. MCGHEE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 129 F. 3d 1261.

No. 97–8719. ESPIRITU VILLEGAS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 129.

No. 97–8720. BROWN *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 133 F. 3d 993.

No. 97–8725. BERRY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 135 F. 3d 767.

No. 97–8726. CAVANAUGH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 132 F. 3d 40.

No. 97–8730. TURNER, AKA BRANHAM *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 135 F. 3d 771.

No. 97–8734. SJOGREN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 125 F. 3d 860.

No. 97–8737. DYE *v.* WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 215 Wis. 2d 280, 572 N. W. 2d 524.

No. 97–8739. DUNN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 133 F. 3d 933.

No. 97–8743. JOHNS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 134 F. 3d 373.

No. 97–8748. POWERS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 127 F. 3d 1097.

No. 97–8749. SABLAN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 136 F. 3d 142.

No. 97–8751. VANN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 133 F. 3d 933.

No. 97–8755. ANDERSON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 134 F. 3d 379.

No. 97–8756. CABRERA *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 917.

No. 97–8765. PIRINA ARGUETA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 134 F. 3d 379.

No. 97–8782. CANNON *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 132 F. 3d 43.

No. 97–1262. CALDERON, WARDEN *v.* FIELDS. C. A. 9th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 125 F. 3d 757.

No. 97–1441. BELL, WARDEN *v.* GROSECLOSE. C. A. 6th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 130 F. 3d 1161.

No. 97–1442. BELL, WARDEN *v.* RICKMAN. C. A. 6th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 131 F. 3d 1150.

No. 97–1509. STEWART, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTION, ET AL. *v.* CARRIGER. C. A. 9th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 132 F. 3d 463.

No. 97–1302. COLORADO COMPENSATION INSURANCE AUTHORITY ET AL. *v.* SIMON ET AL. Sup. Ct. Colo. Motion of respondents for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 946 P. 2d 1298.

No. 97–1320. DAVIS ET AL. *v.* CITY OF HOLLYWOOD. C. A. 11th Cir. Motion of Donald J. Jaret for leave to file a brief as *amicus curiae* granted. Certiorari denied. Reported below: 120 F. 3d 1178.

No. 97–1346. CABRAL *v.* HEALY TIBBITS BUILDERS, INC. C. A. 9th Cir. Motion of Southern California-Nevada Regional Council of Carpenters et al. and Inland Boatmen's Union of the Pacific, Columbia River Region, for leave to file briefs as *amici curiae* granted. Certiorari denied. Reported below: 128 F. 3d 1289.

No. 97–8193. MCDONALD *v.* ILLINOIS. C. A. 7th Cir. Certiorari before judgment denied.

No. 97–9101 (A–865). CARTER *v.* BUSH, GOVERNOR OF TEXAS, ET AL. C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE SCALIA, and by him referred to the Court, denied. Certiorari before judgment denied.

*Rehearing Denied*

No. 96–9086. STOUFFER *v.* OKLAHOMA, 522 U. S. 831;

No. 97–969. IN RE SAI, *ante*, p. 1019;

No. 97–1171. ODDINO *v.* ODDINO ET AL., *ante*, p. 1021;

No. 97–1200. WHERRY *v.* IOWA SUPREME COURT BOARD OF PROFESSIONAL ETHICS AND CONDUCT, *ante*, p. 1021;

No. 97–1222. PHINNEY *v.* FIRST AMERICAN NATIONAL BANK ET AL., *ante*, p. 1046;

No. 97–1260. CLEMENTS *v.* BABCOCK & WILCOX CO. ET AL., *ante*, p. 1023;

No. 97–1282. STETLER *v.* SANDERS ET AL., *ante*, p. 1059;

No. 97–1306. WRIGHT *v.* MASS TRANSIT ADMINISTRATION, *ante*, p. 1006;

No. 97–1339. BUCHBINDER *v.* COMMISSIONER OF INTERNAL REVENUE, *ante*, p. 1024;

No. 97–5217. DELGADO *v.* UNITED STATES, 522 U. S. 882;

No. 97–6420. SAVAGE *v.* MICHIGAN, 522 U. S. 1054;

No. 97–6769. WARD *v.* RAVENSWOOD VILLAGE NURSING HOME, 522 U. S. 1080;

No. 97–6797. RUDD *v.* FORREST ET AL., *ante*, p. 1025;

No. 97–7502. PELLEGRINO *v.* SOUTH DAKOTA ET AL., 522 U. S. 1138;

No. 97–7515. TEFFETELLER *v.* GRIMES, CHIEF JUSTICE, SUPREME COURT OF FLORIDA, ET AL., *ante*, p. 1026;

No. 97–7542. IN RE PATZLAFF, *ante*, p. 1019;

No. 97–7543. PATZLAFF *v.* E. STEEVES SMITH, P. C., *ante*, p. 1027;

No. 97–7553. VENTIMIGLIA *v.* WATTER ET AL., *ante*, p. 1027;

No. 97–7613. ENGLISH *v.* PAGE, WARDEN, *ante*, p. 1028;

No. 97–7616. MACKENZIE *v.* OWENS ET AL., *ante*, p. 1029;

No. 97–7699. BALL *v.* UNITED STATES, 522 U. S. 1152;

No. 97–7770. PATTERSON *v.* MERIT SYSTEMS PROTECTION BOARD, *ante*, p. 1030;

No. 97–7775. SPINDLE *v.* TILLERY, *ante*, p. 1012;

No. 97–7776. BERKOWITZ *v.* STATE OF ISRAEL ET AL., *ante*, p. 1062;

No. 97–7909. DONOVAN *v.* STRACK, SUPERINTENDENT, FISHKILL CORRECTIONAL FACILITY, *ante*, p. 1032; and

No. 97–8243. HAZEL *v.* UNITED STATES, *ante*, p. 1066. Petitions for rehearing denied.

No. 97–471. KANSAS PUBLIC EMPLOYEES RETIREMENT SYSTEM *v.* BLACKWELL, SANDERS, MATHENY, WEARY & LOMBARDI ET AL., 522 U. S. 1068. Motion for leave to file petition for rehearing denied.

No. 97–8272 (A–864). CARTER *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION, *ante*, p. 1099. Application for stay of execution of sentence of death, presented to JUSTICE SCALIA, and by him referred to the Court, denied. Petition for rehearing denied.

MAY 22, 1998

*Dismissal Under Rule 46*

No. 97–1296. HALL *v.* FIRST UNION NATIONAL BANK OF FLORIDA ET AL. C. A. 11th Cir. Certiorari dismissed under this Court's Rule 46.1. Reported below: 123 F. 3d 1374.

MAY 26, 1998

*Miscellaneous Orders*

No. D–1639. IN RE DISBARMENT OF FARRELL. Motion to renew motion to vacate denied. [For earlier order herein, see, *e. g.*, 519 U. S. 802.]

No. M–73. MOORE *v.* PARKE, SUPERINTENDENT, INDIANA STATE PRISON; and

No. M–75. KING *v.* BRYANT ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. M–74. HAMPTON *v.* MISSOURI. Motion for leave to proceed *in forma pauperis* without an affidavit of indigency executed by petitioner denied.

No. 97–826. AT&T CORP. ET AL. *v.* IOWA UTILITIES BOARD ET AL.; and AT&T CORP. ET AL. *v.* CALIFORNIA ET AL.;

No. 97–829. MCI TELECOMMUNICATIONS CORP. *v.* IOWA UTILITIES BOARD ET AL.; and MCI TELECOMMUNICATIONS CORP. *v.* CALIFORNIA ET AL.;

No. 97–830. ASSOCIATION FOR LOCAL TELECOMMUNICATIONS SERVICES ET AL. *v.* IOWA UTILITIES BOARD ET AL.;

No. 97–831. FEDERAL COMMUNICATIONS COMMISSION ET AL. *v.* IOWA UTILITIES BOARD ET AL.; and FEDERAL COMMUNICATIONS COMMISSION ET AL. *v.* CALIFORNIA ET AL.;

No. 97–1075. AMERITECH CORP. ET AL. *v.* FEDERAL COMMUNICATIONS COMMISSION ET AL.;

No. 97–1087. GTE MIDWEST INC. *v.* FEDERAL COMMUNICATIONS COMMISSION ET AL.;

No. 97–1099. U S WEST, INC. *v.* FEDERAL COMMUNICATIONS COMMISSION ET AL.; and

No. 97–1141. SOUTHERN NEW ENGLAND TELEPHONE CO. ET AL. *v.* FEDERAL COMMUNICATIONS COMMISSION ET AL. C. A.

8th Cir. [Certiorari granted, *ante,* p. 1089.] Motion of local exchange carriers regarding oral argument granted. Two hours are allotted for oral argument; the first hour is limited to the jurisdictional issue, and the second hour is limited to the nonjurisdictional issues. Divided argument is granted with respect to the jurisdictional issue to be divided as follows: petitioners/cross-respondents, 30 minutes; state respondents/cross-petitioners, 15 minutes; private respondents/cross-petitioners, 15 minutes. Motion of respondent California for divided argument and for additional time for oral argument denied. JUSTICE O'CONNOR took no part in the consideration or decision of these motions.

No. 97–8325. IN RE TURNER. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [*ante,* p. 1071] denied.

No. 97–8862. IN RE BOUIE;
No. 97–8886. IN RE ROBINSON; and
No. 97–8931. IN RE BELL. Petitions for writs of habeas corpus denied.

*Certiorari Granted*

No. 97–1472. HADDLE *v.* GARRISON ET AL. C. A. 11th Cir. Certiorari granted. Reported below: 132 F. 3d 46.

*Certiorari Denied*

No. 97–1322. HOFFMAN ET AL. *v.* HUNT, GOVERNOR OF NORTH CAROLINA, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 126 F. 3d 575.

No. 97–1336. CHARLES *v.* CHARLES. Sup. Ct. Conn. Certiorari denied. Reported below: 243 Conn. 255, 701 A. 2d 650.

No. 97–1340. UNITED AUTOMOBILE, AEROSPACE & AGRICULTURAL IMPLEMENT WORKERS OF AMERICA, AFL–CIO, CLC *v.* PERFORMANCE FRICTION CORP. ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 117 F. 3d 763.

No. 97–1344. BURGO *v.* GENERAL DYNAMICS CORP.; and
No. 97–1582. GENERAL DYNAMICS CORP. *v.* BURGO. C. A. 2d Cir. Certiorari denied. Reported below: 122 F. 3d 140.

No. 97–1354. BARNES *v.* LEVITT, CHAIRMAN, SECURITIES AND EXCHANGE COMMISSION. C. A. 5th Cir. Certiorari denied. Reported below: 118 F. 3d 404.

No. 97–1371. DUFFY *v.* WOLLE ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 123 F. 3d 1026.

No. 97–1453. KUIPER ET AL. *v.* AMERICAN CYANAMID CO. C. A. 7th Cir. Certiorari denied. Reported below: 131 F. 3d 656.

No. 97–1557. PLAIN *v.* SEARS, ROEBUCK & CO. ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 131 F. 3d 136.

No. 97–1566. DETERESA *v.* AMERICAN BROADCASTING COS., INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 460.

No. 97–1568. CLYNES ET UX., AS PARENTS AND NEXT FRIENDS OF CLYNES *v.* FT. ZUMWALT SCHOOL DISTRICT ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 119 F. 3d 607.

No. 97–1570. COMMISSIONER OF REVENUE OF MASSACHUSETTS *v.* NATIONAL PRIVATE TRUCK COUNCIL, INC. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 426 Mass. 324, 688 N. E. 2d 936.

No. 97–1573. ELISABETH H. ET AL. *v.* CONNECTICUT DEPARTMENT OF CHILDREN AND FAMILIES ET AL. Sup. Ct. Conn. Certiorari denied. Reported below: 243 Conn. 903, 701 A. 2d 328.

No. 97–1574. CONTAMINATED SOIL CONSULTANTS, INC. *v.* JOSEPH SMITH & SONS, INC. C. A. 4th Cir. Certiorari denied. Reported below: 121 F. 3d 698.

No. 97–1586. HUFNAGEL *v.* MEDICAL BOARD OF CALIFORNIA. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 97–1587. KRIPPENE, INDIVIDUALLY AND AS EXECUTRIX OF THE ESTATE OF KRIPPENE, DECEASED *v.* BOARD OF COMMISSIONERS OF CHATHAM COUNTY, GEORGIA, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 47.

No. 97–1589. ERNST & YOUNG *v.* COMMISSIONER OF INSURANCE OF MICHIGAN. Ct. App. Mich. Certiorari denied. Reported below: 225 Mich. App. 547, 572 N. W. 2d 21.

No. 97–1592. COLERAIN HILLS INVESTMENT CO. *v.* BOARD OF REVISION OF HAMILTON COUNTY ET AL. Ct. App. Ohio, Hamilton County. Certiorari denied.

No. 97–1599. GOLDEN *v.* CITY OF GULFPORT ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 121 F. 3d 704.

No. 97–1600. BAYER *v.* STANFORD UNIVERSITY SCHOOL OF MEDICINE/MEDICAL CENTER ET AL. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 97–1609. OSEI-AFRIYIE *v.* AMPOFOH. Sup. Ct. Del. Certiorari denied. Reported below: 705 A. 2d 244.

No. 97–1615. PROPST, INDIVIDUALLY AND AS REPRESENTATIVE OF THE ESTATE OF CHAMBERS, DECEASED *v.* KINGRY ET AL. Ct. App. Tex., 12th Dist. Certiorari denied.

No. 97–1619. GANGOPADHYAY *v.* GANGOPADHYAY. Cir. Ct. Raleigh County, W. Va. Certiorari denied.

No. 97–1621. HALPERN *v.* BRISTOL BOARD OF EDUCATION. Sup. Ct. Conn. Certiorari denied. Reported below: 243 Conn. 435, 703 A. 2d 1144.

No. 97–1624. MCGRAW *v.* BOOTH. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1453.

No. 97–1640. HINCHLIFFE ET AL. *v.* PRUDENTIAL HOME MORTGAGE CO., INC. Super. Ct. Pa. Certiorari denied.

No. 97–1643. PHILLIPS ET AL. *v.* CITY OF HARVEY ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 36.

No. 97–1665. KAIMOWITZ *v.* CITY OF ORLANDO. C. A. 11th Cir. Certiorari denied. Reported below: 122 F. 3d 41 and 131 F. 3d 950.

No. 97–1696. BERGER ET AL. *v.* CUOMO, SECRETARY OF HOUSING AND URBAN DEVELOPMENT, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 129 F. 3d 1263.

No. 97–1699. TRAVELLERS INTERNATIONAL AG *v.* TRANS WORLD AIRLINES, INC. C. A. 3d Cir. Certiorari denied. Reported below: 134 F. 3d 188.

No. 97–1711. DARNELL *v.* FIRST FEDERAL OF ALABAMA ET AL. Ct. Civ. App. Ala. Certiorari denied. Reported below: 723 So. 2d 116.

No. 97–1712. In re O'Regan. C. A. 7th Cir. Certiorari denied.

No. 97–1715. Bevard *v.* Farmers Insurance Exchange. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1147.

No. 97–1725. Member Services Life Insurance Co., dba Member Service Administrators, as Third Party Administrator of the Liberty Glass Co. ERISA Qualified Employee Benefit Plan *v.* American National Bank & Trust Company of Sapulpa, Guardian, et al. C. A. 10th Cir. Certiorari denied. Reported below: 130 F. 3d 950.

No. 97–1726. Criffield *v.* United States. C. A. Armed Forces. Certiorari denied. Reported below: 47 M. J. 419.

No. 97–1729. Titus et al. *v.* Guzzey. App. Div., Sup. Ct. N. Y., 3d Jud. Dept. Certiorari denied. Reported below: 244 App. Div. 2d 684, 664 N. Y. S. 2d 163.

No. 97–1753. Sanchez *v.* United States. C. A. 11th Cir. Certiorari denied. Reported below: 132 F. 3d 1460.

No. 97–1770. Yen *v.* National Labor Relations Board et al. C. A. 2d Cir. Certiorari denied. Reported below: 131 F. 3d 132.

No. 97–7320. Thompson *v.* United States. C. A. 7th Cir. Certiorari denied. Reported below: 117 F. 3d 1033.

No. 97–7948. Staton *v.* United States. C. A. 4th Cir. Certiorari denied. Reported below: 122 F. 3d 1064.

No. 97–7997. Smith-Stewart *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 1454.

No. 97–8016. Nobles *v.* Johnson, Director, Texas Department of Criminal Justice, Institutional Division. C. A. 5th Cir. Certiorari denied. Reported below: 127 F. 3d 409.

No. 97–8026. Ledesma Aguilar *v.* Texas. Ct. Crim. App. Tex. Certiorari denied.

No. 97–8341. Williams *v.* Moore, Director, South Carolina Department of Corrections, et al. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 920.

No. 97–8345. ROBERTSON *v.* GEORGIA. Sup. Ct. Ga. Certiorari denied. Reported below: 268 Ga. 772, 493 S. E. 2d 697.

No. 97–8355. JACKSON *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 97–8357. DOLENC *v.* SOBINA, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT SOMERSET, ET AL. C. A. 3d Cir. Certiorari denied.

No. 97–8358. DARDEN *v.* ALAMEDA COUNTY NETWORK OF MENTAL HEALTH CLIENTS ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 122 F. 3d 1070.

No. 97–8367. GOODEN *v.* FAULKNER COUNTY SHERIFF'S DEPARTMENT ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 129 F. 3d 121.

No. 97–8371. HOZAIFEH *v.* TEXAS. Ct. App. Tex., 14th Dist. Certiorari denied.

No. 97–8373. HERRERA *v.* KEATING, GOVERNOR OF OKLAHOMA, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 129 F. 3d 130.

No. 97–8375. GARLICK *v.* GOMEZ, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1105.

No. 97–8380. ROCHE *v.* MONTANA. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 125.

No. 97–8387. CLEWIS *v.* TEXAS. Ct. App. Tex., 14th Dist. Certiorari denied.

No. 97–8398. MAALOUF *v.* BUNKER ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 120 F. 3d 268.

No. 97–8402. BERNARD *v.* NEW YORK CITY HEALTH AND HOSPITAL CORP. C. A. 2d Cir. Certiorari denied.

No. 97–8405. RODRIGUEZ DELGADILLO *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 97–8409. WILSON *v.* STEWART, SUPERINTENDENT, MCNEIL ISLAND CORRECTIONS CENTER. C. A. 9th Cir. Certiorari denied.

No. 97–8410. BOYCE *v.* WOODS, ATTORNEY GENERAL OF ARIZONA. Sup. Ct. Ariz. Certiorari denied.

No. 97–8411. BAGLEY *v.* JOHNSON, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, INSTITUTIONAL DIVISION. C. A. 5th Cir. Certiorari denied.

No. 97–8420. QUARTERMAN *v.* QUARTERMAN. Sup. Ct. Ga. Certiorari denied. Reported below: 268 Ga. 807, 493 S. E. 2d 146.

No. 97–8426. JACKSON *v.* RAY. Sup. Ct. Ga. Certiorari denied.

No. 97–8428. IDE *v.* LEHMAN, SECRETARY, WASHINGTON DEPARTMENT OF CORRECTIONS. C. A. 9th Cir. Certiorari denied. Reported below: 127 F. 3d 1105.

No. 97–8429. MORAN *v.* MORAN, AKA BRAUN, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 129 F. 3d 126.

No. 97–8431. MANGRUM *v.* HEILIG-MEYERS FURNITURE CO. ET AL. C. A. 11th Cir. Certiorari denied.

No. 97–8434. DEYOUNG *v.* GEORGIA. Sup. Ct. Ga. Certiorari denied. Reported below: 268 Ga. 780, 493 S. E. 2d 157.

No. 97–8452. DAVIS *v.* SINGLETARY, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 119 F. 3d 1471.

No. 97–8456. HUGHES *v.* ANDERSON, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 97–8457. WALTON *v.* JOSLIN ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 133 F. 3d 924.

No. 97–8463. BURGESS *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied. Reported below: 329 S. C. 88, 495 S. E. 2d 445.

No. 97–8482. CLERMONT *v.* MARYLAND. Ct. App. Md. Certiorari denied. Reported below: 348 Md. 419, 704 A. 2d 880.

No. 97–8485. OSUNLANA *v.* IMMIGRATION AND NATURALIZATION SERVICE. C. A. 5th Cir. Certiorari denied.

No. 97–8552. ASHIEGBU *v.* SIDDENS. C. A. 6th Cir. Certiorari denied. Reported below: 142 F. 3d 431.

No. 97–8554. PARKER *v.* IMMIGRATION AND NATURALIZATION SERVICE. C. A. 4th Cir. Certiorari denied. Reported below: 139 F. 3d 891.

No. 97–8565. ANDERSON *v.* TEXAS. Ct. App. Tex., 1st Dist. Certiorari denied.

No. 97–8576. WEST *v.* KEANE, SUPERINTENDENT, SING SING CORRECTIONAL FACILITY, ET AL. C. A. 2d Cir. Certiorari denied.

No. 97–8577. BROWN *v.* METRO-NORTH COMMUTER RAILROAD. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 113.

No. 97–8579. LATEEF *v.* VIRGINIA PAROLE BOARD. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 915.

No. 97–8637. RUIZ *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 129 F. 3d 114.

No. 97–8647. HILL *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 347 N. C. 275, 493 S. E. 2d 264.

No. 97–8652. ALLEN *v.* OREGON. C. A. 9th Cir. Certiorari denied. Reported below: 121 F. 3d 714.

No. 97–8659. MCQUOWN *v.* SAFEWAY, INC. Sup. Ct. Va. Certiorari denied.

No. 97–8665. ROSADO *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 97–8692. MCQUOWN *v.* SAFEWAY, INC. Sup. Ct. Va. Certiorari denied.

No. 97–8693. PARKER *v.* UNITED STATES; and
No. 97–8766. PARKER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 133 F. 3d 322.

No. 97–8711. RAWLES *v.* HERZOG ET AL. Super. Ct. N. J., App. Div. Certiorari denied.

No. 97–8713. MARKS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 97–8722. PINEIRO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 136 F. 3d 140.

No. 97–8723. BERRY *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 133 F. 3d 1020.

No. 97–8728. BAKER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 134 F. 3d 383.

No. 97–8732. PHILLIPS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 134 F. 3d 235.

No. 97–8746. LINNEY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 134 F. 3d 274.

No. 97–8750. WILSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 135 F. 3d 291.

No. 97–8761. TURNER *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied. Reported below: 255 Va. 1, 492 S. E. 2d 447.

No. 97–8764. BUCKLEY *v.* BORG, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 133 F. 3d 925.

No. 97–8773. RUOTOLO *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 133 F. 3d 907.

No. 97–8777. NORWOOD *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 142 F. 3d 430.

No. 97–8779. MAYS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 149.

No. 97–8783. ANDERSON *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 134 F. 3d 374.

No. 97–8784. CARBARCAS-A *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 917.

No. 97–8786. WRUBEL *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 142 F. 3d 438.

No. 97–8788. PERKINS *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. Reported below: 138 F. 3d 421.

No. 97–8789. LEVINE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 132 F. 3d 37.

No. 97–8791. PLATH *v.* MOORE, DIRECTOR, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 130 F. 3d 595.

No. 97–8796. DAVIS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 134 F. 3d 379.

No. 97–8797. GARCIA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 127 F. 3d 1314.

No. 97–8798. DUNCAN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 133 F. 3d 929.

No. 97–8807. JONES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 133 F. 3d 358.

No. 97–8808. LANGLEY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 920.

No. 97–8814. JENKINS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 134 F. 3d 373.

No. 97–8815. WALLACE *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 133 F. 3d 933.

No. 97–8825. MARIN-CASTANEDA *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 134 F. 3d 551.

No. 97–8826. LUGMAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 130 F. 3d 113.

No. 97–8827. CLAIBORNE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 132 F. 3d 253.

No. 97–8831. FUENTES *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 131 F. 3d 149.

No. 97–8832. GUTIERREZ-ALBA, AKA CARDONA-ELIAS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 128 F. 3d 1324.

No. 97–8833. FAJEMIROKUN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 918.

No. 97–8835. HARPER *v.* CORCORAN, WARDEN, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 133 F. 3d 914.

No. 97–8838. CARTER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 130 F. 3d 1432.

No. 97–8844. ALBERTO MUNOZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 131 F. 3d 153.

No. 97–8849. SHEPHERD *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 136 F. 3d 139.

No. 97–1408. FLORIDA *v.* GONZALEZ. Sup. Ct. Fla. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 700 So. 2d 1217.

No. 97–1569. CALDERON, WARDEN *v.* BLOOM. C. A. 9th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 132 F. 3d 1267.

No. 97–1562. WHITNER *v.* SOUTH CAROLINA; and CRAWLEY *v.* SOUTH CAROLINA. Sup. Ct. S. C. Motion of National Association of Alcoholism and Drug Abuse Counselors et al. for leave to file a brief as *amici curiae* granted. Certiorari denied. Reported below: 328 S. C. 1, 492 S. E. 2d 777 (first judgment).

No. 97–1579. ZENITH/KREMER WASTE SYSTEMS, INC., ET AL. *v.* WESTERN LAKE SUPERIOR SANITARY DISTRICT. Sup. Ct. Minn. Motions of Waste Management of Minnesota, Inc., National Solid Wastes Management Association, and BFI Waste Systems of North America, Inc., for leave to file briefs as *amici curiae* granted. Certiorari denied. Reported below: 572 N. W. 2d 300.

No. 97–1749 (A–717). DEDHIA *v.* UNITED STATES. C. A. 6th Cir. Application for stay, addressed to JUSTICE KENNEDY and referred to the Court, denied. Certiorari denied. Reported below: 134 F. 3d 802.

*Rehearing Denied*

No. 97–6954. JOHNSON *v.* KALOKATHIS, 522 U. S. 1121;

No. 97–7474. NOVOSAD *v.* NEW MEXICO BOARD OF PHARMACY ET AL., *ante,* p. 1025;

No. 97–7493. HALL *v.* SHELBY COUNTY GOVERNMENT ET AL., 522 U. S. 1026;

No. 97–7512. IN RE ALSTON, *ante,* p. 1019;

No. 97–7611. IN RE FOLLETT, 522 U. S. 1106;

No. 97–7675. THOMPSON *v.* NIXON, ATTORNEY GENERAL OF MISSOURI, ET AL., *ante,* p. 1050;

No. 97–7877. CARGILL *v.* TURPIN, WARDEN, *ante,* p. 1080;

No. 97–7896. ALI-BEY *v.* DEPARTMENT OF JUSTICE ET AL., *ante,* p. 1052;

No. 97–7901. MURRAY *v.* UNIVERSITY OF MARYLAND MEDICAL SYSTEMS, *ante*, p. 1081;

No. 97–7968. COOPER *v.* PRUNTY, WARDEN, ET AL., *ante*, p. 1052;

No. 97–8130. MCQUOWN *v.* SAFEWAY, INC., *ante*, p. 1064;

No. 97–8185. POWELL *v.* DEPARTMENT OF THE AIR FORCE, *ante*, p. 1084; and

No. 97–8500. IN RE FLOWERS, *ante*, p. 1071. Petitions for rehearing denied.